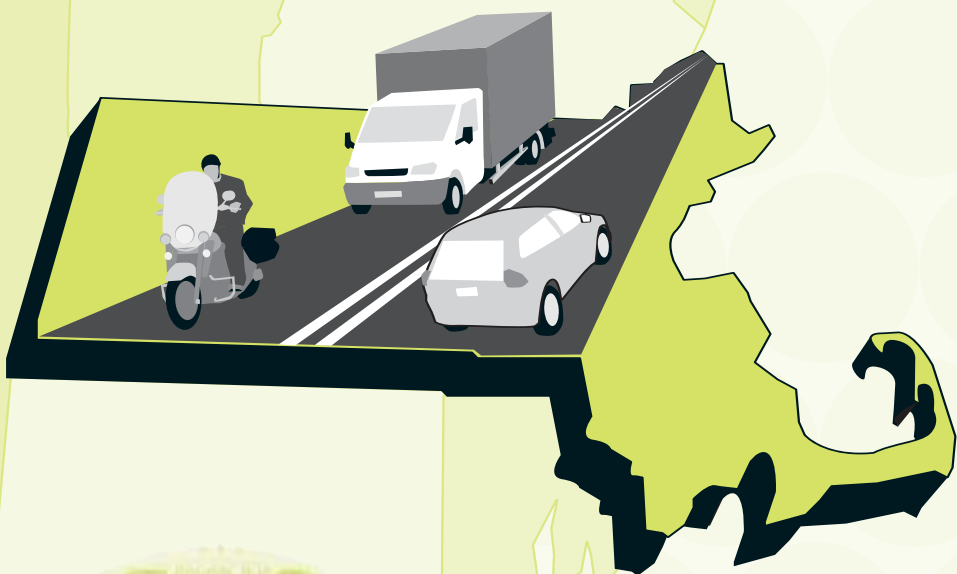


\$5.00

Commonwealth of Massachusetts

DRIVER'S MANUAL

Revised 06/2010



Passenger Vehicles

A Message to Massachusetts Motorists from Rachel Kaprielian, Registrar of Motor Vehicles



Dear Motorist,

This Driver's Manual provides important information about the many services offered by the Registry of Motor Vehicles at our branch locations and through our website at www.mass.gov/rmv. Whether you have questions about the documents you need to apply for a driver's license, how to renew a registration, or when you need to have your vehicle inspected, the answers are all in here. I encourage you to read it thoroughly and keep it handy as a future resource.

The RMV Driver's Manual can help you prepare for a visit to one of our branches, our website, or a phone call to our customer service center. We know from experience that informed customers help us provide quicker, more efficient service and reduce the possibility of a return visit. I encourage you to utilize our virtual branch before you stand in line, as most routine RMV services can be completed through the Internet.

The RMV has also included all the rules of the road that apply to motoring on the roads of the Commonwealth in an effort to help reduce crashes and injuries. In today's world, driving a car is a necessary part of life. Yet owning a vehicle and holding a driver's license are privileges that come with a good deal of responsibility. I urge you to not only become familiar with the laws but always act responsibly behind the wheel.

The RMV has a professionally-trained staff of dedicated public servants who will give you pleasant and efficient service. Please remember that since 9/11 more rigorous standards are in place for ensuring your driver's license and identification documents are protected against identity theft. While this may make your trip to the RMV longer, we hope that it will also keep you safer.

Don't forget to take advantage of our numerous on-line transactions at www.mass.gov/rmv, which now includes a free service you can join that will remind you by email, phone, or text message when your license expires and you need to renew. And please, don't hesitate to let us know how we can provide you with better service.

Safe Driving,

A handwritten signature in dark ink that reads "Rachel Kaprielian". The signature is written in a cursive, flowing style.

Rachel Kaprielian
Registrar

Commonwealth of Massachusetts

Sharing the Road

A User's Manual for Public Ways

Most public ways, including urban streets, country lanes, main roads, secondary roads, and suburban or rural roads, are meant to be shared by all of us. "Us" includes pedestrians, persons riding on bicycles or motorcycles, persons riding in passenger vehicles or buses, and persons operating commercial motor vehicles or trailers, or combinations of those vehicles. Some ways, such as Interstate highways and expressways, are designed exclusively for use by motor vehicles and trailers traveling at high speeds. Other public ways are specifically designed for slower speeds or for travel by lighter vehicles and may restrict or prohibit certain vehicles. Public ways come in various lengths and widths with various features: one-way, two-way, multiple lanes, High Occupancy Vehicle lanes (HOV), center dividers, sidewalks, bicycle lanes, and hard or soft shoulders. However the public way is laid out, it is meant to be used by people and the various types of vehicles that may propel them along if they are not on foot.

Although the bulk of this Manual provides information about the use of public ways for motor vehicles and trailers, the goal of the RMV in producing it is to make all users of public ways aware that our public streets and roads are meant to be shared except where the law provides for limited uses.

Sharing the Road with Bicycles:

In 2009, to further promote safe interactions on our roads between bicycles and motor vehicles, Governor Deval Patrick signed several new laws. These will expand the rights of bicyclists and make it easier to cite them for their own traffic violations. They will also place new legal responsibilities on motorists.* The current and pending changes should help ensure that bicyclists will have a safer riding environment. The changes enforce stricter standards on motorists to be alert and careful in the presence of bicycles. For a brief description of these changes, see page 76 and 102.

Attention Motorists:

Bicyclists have a legal right to use all public roads in this state except limited access or express state highways where signs specifically prohibiting bicycles have been posted. Like motorists, they are also required to know and obey traffic laws and regulations. Both bicyclists and motorists need to understand the current and pending laws. As a motorist, you need to understand and appreciate that bicyclists are far more vulnerable to injury and death when forced off the road and when in collision with a motor vehicle. Drivers need to know and respect bicyclists' rights and safely share the road with them. You also need to know your own legal responsibilities when driving in the presence of bicycles.

* Chapter 525 of the Acts of 2008; Sections 3 & 11 of Chapter 26 of the Acts of 2009; and Chapter 65 of the Acts of 2009 (which does not take effect until 1/1/2011).

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*This document is published by the Registry of Motor Vehicles (RMV), Commonwealth of Massachusetts, for the benefit of residents and visitors alike. While it contains a great deal of information about RMV policies and state laws, it is important to note that this is **not** a legal document. Every effort is made to present the most accurate, error free, and up-to-date information. However, RMV policies and fees change from time to time, as do laws governing motor vehicles.*

The RMV will make every effort to post information about changes to the fees, policies, procedures or laws referenced in this Driver's Manual that may affect your ability to obtain a Learner's Permit, Driver's License or Identification Card. Relevant changes will be posted on the RMV's website at www.mass.gov/rmv. If you do not have access to a computer, you may call the RMV's Phone Center at 617-351-4500 (or 1-877-RMV-TTDD if you are hearing impaired).

The Massachusetts Registry of Motor Vehicles (RMV) has changed a great deal since its inception in 1903. There are now nearly five million licensed drivers in our state. And today, more than ever, the Agency is committed to increasing efficiency and improving customer satisfaction through technology and innovative initiatives.

Enhanced computer technology continues to strongly impact customer service. Through the RMV's website (www.mass.gov/rmv) you can pre-stage certain license/ID card transactions and conduct such transactions as scheduling a road test, renewing a registration, renewing a license or Massachusetts Identification Card, ordering a special plate, paying a traffic citation, ordering a duplicate license/ID, changing your address, verifying the issuance of a driver's education certificate, checking the status of a registration or title, or changing your organ donor status. You can also download forms, view this *Driver's Manual*, learn the latest "rules of the road," and join a free service that will remind you by email, phone, or text message when your license or ID card expires and you need to renew. Over the Internet, the RMV also invites you to ask questions and offer suggestions for improving RMV services.

To encourage you to avoid unnecessary trips to one of the RMV's branches, the Agency wants you to process some transactions over the phone; you can replace a lost license, pay a citation, order a driving record, schedule a road test, and renew a registration. By mail, you can conduct some title and registration transactions. Through the Electronic Vehicle Registration program, participating automobile dealers and insurance agents can issue new plates and perform registration transfers and renewals.

The RMV will continue to explore other ways to improve its relationship with you.

How to Use This Manual

For *new drivers*, this booklet is a useful tool for understanding the licensing process and for studying the rules of the road. For *experienced drivers*, this booklet offers more than the procedure for obtaining a learner's permit. It provides valuable information on RMV policies, changes to driving laws, and safe driving tips. Keep this



Obtaining Your License

If you are a Massachusetts resident (or even a non-resident), you must have a valid driver's license to operate a motor vehicle on any public road, highway, or other way permitting access to the public.

Through the Registry of Motor Vehicles (RMV), the Commonwealth of Massachusetts issues five license classes with various privileges and restrictions to residents of Massachusetts. Class A, B, and C licenses, which are known as commercial driver's licenses (CDLs), allow you to operate large vehicles, like trucks and buses. The Class D license, which is most common, is for passenger vehicles, vans, and small trucks. The Class M license allows you to operate motorcycles.

CHAPTER 1

License Descriptions and Classifications

Who Needs a Massachusetts License?

All Massachusetts residents need to obtain a valid Massachusetts license in order to operate a motor vehicle in Massachusetts. See *Appendix D* for color images of licenses issued by Massachusetts.

Out-of-State/Country Residents

A U.S. resident living outside Massachusetts may drive in the Commonwealth using a valid out-of-state driver's license. This rule applies both to visitors and to out-of-state residents who work in Massachusetts.

If you are a visitor from another country, you may drive private passenger vehicles in Massachusetts for up to one year from your date of arrival in the United States provided you have a valid driver's license issued by your home country and your country is recognized under one of the conventions listed in *Appendix A* or the Registrar has specifically granted driving privileges to residents of your country as detailed in *Appendix A*. An International Driver's Permit is not required, but the permit may help provide an English translation of your foreign license. The International Driver's Permit is **not** a driver's license.

You must have your valid out-of-state or foreign driver's license in your possession when driving in Massachusetts.

Once you have established residence in Massachusetts, you must obtain a Massachusetts driver's license to retain your driving privileges. There is no grace period. For the procedure for converting your out-of-state or foreign license, see the *Converting Your License* section.

Licensing Rules for Military Personnel

If you are in active military service and want to drive in Massachusetts, you must have a valid driver's license from your home state. If you are a permanent resident of the Commonwealth, you must have a valid Massachusetts license. Following are exceptions to this rule:

- If you are returning from active duty outside the United States and have a driver's license issued by a branch of the Armed Forces based in another country, you may drive with that license in Massachusetts for up to 45 days.
- If you have a Massachusetts driver's license that expired during your active service, you may use that license to operate a motor vehicle for up to 60 days after your honorable discharge from military service. If you choose to exercise this option, you must carry your expired license and proof of your discharge with you when you drive.

RMV Phone Center: 617-351-4500

The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833).

Monday–Friday 9 a.m.–5 p.m.

Internet Address: www.mass.gov/rmv

Who is Eligible for a Massachusetts License?

Anyone who is a Massachusetts resident, is at least 16 years old, and has not had a driver's license or the right to operate revoked may apply to begin the process of obtaining a Class D or Class M License at any full-service RMV Branch (see *Appendix C* for a list of locations).

Age Requirement

No person under the age of 16 may drive in Massachusetts. This is true even if you have a driver's license (or learner's permit) issued in a state or U.S. territory or another country that allows operation of a motor vehicle by a person less than 16 years of age.

- To apply for a Class D (passenger vehicle) or a Class M (motorcycle) learner's permit, you must be at least 16.
- You can obtain a learner's permit at age 16, but you may not receive a Class D or a Class M driver's license until you are at least 16 1/2 and have had your permit in good standing for six consecutive months and have completed a driver education training program approved by the Registrar.

Note: You must be at least 18 years old to apply for a Commercial Driver's License (Class A, B, or C).

Parental Consent

Customers applying for permits, licenses, or identification cards who are under age 18 (minors) must obtain written consent from a parent, a legal guardian, a social worker, or a boarding school headmaster. For a learner's permit, or identification card, a person gives written consent by signing the front of the permit / ID application.

If the person signing the front of the application is not a parent, documentation of the person's guardian status must be shown at the time of the permit / ID application and, for a license, at the time of the road test. **Forging a signature may result in license suspension or revocation.**

Facial Image Policy

All applicants for a learner's permit, driver's license, identification card, liquor identification card, or HP placard must have their photo-image captured by the RMV.

This is to ensure that the image contained on the issued document and in the RMV's database is the actual image of the person who provided the identification information to the RMV when applying for the document. It is also to aid law enforcement officers in the proper identification of the person whose image is contained on the document.

The captured image must be a straightforward looking view of the applicant. All of the applicant's facial features must be visible (e.g. eyes, nose, mouth, cheeks, etc.). The appearance must provide a clear view of the applicant's face as a whole. A solid or transparent facial cover (scarf, veil, eyeglasses/sunglasses, goggles, surgical or dust mask, etc.) is not acceptable. Eyeglasses, including reading or prescription glasses, are not allowed, even if the applicant normally wears them. A hat or other head cover is not

acceptable, but if worn for medical or religious reasons, it may be allowed if it does not hide any facial features. Natural facial hair and hairpieces may be acceptable unless the overall effect disguises the person's true facial appearance or facial features are obscured. Permanent facial tattoos are acceptable but temporary tattoos are not. Bluetooth headsets are not acceptable.

Chapter 428 of the Acts of 2006 prohibits the RMV from taking a photo-image for a license or ID if the applicant is wearing eyeglasses.

Massachusetts Driver's License Limited to Massachusetts Residents

If your privilege to drive on your valid foreign license has expired because more than one year has elapsed since your last date of arrival in this country, or if you are visiting for business or pleasure and are trying to acquire your first driver's license, your ability to obtain a Massachusetts driver's license is limited. Massachusetts law does not authorize driver's licenses to be issued for the convenience of business persons or tourists from other countries. To obtain a license, you must meet all the requirements for a driver's license under the law, including the requirement that you be a resident of Massachusetts.

Massachusetts law requires those convicted of sex offenses to register with their local police departments. For more information, call 1-800-93-MEGAN.

Vision Screening Requirements

Testing your vision is a necessary part of ensuring that you are capable of operating a motor vehicle safely. An RMV clerk will screen your vision when you apply for a learner's permit or driver's license. You will be screened for visual acuity, color vision, and peripheral vision. If you normally wear contact lenses or corrective lenses to see at a distance, then you must wear them during the vision screening examination.

To be eligible for a Class D or M license, your vision must be at least 20/40 visual acuity in your better eye (corrected) and at least 120 degrees of horizontal peripheral vision (both eyes together) for a full license. If your corrected vision is between 20/50 and 20/70 in the better eye, you may be eligible for a daylight only license. If you fail the vision screening examination, decline to take the examination, or are unable to take the vision screening examination, you may submit an original RMV Vision Screening Certificate that your physician or optometrist, licensed in Massachusetts, has completed. The RMV may accept this Vision Screening Certificate in lieu of the vision screening examination to demonstrate compliance with the minimum vision standards to obtain a Massachusetts driver's license.

The Vision Screening Certificate is available at any RMV Branch or License Express counter. You can download the certificate from the RMV's website (www.mass.gov/rmv) or pick up a copy at many eye-care providers.

For information on other physical qualifications necessary to hold a Massachusetts driver's license or for more information regarding the voluntary reporting procedure for medical conditions, please call the Medical Affairs Branch at 617-351-9222 (or refer to the *Medical Restrictions* and *Surrendering Your License* sections.)

Driving Record Verification

When you apply for a permit or license, or renew a license, you will be required to provide a list of the states you have been licensed in for the past ten years, as well as all out-of-state license numbers you have had. The RMV's licensing computer system checks your name, birth date, Social Security Number, and any out-of-state driver's license numbers with the Problem Driver Pointer System (PDPS), which stores information about license suspensions and revocations for drivers in all 50 states (The system is operated by the National Highway Traffic Safety Administration -NHTSA). If your record matches PDPS, you will not be allowed to continue the application process until all out-of-state suspensions or convictions are resolved.

License Classes

The table below summarizes Massachusetts license types.

A Massachusetts driver's license is valid for a maximum of five years and expires on your birthday. However, your first license will expire on your fourth birthday following the date of issue. In the Commonwealth, your driver's license is considered a primary form of identification, showing proof of identity, residence, age, and signature.

Massachusetts Driver's Licenses	
License Class	Vehicles Permitted
A	Any combination of vehicles with a gross combination weight rating (GCWR) of 26,001 or more pounds, provided the GVWR of the vehicle(s) being towed is in excess of 10,000 pounds. (Holders of a Class A license may, with any appropriate endorsements, operate all vehicles within Class B, C, and D.)
B	Any single vehicle with a gross vehicle weight rating (GVWR) of 26,001 or more pounds, or any such vehicle towing a vehicle not in excess of 10,000 pounds GVWR. (Holders of a Class B license may, with appropriate endorsements, operate all vehicles within Class C and D.)
C	Any single vehicle or combination of vehicles that does not meet the definition of Class A or Class B, but is either designed to transport 16 or more passengers including the driver, or is required to be placarded for hazardous materials under 49 CFR 172.500 or any other federal regulation. (Holders of a Class C license may operate all vehicles within Class D.)
D	Any single vehicle or combination of vehicles that does not meet the definition of Class A, Class B, Class C, or Class M. (Typically passenger vehicles such as cars, SUVs, or family vans).
M	Any motor vehicle defined as a motorcycle in M.G.L. c. 90, § 1.

- A Class A license can have all endorsements.
- A Class B license can have all endorsements except for Combination and Doubles/Triples.
- A Class C license can only have HAZMAT, Tank, School Bus, and Passenger endorsements.
- If you pass a CDL road test in a vehicle equipped with air brakes, you will be permitted to operate a vehicle with air brakes.
- Transporting school-aged children and/or operation of a 'school bus' requires special authority.

In addition to listing your personal information, a license or an ID issued to you by the RMV features an image of your photo and signature, which is stored on the RMV's central computer. This photo-image technology not only helps make your license or ID tamper resistant, it allows the RMV to issue replacements quickly.

Commercial Licenses (Class A, B, or C)

For information on commercial licenses (CDLs), refer to the *Massachusetts Commercial Driver's License Manual*, which is available at any RMV branch or online at www.mass.gov/rmv.

Unless otherwise exempted by Federal Regulations, any operator of a Commercial Motor Vehicle (CMV) weighing more than 10,000 lbs., must have in his or her possession a valid U.S. Department of Transportation Medical Card or a valid Medical Waiver Card issued by the Medical Affairs Branch of the Massachusetts Registry of Motor Vehicles.

School Pupil Transport (Eight or fewer passengers)

If you transport school-aged children, you must have a separate license or special endorsement. A pamphlet on school pupil transport license information is available at RMV Branches or online at www.mass.gov/rmv.

Endorsements

Endorsements are additional driving privileges that can be attached to your basic license class. All endorsements apply to commercial vehicles and can only be added to a CDL license. For example, you may add a hazardous materials endorsement to a Class C license (but not a Class D).

For information on Commercial vehicle restrictions or endorsements, see the Commercial Driver's License Manual.

Restrictions

Restrictions are limitations placed on your driving privileges. Your driver's license may be issued with various restrictions, which are indicated by code letters on the front and back of your license.

The back of your driver's license lists your license class and any endorsements or restrictions.

List of Restrictions

The RMV may apply any of the following restrictions to a passenger vehicle license: (Commercial vehicle restrictions are not shown)

- B** Corrective lenses
- C** Mechanical Aid
- D** Prosthetic Aid
- E** Automatic Transmission

- F** Outside Mirror
- G** Limit to Daytime Only
- H** Limit to Restricted Hours
- I** Limit - Junior Operator
- J** Restriction Card Must be Carried
- P** Use with Certified Driving Instructors only (permit only)
- R** Bioptic telescopic lens
- S** Proof of Current Blood Sugar Level
- Y** Restrict to 14 passengers or less
- Z** Ignition Lock/Hours Restriction

Medical Restrictions

The RMV's Medical Affairs Branch (MAB), which reviews license applications listing physical or mental conditions that may affect a driver's abilities, may issue driving restrictions related to your current medical condition. For example, if you pass the driver's license vision test by wearing glasses or contact lenses, your driver's license will be issued with a "Corrective Lenses" restriction (code letter B) and you must wear your corrective lenses when you drive. If you need a mechanical aid or prosthetic device (adaptive equipment) to operate a motor vehicle, the Medical Affairs Branch will issue your license with restriction(s). The Medical Affairs Branch considers license applications on a case-by-case basis, and you may be required to provide a physician's letter for medical clearances or special driving-related equipment.

If you develop a medical condition that affects your ability to drive, you *must* report the condition to the RMV. Please call the Medical Affairs Branch (MAB) at 617 351-9222.

If the Medical Affairs Branch issues you a separate Restriction Card, your license will display the restriction code letter J. With this restriction, you must carry your card and your license when you drive.

Junior Operator Restrictions

The Junior Operator restriction (code letter I) is added to the licenses of all operators under age 18. For a complete description of the Junior Operator Law and of driving restrictions applied to operators under 18, see the *Junior Operator License Law* section later in this chapter.

Massachusetts IDs and Liquor IDs

For people who do not have a Massachusetts driver's license, the RMV can issue one of two official identification (ID) cards. The Massachusetts ID and Massachusetts Liquor ID look similar to driver's licenses, but they do not extend any driving privileges. These two ID cards are official forms of identity, signature, and age that are accepted in the Commonwealth. You cannot hold an ID card and a license at the same time.

You can apply for a Massachusetts ID or a Liquor ID at any RMV branch.

See *Appendix D* for color images of identification cards issued by Massachusetts.

Massachusetts IDs and Liquor IDs are produced at a secure location and are generally mailed to you five to seven days after you visit the branch.

At the branch, you will receive a receipt that includes your personal information, image, and signature. The receipt is not valid for identification. This means that it will not be accepted by most airlines, cruise ships, etc., for travel as a state-issued photo ID.

Massachusetts ID

If you do not have a valid driver's license, but would like an official ID card, the RMV can issue you a Massachusetts ID. To obtain one, you must meet the following requirements:

- Be at least 16 years old
- Not hold a valid driver's license from Massachusetts or any other jurisdiction
- Be a Massachusetts resident

A Massachusetts ID expires every five years.

Massachusetts Liquor ID

Licensed Massachusetts pouring establishments and package stores may refuse to accept a Massachusetts ID card for proof of age and identity. State law (M.G.L. Chapter 138, Section 34B) provides alcohol servers with some legal protection if it is found that alcohol was served to an underage person in reliance on the following but not in reliance on a Massachusetts ID card:

- (1) A valid Massachusetts Driver's License
- (2) A valid Massachusetts Liquor ID Card
- (3) A valid passport issued by the United States government (including a U.S. Passport Card) or by the government, recognized by the U.S. government, of a foreign country
- (4) A U.S. issued Military ID card

The Liquor ID card can be issued to Massachusetts residents, as well as out-of-state or out-of-country residents. To obtain one, you must meet the following requirements:

- Be at least 21 years old
- Not hold a valid Massachusetts Driver's License

A Liquor ID is valid for five years and cannot be renewed. If you need a Liquor ID for more than five years, you should reapply in person upon the expiration of the existing Liquor ID.

Refer to the *Identification Requirements* section on the next page for the identification documents that must be presented to obtain a Mass ID or Liquor ID.

Identification Requirements

To apply for a permit, license, or ID card, you must produce at least three (3) identification documents. These required documents include:

1. A document proving your date of birth
2. A document proving you are a resident of Massachusetts (not required for a liquor ID)
3. A pre-existing document containing your signature

You must also produce your social security number (SSN) that the RMV can verify with the Social Security Administration (SSA) as having been issued to you. The RMV cannot issue a permit, license, or ID card if an SSN does not verify. If you do not have an SSN, you must apply for one at the SSA. If you are denied an SSN, you will be issued a "Denial Notice" by the SSA which explains why you cannot obtain an SSN. The "Denial Notice" must be dated and cannot be altered or be more than 60 days old. If you present a "Denial Notice" instead of a valid SSN, you must also present the following:

- Proof of your current visa status
- An I-94 (Record of Arrival & Departure that you received on entry to the U.S.)
- Your current non-U.S. Passport

Your Passport can also be used as a document to prove date of birth or signature, but not both.

The three (3) identification documents must be from the list of *Acceptable Forms of Identification* (see page 12) and must be satisfactory to the Registrar.

You need to provide the required identification for each different type of document you apply for, even if you already have a Massachusetts permit, license, ID, or liquor ID.

All documents must be originals unless otherwise indicated. Photocopies will not be accepted.

Refer to the chart on the next page for a list of what must be presented for each type of RMV issued permit, license, or ID card.

**Identification requirements are subject to change at any time.
Visit www.mass.gov/rmv for the most current information.**

Note 1: If you present any document that is inconsistent with the concept of your being a resident of Massachusetts (such as presenting a B1 or B2 or other short term visa status, or an expired visa status or documents showing an out-of-state residence), you will not be considered a "Massachusetts resident" and an application for a permit, license, or Mass ID will be denied. If you have filed an application for an adjustment of status with the U.S. Citizenship & Immigration Service, and have documentation from that agency showing that you have a pending application, you may be eligible to receive a permit, license, or ID card.

Note 2: Foreign diplomats and other foreign government officials, their family members, and personal assistants/employees who have been issued a U.S. Department of State driver's license are not eligible to obtain a Massachusetts driver's license.

Document Requirements Chart

Applying for	Required documents for applicants 17 years of age and under	Required documents for applicants 18 years of age and over
Change Date of Birth	One document proving date of birth	One document proving date of birth
Permit	- Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport - One document proving date of birth Parent/Guardian's consent (signature) is required on the application.	- Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport - Document proving date of birth - Document proving signature - Document proving Massachusetts residency
Out-of-State Permit Conversion from the United States, Canada, Mexico, and the U.S. territories	- Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport - Current out-of-state Permit - Certified copy of driving record not more than 30 days old - Document proving date of birth Parent/Guardian's consent (signature) is required on the application. Note: Driver's Education Certificate is required to schedule a road test to obtain a License.	- Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport - Current out-of-state Permit - Document proving Massachusetts residency - Certified copy of driving record not more than 30 days old - Document proving date of birth - Document proving signature
License	Permit	Permit
License Renewal	Not applicable	- Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport - Current or expired license
Duplicate of License, Permit, MA ID, or Liquor ID	Identification is required if not imaged.	Identification is required if not imaged.
Out of State License Conversion with previous Massachusetts License expired <u>less</u> than four years	- Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport - Certified copy of driving record not more than 30 days old - Out-of-state License* Parent/Guardian's consent (signature) is required on the application. * If the out-of-state License does <u>not</u> have a photo, an acceptable photo ID from the list of acceptable documents is required. Note: Must convert Driver's Education Certificate or complete Driver's Education in Massachusetts	- Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport - Document proving Massachusetts residency - Out-of-state License* * If the out-of-state License does <u>not</u> have a photo, an acceptable photo ID from the list of acceptable documents is required. <i>If the License is from Canada, Mexico, or a U.S. Territory (including Puerto Rico), a certified driving record, not more than 30 days old, is required.</i>

A "Denial Notice" must be acceptable to the RMV. See page 16 for more information.

continued on next page

Document Requirements Chart

Applying for	Required documents for applicants 17 years of age and under	Required documents for applicants 18 years of age and over
Out-of State License Conversion with previous Massachusetts License expired more than four years OR with no previous Massachusetts License	• Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport • One document proving date of birth • Certified copy of driving record not more than 30 days old • Out-of-state License* (may be used as a document to prove date of birth.) Parent/Guardian's consent (signature) is required on the application. * If the out-of-state License does <u>not</u> have a photo, an acceptable photo ID from the list of acceptable documents is required. Note: Must convert Driver's Education Certificate or complete Driver's Education in Massachusetts.	• Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport • Document proving date of birth • Document proving signature • Document proving Massachusetts residency • Out-of-state License* (may also be used as a document to prove date of birth or signature, but cannot be used for both.) * If the out-of-state License does <u>not</u> have a photo, an acceptable photo ID from the list of acceptable documents is required. <i>If the License is from Canada, Mexico, or a U.S. Territory (including Puerto Rico), a certified driving record, not more than 30 days old, is required.</i>
Out-of-state License Conversion (if you do not have the out-of-state License)	• Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport • One document proving date of birth • Acceptable photo ID from the list of acceptable documents (may be used as a document to prove date of birth.) • Certified copy of driving record not more than 30 days old Parent/Guardian's consent (signature) is required on the application. Note: Must convert Driver's Education Certificate or complete Driver's Education in Massachusetts	• Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport • Document proving date of birth • Document proving signature • Document proving Massachusetts residency • Acceptable photo ID from the list of acceptable documents (may also be used as a document to prove date of birth or signature, but cannot be used for both.) • Certified copy of driving record not more than 30 days old
Massachusetts ID Cannot hold a valid Driver's License	• Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport • One document proving date of birth Parent/Guardian's consent (signature) is required on the application	• Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport • Document proving date of birth • Document proving signature • Document proving Massachusetts residency
Massachusetts ID Renewal	Not applicable	• Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport • Current or expired Massachusetts ID
Liquor ID Must be 21 years or older Cannot hold a valid Massachusetts License	Not applicable - applicant must be 21 years or older.	• Verifiable SSN or "Denial Notice" with visa, I-94, and current non-U.S. Passport • Document proving date of birth • Document proving signature

Acceptable Forms of Identification

Listed on the next few pages are the types of documents the RMV will accept to prove identity.

Note: For a document to prove residence, it must state the residential address. A P.O. Box is not acceptable proof of residency.

Documents to prove Massachusetts Residence

At least one document must be from this group:

1. Current MA learner's permit, MA license, or MA ID card
2. Expired MA driver's license or MA ID card (expired no more than 12 months)
3. Certified or attested copy of a court order of a federal, state, or county court within the U.S. that contains a raised court seal and includes the applicant's full name, residential address, and DOB (*examples include an adoption document, a name change document, and a gender change document*) (dated within 12 months of application)
4. Home mortgage or lease; or loan contracts (examples include Retail Installment Sale Agreement, and Motor Vehicle Installment Sale Contract), with the applicant's name, residential address and signature (dated within 12 months of application)
5. Current, valid homeowner's or renter's insurance policy with the applicant's residential address that is for the current or immediate prior year
6. (a) A bank passbook with applicant's name and residential address printed or written in a designated place in the passbook; (b) A bank statement or transaction-related document (no more than 60 days old) on a form generated by the issuing bank and displaying the bank's name and mail address, and the applicant's name and residential address, received through mail by applicant; (c) A checkbook with the applicant's pre-printed name and residential address; or (d) ATM/Debit Card statement with name and residential address (no more than 60 days old)
7. Canceled personal check (*copy acceptable if printed on a sheet with other cancelled checks and issued as part of a monthly statement by the bank*) with signature of applicant and preprinted residential address on the check and dated not more than 60 days earlier
8. Original or certified copy of a U.S. - issued Marriage Certificate (dated within 6 months of application)
9. A utility bill (gas, electric, wired telephone, wired cable, or heating oil delivery bill) (no more than 60 days old) that contains the applicant's name and residential address
10. Current Massachusetts registration card
11. A property tax or excise tax bill that is for the current or the immediate prior year and contains the applicant's name and residential address
12. Tuition bill or student loan coupons, with residential address, with a due date of not more than 12 months old

13. Original school transcript with name and residential address (not valid if more than 12 months old)
14. Original letter issued and signed by the principal, headmaster, or official keeper of the records of a MA school (including a college or university) on school's letterhead that states the applicant is currently a resident student and includes the name and date of birth (dated within 12 months of application)
15. Medicaid correspondence (dated within six months of application)
16. Credit Report issued by Experian, Equifax, or TransUnion (dated within 12 months of application)
17. Annual Pension or Retirement Statement for the current or immediate prior year
18. Annual Social Security Statement for the current or immediate prior year
19. First-class mail from any federal or state agency that displays residential address
20. W-2 Form from current or previous year that displays residential address
21. Cell phone, credit card, doctor, or hospital bill issued within the last 60 days
22. Voter registration signed & certified by city/town clerk
23. Pre-printed pay stub with employer's name and address and applicant's name and residential address (no more than 60 days old)
24. Current car loan payment book that displays residential address
25. Car insurance policy/bill (no more than 60 days old)
26. Current MA-issued Professional License that displays residential address
27. Jury Duty Summons (dated within 12 months of application)
28. Census or Census Verification for current year
29. MA Firearms Card, with photo, signature, residential address, and DOB (expired no more than 12 months)

18 – 21 year old applicants

30. Notarized statement from parent/legal guardian that states applicant currently resides in the parent/guardian's home

Documents to prove Date of Birth (DOB)

At least one document must be from this group:

1. U.S. or non-U.S. passport (including passport card) with photo
2. Current MA learner's permit, MA license, or MA ID card
3. Expired MA license or MA ID card
4. Out-of-state license with photo and DOB issued by a state, territory, or possession of the U.S., D.C., a province of Canada, or a state of Mexico or the Federal District of Mexico City

5. Original birth certificate issued in the U.S. or its territories or a copy certified by the agency that issued the original certificate or a copy certified by a Bureau of Vital Statistics or a state Board of Health within the United States (**a hospital-issued certificate is not acceptable**)

Starting July 1, 2010, Puerto Rican birth certificates issued before June 30, 2010 will not be accepted. However, birth certificates issued between June 15 and June 30, 2010 will be valid for an additional 15 days. If you wish to use a Puerto Rican birth certificate after July 1, 2010, you will need to obtain a new one from the Puerto Rico Health Department, Vital Statistics Records Office.

6. Original out-of-country birth certificate certified by the agency that issued it. If not in English, the certificate must be translated (see *Translation Required* section).
7. Certified or attested copy of a court order of a federal, state, or county court within the U.S. that contains a raised court seal and includes the applicant's full name and DOB (examples include an adoption document, a name change document, and a gender change document)
8. Certain Bureau of Citizenship and Immigration Services documents and other U.S. Government immigration documents (See list of Official Immigration Documents)
9. U.S. military discharge papers (DD 214) with DOB
10. U.S. Coast Guard Merchant Mariner card with photo and DOB
11. Original or certified copy of a U.S. - issued Marriage Certificate with DOB listed
12. Original or certified copy of a baptismal certificate, provided the original certificate was issued within one year of the applicant's birth by a church in the U.S. and contains the applicant's DOB
13. Original letter issued and signed by the principal, headmaster, or official keeper of the records of a MA school (including a college or university) that is on school letterhead and states the applicant is currently a resident student and includes the name and DOB
14. U.S. military (or military dependent) ID with photo and DOB
15. MA Firearms Card, with photo and DOB

A non-US passport must contain a visa and a Record of Arrival and Departure (I-94).

Documents to prove Signature

At least one document must be from this group:

1. U.S. or non-U.S. passport (including passport card) with photo and signature
2. U.S. Coast Guard Merchant Mariner card with photo and signature
3. Current MA learner's permit, MA license, or MA ID card
4. Expired MA driver's license or MA ID card
5. Out-of-state license with photo and signature issued by a state, territory,

possession of the U.S., D.C., province of Canada, or a state of Mexico or the Federal District of Mexico City

6. Certain Bureau of Citizenship and Immigration Services documents and other U.S. Government immigration documents (See list of Official Immigration Documents)
7. Lease or loan contracts, with name and signature
8. U.S. military discharge papers (DD 214), with signature
9. Canceled personal check (*copy acceptable if printed on a sheet with other cancelled checks and issued as part of a monthly statement by the bank*) with signature of applicant and preprinted residential address on the check
10. Original or certified copy of a U.S. - issued Marriage Certificate
11. Current or expired ID with photograph and applicant's signature, issued by a U.S. agency, the District of Columbia, a state or state agency (but not a state college/university ID), a municipality, a territory, or a possession of the United States, a province of Canada, or a state of Mexico or the Federal District of Mexico City
12. U.S. military (or military dependent ID) with photo and signature
13. Selective Service Card with name & signature
14. Social Security Card
15. MA Firearms Card, with photo and signature

A non-US passport must contain a visa and a Record of Arrival and Departure (I-94).

Official U.S. Immigration Documents

If the document has an expiration date which has passed, the document is not acceptable.

1. Certificate of Naturalization N-550, N-570, or N-578
2. Certificate of Citizenship N-560, N-561, or N-645
3. U.S. Citizen Identification Card I-179 or I-197
4. Permanent Resident Card ("Green Card") I-551
5. Temporary Resident Identification Card I-688
6. Record of Arrival and Departure (in valid Foreign Passport) I-94
The I-94 and the valid foreign Passport it is within count as only one Acceptable Document.
7. Processed for I-551 stamp (in valid, Foreign Passport)
8. U.S. Permanent Resident Re-entry Permit I-327
9. U.S. Refugee Travel Document I-571
10. Employment Authorization Card I-688B, I-766
11. Documents specific to the applicant based upon decisions of the U.S. Department of State, U.S. Department of Justice (including Executive Office for Immigration Review, Board of Immigration Appeals and former Immigration and Naturalization Service), or U.S. Department of Homeland Security (including Bureau of Citizenship and Immigration Services.)

NOTE: It is not the function of RMV employees to advise you about which documents to present. No specific type of document on either list is required or preferred. In following these policies and procedures, RMV employees apply the same eligibility requirements to all applicants equally, without regard to race, sex, creed, national origin, or English speaking ability. The issuance of a driver's license, learner's permit, or ID card is not a determination of whether or not a person has legal or illegal immigration status. That is the responsibility of the Bureau of Citizenship and Immigration Services.

Translation Required Policy (amended May 1, 2009)

If you present a document that is not written or printed in the English language, the Registrar may require the document to be accompanied by a translation that is certified by a bilingual teacher at an accredited Massachusetts college, university, or private language school, or by the local consulate for the document's country of origin. The translation must be printed on the letterhead of the consulate, college, university, or private language school and it must be properly formatted. Visit **www.mass.gov/rmv** to see the acceptable format.

Social Security Numbers and License Numbers

You must have a valid Social Security Number (SSN) to apply for any permit, license, or ID, including a replacement or a renewal. When you submit an application at an RMV Branch, the Registry will attempt to validate the SSN you provide against computer records at the Social Security Administration (SSA). If you do not have an SSN, you may request an application for one by calling 1-800-772-1213.

Note: If you have recently changed your name, you should make the change with the SSA before you change your name on your driver's license. This is to ensure that the SSA recognizes your new name when the RMV attempts to validate your SSN. You are not required to present any documents to the RMV to prove your new name.

If you are not a citizen and do not have an SSN, you should apply for one at a Social Security Office as soon as possible. If you are denied an SSN, you may still qualify for a Massachusetts driver's license or ID if you can meet other identification requirements proving your age, signature, and Massachusetts residency. However, to prove that you applied for an SSN, you must present the written Denial Notice (not more than 60 days old) the SSA provided you, which informed you that you were not eligible for an SSN, and a non-US passport, visa, and I-94.

For information on obtaining an SSN, call 1-800-772-1213.

RMV May Reject SSN Denial Notice

The RMV reserves the right to reject any Social Security Denial Notice that does not appear to be genuine, that is more than 60 days old, or which appears to have been altered, or is incomplete, or that indicates the application for an SSN has not been properly completed.

A Denial Notice from the SSA which indicates that the applicant has failed to properly complete the application process will be treated by the RMV as an unacceptable Denial

Notice. An application for a Learner's Permit, Driver's License, or ID card that is accompanied by an unacceptable Denial Notice will be rejected. Evidence of failure to properly complete the SSN application process includes, but is not limited to, failing to provide documents required as part of the SSN application process, including failing to provide evidence of class admission, and failing to comply with a request by the SSA to visit an SSA office for an in-person interview.

“S” License Numbers

The RMV requires your SSN to confirm your identity and to maintain your license and driving records. In the past, your Massachusetts driver's license number was automatically your SSN unless you requested a random state number to be assigned.

You no longer have the option of using your SSN as your license / ID number, due to the Intelligence Reform and Terrorism Prevention Act of 2004. The RMV license system now automatically assigns a computer generated number, beginning with an "S," as a license / ID number.

Rejected Documents and Rejected Applications

The Registrar reserves the right to reject any application if she has a good faith reason* to believe any of the following:

- Any document presented is not genuine or has been altered, defaced, or rendered unreadable to such an extent that it cannot be relied on.
- Any document contains a photograph or photoimage of the applicant that bears little or no resemblance to the applicant.
- The applicant is not the individual represented in the application and supporting documents.
- The applicant does not satisfy the requirement for minimum age, genuine signature, legal status, or status as a Massachusetts resident.
- The applicant has presented an SSN that does not validate as being issued to him/her, or that was not obtained in a lawful manner from the U.S. Social Security Administration.

*A “good faith reason” is one that is based on objective facts and observations, such as statements from the applicant, or information obtained from usually reliable sources. Also, in this and other explanations of RMV laws and policies, the “Registrar” means either the Registrar or her designee.

Review of Rejected Documents and Applications

If one or more of the documents you present when applying for a driver's license, learner's permit, or ID card is rejected and your application is denied because you do not have other acceptable documents with you, you have several options, as described in the next section.

Initial Decision and Your Options

After reviewing your documents, an RMV Branch Representative will make the initial

decision. If the RMV Branch Representative rejects your application, he or she should give you a form indicating the reason(s) for the rejection. This is the Application Rejection Form. You have ten days from the time you receive this form from the RMV Branch Representative to file an appeal with the Board of Appeals. Do not leave the counter without receiving this form.

You may choose to correct the problem that caused your application to be rejected, such as obtaining the appropriate documents and returning later with a new application, or you may seek further review by an RMV supervisor. The RMV offers an informal review process in each full service Branch so that an application (or accompanying document) that is rejected by an RMV Branch Representative may be reviewed by the Manager (or the Manager's designee). You may also appeal to the Board of Appeals by paying the \$50 fee and filing the appropriate form.

You must appeal within ten days of the RMV Branch Representative's original decision.

Informal Review

You may present the form for review to the Branch Manager (or the Manager's designated assistant). Ordinarily, your requested review will be conducted immediately after the RMV Branch Representative's denial of your document/ application. If, however, the reviewer believes that a further verification attempt may help to establish the authenticity of a disputed document, the reviewer may make a copy of the document, return the original to you, try to obtain such verification, if possible, and make a decision within two business days. If the reviewer disagrees with the RMV Branch Representative's decision, you may be asked to return to the counter for further processing, unless the reviewer finds an additional basis for rejection. If the reviewer upholds the rejection, you will be given a copy of the decision that is signed by the reviewer, indicating the reason for the rejection and reminding you of your right to file a formal appeal within ten days of the RMV Branch Representative's original decision.

Appeals

Remember, you must file any appeal within ten days after you first received a written copy of the Application Rejection Form from the RMV Branch Representative. Any additional time required by the informal review does not extend the ten-day period. A formal appeal may be filed only with the Board of Appeals on Liability Policies and Bonds at the address below with a check or money order for \$50.

**Board of Appeal on Motor Vehicle Liability,
Policies and Bonds Division of Insurance**

1000 Washington Street, 8th floor,

Boston, MA 02118

617-521-7794

www.state.ma.us/doi

To obtain a form online to appeal a decision of the Registrar to the Division of Insurance's Board of Appeal, go to www.state.ma.us/doi and enter "appeal form" in the search box, click "search," then click on "Appeal of a Ruling/Decision of the Registrar."

Penalties for Presenting Fraudulent Documents

Severe penalties are imposed on a person who violates the law in obtaining or possessing a driver's license, learner's permit, or ID card. Following is a brief description of some of those penalties.

- Whoever loans or knowingly permits his or her license or learner's permit to operate motor vehicles to be used by any person, or whoever makes false statements in an application for such a license or learner's permit, or whoever knowingly makes any false statements in an application for registration of a motor vehicle, shall be punished by a fine of not less than \$20 nor more than \$200 dollars or by imprisonment for not less than two weeks nor more than two years or both (MGL c.90, §24).
- Whoever falsely makes, steals, alters, forges, or counterfeits or procures or helps another falsely make, steal, alter, forge, or counterfeit a learner's permit, a license to operate motor vehicles, or an ID card or whoever has or uses such a permit, license, or ID card may be punished by a fine of not more than \$500 or imprisonment in a state prison for up to five years or in a jail or house of correction for not more than two years (M.G.L. c.90, §24B).
- Anyone who falsely impersonates the person named in the application for a license or learner's permit, or anyone who procures or helps another to falsely impersonate the person named in the application, or who uses a name other than his or her own to falsely obtain such a license, or whoever possesses or uses a license or permit to operate a motor vehicle that was obtained in such a manner shall be subject to the penalties described in MGL c.90, §24B. Whoever is convicted of a violation of MGL c.90, §24B, shall also have his or her license, or right to operate, suspended for a minimum of one year.
- Any person who swears or affirms falsely in regard to any matter or thing respecting which an oath or affirmation is required by the Registrar or by MGL c. 90 shall be deemed guilty of perjury (MGL c.90, §28). In addition, falsification of any information provided to obtain, renew, transfer, or upgrade a driver's license or learner's permit may result in a suspension of driving privileges.

License/ID Fees

Learner's permit exam fee - \$30.00

The learner's permit exam fee covers the cost of processing your application and administering your learner's permit exam. If you fail the exam or your permit expires, you will be charged this fee again for another examination.

Road test fee - \$20.00

The RMV charges a flat fee for any license application. This fee covers the cost of processing your application and scheduling a road test. If you fail the road test, do not appear for the road test, are rejected by the examiner, or cancel your appointment with less than 24 hours notice, you will still be charged the \$20 fee. For more details on road testing, see the *Taking the Road Test* section later in this chapter.

License issue/renew fee - Class D - \$50.00

License issue/renew fee - Class M - \$50.00

The RMV charges a driver's license fee so it can issue a tamper-resistant, Class D or Class M license that features your photo-image, your signature, and a magnetic code stripe and/or bar code.

Duplicate or amended license - \$25.00

The RMV charges a fee for any change that results in the reissuance of a license.

Out-of-state conversion fees

Class A* - \$125.00

Class B* - \$125.00

Class C* - \$125.00

Class D* - \$100.00

**To add motorcycle privileges (Class M) to any of these license classes, you must pay an additional \$15.00.*

Class M only - \$100.00

Class D or M permit conversion - \$30.00

Massachusetts ID issue/renew fee - \$25.00

If you have surrendered your license voluntarily, there is no fee for a Massachusetts ID (See the *Surrendering Your License* section of this chapter for more information).

Liquor ID issue fee - \$25.00

Duplicate or amended Massachusetts ID or Liquor ID - \$25.00

All fees are subject to change at any time.

The Junior Operator License Law

Any motor vehicle operator or motorcyclist between the ages of 16 1/2 and 18 is considered a Junior Operator. The Junior Operator Law has several requirements and restrictions that significantly affect the operation of a motor vehicle by a person who has a Junior Operator's License (JOL). The basic purpose of the law is to provide new drivers supervised opportunities in which to develop good driving skills, while keeping those drivers free of the possible distractions caused by friends under age 18 who are present while the drivers are behind the wheel.

Requirements to Obtain a JOL

An applicant for a driver's license between ages 16 1/2 and 18 must comply with several requirements to obtain a JOL:

- Have a valid learner's permit for at least six consecutive months before taking the road test. (Any suspension will invalidate the permit and the six months will start to run anew when the suspension is lifted.)

- Maintain a clean driving record for at least six consecutive months before taking the road test.
- Successfully complete a Registrar-approved driver education and training program, which includes 30 hours of classroom instruction; 12 hours of in-car, behind-the-wheel training; and six hours of in-car experience observing other student drivers.
- Complete at least an additional 40 hours of supervised, behind-the-wheel driving as shown by a certified statement provided by a parent or guardian.

The RMV will accept 30 hours of driving supervised by a parent or guardian if the applicant completed a driver skills development program.

- A parent or guardian must participate in two hours of instruction on the driver's education curriculum (unless they have participated within the past five years).
- Pass a final exam to have a driver's education certificate electronically filed with the RMV.

JOL License Restrictions

The following restrictions apply to all Junior Operators:

- You may not operate a motor vehicle within the first six months after receiving your JOL while any person **under age 18** is in the vehicle (other than you or an immediate family member), unless you are accompanied by a person who is at least 21 years old, has at least one year of driving experience, holds a valid driver's license from Massachusetts or another state, and is occupying a seat beside you.

General Rule: The passenger restriction that applies to you as a JOL holder under age 18 is lifted once you complete the six-month period (or the portion that applies to you) or you reach age 18, whichever occurs first.

The six-month passenger restriction period will stop running, temporarily, during any suspension. When your JOL is reinstated, you will still have to complete the remainder of the six-month restriction period that existed at the beginning of the suspension period, unless you have already turned 18.

See Chapter Two for a list of the penalties and fees you will face for violating any of these restrictions.

- As the holder of a JOL, you may not operate a motor vehicle between 12:30 a.m. and 5:00 a.m. unless you are accompanied by one of your parents or your legal guardian. If you are found operating a motor vehicle in violation of this restriction, you may be charged with operating a motor vehicle without being licensed. This is a criminal violation.

Note: The law states that between 12:30 a.m. and 1:00 a.m. and between 4:00 a.m. and 5:00 a.m., the provisions of the law shall be enforced by law enforcement agencies only when a Junior Operator of a motor vehicle has been lawfully stopped for a violation of the motor vehicle laws or some other offense. This is called "secondary enforcement." However, it is still illegal for you to operate during those times without a parent present in the car.

- If you violate the passenger restriction or the night restriction, you will be subject to a license suspension of 60 days for a first offense, 180 days for a second offense, and one year for subsequent offenses. For a second or subsequent offense, you will also be required to complete a Driver Attitudinal Retraining course. The law requires the Registrar to impose this suspension in addition to any other penalty, fine, suspension, revocation, or requirement that may be imposed in connection with a violation committed at the time you were violating the passenger or night restriction.
- You may not operate a motor vehicle that requires a **commercial driver's license** (CDL).
- You will be suspended for one year if you are under 18 when you have committed certain driving offenses and alcohol or drugs were involved (180 days if age 18 to 21), **in addition to any penalty assessed by a court or other law.** (For details, see the *License Suspension or Revocation* section of Chapter Two.)
- You will be ineligible for a full license until you have completed the period of suspension imposed while operating with a JOL and you reach age 18.
- You will face additional suspension periods of one year for a first drag racing offense and three years for a subsequent offense. For a first speeding offense, you will be suspended for 90 days; for a subsequent offense, you will be suspended for one year.

Applying for a License

You must obtain a learner's permit before you can apply for any license (This manual specifically outlines the procedures for obtaining a Class D or a Class M license). To get a learner's permit, you must complete an application, present identification, pay a fee, pass a vision exam, and pass a learner's permit exam. Your learner's permit does not become a license until you pass the road test and have paid all license fees. If your learner's permit expires, you must re-take the learner's permit exam and pay the required fees.

Currently, you can opt to pay the learner's permit exam, road test, and license fees when you take the learner's permit exam. If you choose not to pay all the fees at that time, you can pay the remaining fees when you book your road test. If you are a new Massachusetts resident and have an out-of-state driver's license, you may be eligible to convert your license without testing. For information on license conversion and foreign license policies, see the section *Converting Your License*.

The RMV now offers a new transaction "pre-staging" feature online at www.mass.gov/rmv. This feature electronically asks you a series of interactive questions. When you finish, you can print out a completed license application to bring with you to the branch. You also receive a checklist of the other documents you must bring with you.

Getting a Learner's Permit

You must be at least 16 years old to apply for a Class D or Class M learner's permit. The learner's permit exam that you must take tests your understanding of Massachusetts motor vehicle laws and safe driving practices. A learner's permit gives you permission to drive while you practice your driving skills and prepare for your road test. A permit is valid for two years.

When applying for a learner's permit, you may wish to prepay your license and road test fees. If fees have been prepaid, your driver's license will be automatically sent to you, and you will not need to visit an RMV branch after passing the road test.

To earn your learner's permit, take the following steps:

1. Study all of the information contained in this manual.
2. Complete a learner's permit application and submit it to any full-service RMV Branch. Applications are available at all Branch and License Express sites, and on our website, **www.mass.gov/rmv**. If you are under 18, you must have your parent or guardian sign your application.
3. Meet all of the RMV's identification requirements (see the *Identification Requirements* section).

Note: You must meet these requirements **every** time you take the learner's permit exam.

4. Pay a \$30 learner's permit exam fee, which covers the cost of your exam.
5. Have your photo-image and signature captured electronically.
6. Pass a vision test at the RMV Branch or submit an RMV vision screening certificate from your medical practitioner.
7. Pass a learner's permit exam based on information in this manual.

Learner's permit exams are offered only on a walk-in basis when you submit your application for a learner's permit. You cannot schedule your learner's permit exam in advance.

A learner's permit is a document that grants conditional driving privileges. This document is not intended to be used as an identification document for travel. This means that it will not be accepted by most airlines, cruise ships, etc., for travel as a state-issued photo ID.

Learner's Permit Exam Procedures

Each learner's permit exam has 25 multiple-choice questions. To pass the exam, you must answer 18 questions correctly within the allotted time of 25 minutes.

Full-service RMV Branches have automated testing stations (ATS), which are easy-to-use videoscreen kiosks that use a computer program to deliver learner's permit exam questions visually. The learner's permit exam is available in both English and Spanish (for a Class D or M permit) through the ATS. You have about one minute to answer each question. The ATS lets you practice with sample questions before beginning the actual exam.

You must study the contents of this manual to be able to pass the learner's permit exam.

Driver's Manuals and other reference materials are not to be used during the learner's permit exam and are not allowed in the testing area. Usage of a Driver's Manual or other reference material during the learner's permit exam is considered cheating.

If you are caught cheating on an exam – or trying to cheat – you will fail and you will not be allowed to hold any type of driver's license or permit for 60 days. In some cases, you may also be subject to further investigation.

Foreign Language Tests

If English is not your primary language, you may ask to take the learner's permit exam in a foreign language. The RMV currently offers Class D learner's permit exams in a variety of languages. Class M learner's permit exams are available in English and Spanish. Class A, B, and C learner's permit exams are only available in English.

Class D learner's permit exams are available in the following languages:

Albanian • Arabic • Armenian • Chinese • Czech • Farsi (Iranian) • Finnish • French • German • Greek • Hebrew • Hindi • Hungarian • Italian • Japanese • Khmer • Korean • Lao • Polish • Portuguese • Romanian • Russian • Spanish • Turkish • Urdu • Vietnamese

Exams taken through the ATS are only available in English and Spanish.

Alternative Exam Options

If you have a cognitive or physical disability that would prevent you from taking a standard learner's permit exam through ATS, you may request an alternative extended time, paper, or oral exam. To request an extended time or paper exam, you must speak to the Branch Manager when you visit the branch. To request an oral exam, please call (617) 351-4505 and leave a message that includes your name, your telephone number, the specifics of your request, and the Registry Branch Office where you would like to take your oral exam. You will then be contacted by a Registry employee who will help you schedule an exam.

Oral exams are only available in English.

For oral exams, you must provide the Branch Manager with written documentation that confirms the nature of your disability. This documentation may be a Doctor's or Social Worker's letter, an Individualized Education Plan (IEP), or a letter from a school on official letterhead. You will also need to provide all of the required identification documents (see *Identification Requirements* section).

An oral exam will only be provided if it has been scheduled in advance by calling the number above. Extended time and paper exams do not need to be scheduled in advance.

Driving With Your Permit

You must carry your learner's permit whenever you drive until you earn a Junior Operator's License or a full driver's license.

A Class D learner's permit allows you to drive a passenger vehicle with the following limitations:

- You must be accompanied by a licensed operator who occupies the passenger seat next to you and is at least 21 years old, holds a valid driver's license from Massachusetts or another state, and has at least one year of driving experience.
- If you are under 18, you may not drive between 12:00 a.m. and 5:00 a.m. unless

accompanied by a parent or legal guardian who is a validly licensed operator with at least one year of driving experience.

A Class M learner's permit allows you to operate a motorcycle with these limitations:

- You may not carry a passenger.
- You can drive only during daylight hours (between sunrise and sunset).
- You must wear a US DOT standard helmet.
- You must wear eyeglasses, goggles, or a protective face shield unless the motorcycle you are driving has a windshield or screen.

With a Class D or Class M learner's permit, you may operate motor vehicles in another state as long as doing so does not violate that state's laws.

See Chapter Two for a list of the penalties and fees you will face for violating any of these restrictions.

Driver's Education

The RMV requires drivers under age 18 to take professional driving lessons at a local high school or driving school. Professional driving instruction can help you become a more skillful, knowledgeable driver, and it can increase your chances of passing the Class D or Class M road test on your first try. Another benefit of learning to drive through a licensed school is the ability to use a school vehicle for your road test and a school instructor as your test sponsor.

All professional driving schools in Massachusetts, including public and private high schools, must be licensed and monitored by the RMV. Visit the RMV website to locate a driving school and see if there have been any enforcement actions taken against the school.

You can also obtain information on driving instruction by contacting your local high school or by consulting your telephone directory.

If you doubt a driving school's credentials, ask to see a license certificate, which the RMV issues.

To apply for a Class D or M driver's license when you are between 16 1/2 and 18 years old, you *must* complete a driver's education program, pass a final exam, and have a driver's education certificate electronically on file with the RMV from a licensed driving school or a high school program that is approved by the Registrar. The fact that you have fulfilled this requirement will be available on your RMV computer record at the time of your road test.

You must also complete 40 hours of supervised driving (30 hours if you completed a driver skills development program), and your parent or guardian must participate in two hours of the driver's education curriculum (unless he/she has already attended within the past five years).

**Driver Education Certificate Department, Registry of Motor Vehicles
P.O. Box 55889, Boston, MA 02205-5889**

If you recently moved to Massachusetts and had already completed a driver's education program in another state, you should mail your original out-of-state driver's education certificate, a \$15 check payable to MassDOT, and a self-addressed, stamped envelope to

the address on the previous page. Verification will be made with the state that originally issued your driver's education certificate. If the other state's requirements meet or exceed Massachusetts' requirements, a new driver's education certificate will be electronically filed with the RMV. Once this is done, you may book your road test.

To convert an out-of-state driver's education certificate, the program you completed must meet or exceed Massachusetts minimum requirements for classroom and in-car instruction. If you have any questions, call the RMV Phone Center.

Taking the Road Test

The next step toward earning your Massachusetts driver's license is taking a road test with an RMV examiner. Whether you are applying for your first license or completing a license conversion that requires a road test, you must have a learner's permit to schedule a test. Road test procedures are described in the following pages.

If you are obtaining a motorcycle license, or adding a motorcycle class to your Massachusetts driver's license, you do not have to take a road test if you have successfully completed the Massachusetts Rider Education Program (MREP), approved by the RMV.

For a Class D license, you are not allowed to attempt more than six road tests in a 12-month period. For a Class M license, if you fail two road tests, you must enroll in and successfully complete a beginner rider course before you can schedule another test.

Scheduling a Road Test

To schedule a road test online, visit **www.mass.gov/rmv**, or you can call the RMV Automated Service Line at 866-MASSRMV (866-627-7768).

You may cancel or reschedule your road test at no additional fee if you call the RMV Phone Center and give more than 24 hours notice.

Road tests are scheduled close together; you must be on time for your test. If you are late for your appointment, you will not be tested and you will be required to pay the road test fee.

Massachusetts Rider Education Program

The Massachusetts Rider Education Program (MREP) is designed to reduce the number of motorcycle related fatalities and injuries by increasing the availability of Motorcycle Safety Foundation (MSF) approved training courses for motorcycle riders and to increase awareness and education for both riders and other drivers.

For information on motorcycle rider courses for both beginner and experienced drivers, call 617-351-9585 or visit **www.mass.gov/rmv**.

For specific questions, call 413-781-0633 to speak to the program coordinator.

The RMV has a Motorcycle Manual. This manual focuses exclusively on motorcycles and is available in all RMV branches and online at www.mass.gov/rmv. Study this manual if you want to get a Class M learner's permit or add a motorcycle class to your Class D license.

Policies on Cancellations and Fees

Whenever a public school system cancels classes for weather-related reasons, road tests scheduled in the school system's community will be canceled automatically for the entire day. Road tests will also be canceled automatically when the Governor declares a state of emergency. If the Governor declares an emergency in a particular region, only road tests in that region will be canceled.

Road Test Examiners may also cancel road tests when weather conditions are considered unsafe. To determine if your road test has been canceled, please call the RMV's Phone Center. In any of the preceding cases, you may schedule a new road test at no additional fee. However, you *will* be charged the road test fee if you...

- Fail the test
- Are unprepared for the test
- Are refused the test because your vehicle fails to pass the examiner's inspection
- Do not bring a qualified sponsor
- Fail to appear for or are late for your test
- Cancel or reschedule your test less than 24 hours before your scheduled test time

Being Prepared for the Road Test

On the day you take your Class D road test, you must fulfill several requirements:

1. Have a completed road test application, and have your parent or guardian complete the parental consent section if you are under age 18.

In completing the application for the road test, you will be required to disclose whether you have a physical, mental, or medical condition or are taking any medications that might affect your ability to operate a motor vehicle. If you do, prior to taking a road test, you must submit medical clearance, from your physician, to a Branch manager. The Road Test Examiner will review your application and either approve it or forward it to the Medical Affairs Branch for appropriate review.

2. Have your learner's permit.
3. Bring a qualified sponsor (see the *Sponsor Requirements* section).
Note: A sponsor is not required for a Class M road test.
4. Provide an acceptable, properly equipped, legally registered vehicle to use in your test (see the *Passenger Vehicle Requirements* section).

If you are between 16 1/2 and 18 years old, you *must* complete a driver's education program, pass a final exam, and have a driver's education certificate electronically on file with the RMV from a licensed driving school or a high school program that is approved by the Registrar before you can schedule a road test.

As part of the road test application, your parent or guardian must certify and sign, on the front of your license application, that you have completed 40 hours of supervised driving (30 hours if you completed a driver skills development program). Also, your parent or guardian must participate in two hours of the driver's education curriculum (unless he/she has already attended within the past five years).

If you are under age 18, you must maintain a clean driving record for the six consecutive months immediately preceding the date you apply for the test. You will not be able to take the test if you...

- **Have experienced any surchargeable incidents (e.g., at-fault accidents, moving violations) under Massachusetts law or the law of another state**
- **Have had your permit suspended for committing drug or alcohol related motor vehicle violations**
- **Have been convicted for violating any drug or alcohol related laws in Massachusetts or another state**

Note: Even if you had a clean driving record for six consecutive months immediately preceding the date you first booked the road test, if the RMV receives notice of an event that would cause the six-month clean driving period to be interrupted between the date the test was booked and the date of the test itself, you will not be allowed to take the road test when scheduled. A new clean driving record of at least six months will have to be established, unless you reach 18 years of age prior to that time.

For a Class M road test, you *must* bring your learner's permit, a completed license application form, and a properly equipped, legally registered motorcycle, but you are not required to bring a sponsor.

Sponsor Requirements

For a Class D license, including a JOL, you need a sponsor for your road test, even if you have a valid foreign driver's license. When you arrive at the test location, you must be accompanied by a licensed operator who...

- Is at least 21 years old
- Has had at least one year of driving experience
- Has a valid driver's license issued by his or her home state. Holders of foreign driver's licenses are *not* eligible to be sponsors.

If you are not accompanied by a sponsor, you will not be given a Class D road test.

Passenger Vehicle Requirements

To be acceptable to the examiner, the vehicle you bring to the road test must meet all requirements in this section.

In general, the vehicle you use for your Class D road test should be safe, in good working order, and have a valid registration certificate and inspection sticker. Your test will be canceled if the examiner believes your vehicle is unsafe. In addition to being safe, your vehicle must have these features:

- Adequate seating so that the examiner may sit next to you and your sponsor may sit in the rear seat behind the driver. You may not use a vehicle that does not have a seat for your sponsor. Sponsors may not sit in the bed of a two passenger pickup truck.
- An accessible emergency hand brake so the examiner can make an emergency stop. It is up to the individual examiner to determine if the emergency hand brake would be accessible to him or her in an emergency. To help ensure that brake access will not be a problem, you should bring a vehicle to the test that has a centrally located emergency hand brake. If you have any questions about whether a vehicle is acceptable, you should take it to the scheduled road test location on the business day prior to the scheduled test.

If you are prevented from taking the road test only because the examiner determined that he/she could not access the braking system, you will not be charged a fee for that scheduled test.

Driving instruction vehicles must have a second foot brake for instructors or examiners and must display proper signage.

In some larger vehicles, like certain minivans, the service brake is too far from the examiner to be easily accessible in an emergency. These vehicles are *not* suitable for road tests and may be rejected by the examiner.

- If your test vehicle is registered out of state, you must show the examiner proof of insurance coverage equal to Massachusetts minimum limits, which are \$20,000/\$40,000 for bodily injury and \$5,000 for property damage.
A policy or a certificate that lists coverage limits serves as proof of a vehicle's insurance.
- If you are renting the vehicle you are using for your road test, you must show your examiner your rental agreement and a letter from the rental company, on its letterhead, that authorizes you to use the vehicle for a driver's license road test. You are not required to provide this information for leased vehicles.

Some vehicles may be equipped with backing sensors or parking guidance systems. These devices must be disabled on any vehicle while it is being used for a road test. If you cannot disable the backing sensor or the parking guidance system, the vehicle cannot be used for the road test. If a vehicle is rejected for this reason, you will not be charged a fee for that scheduled exam.

Road Test Policy for Vehicles with Dealer, Farm, and Repair Plates

You cannot take a road test in a passenger vehicle that is registered with a "Dealer" plate unless you can prove, to the satisfaction of the Examiner, that you are the dealer, or spouse of the dealer, or a salesperson who works at the dealership for at least 20 hours per week. A vehicle with a Farm Plate can be used, if acceptable to the Examiner, but only if the applicant can prove, to the satisfaction of the Examiner, that the applicant is a member of the family or an employee of the farmer. If displaying a farm plate, the vehicle cannot be a passenger vehicle, but may be a pickup truck with an acceptable rear seat for a sponsor. You will not be allowed to take a road test in a vehicle with a Repair Plate.

Passenger Vehicle Test Procedures

You should arrive approximately five minutes early for your scheduled road test appointment. You will not be able to take your test if you are late.

Before your road test, the RMV examiner will inspect your vehicle to ensure that it is properly registered, that all equipment is in good working order, and that the vehicle provides a safe, adequate, and clean seat for the examiner and easy access to the brake.

After the examiner inspects and approves the vehicle, the driving test will begin. Only you, the examiner, and your sponsor are allowed in the vehicle during the exam. The examiner will sit in the seat next to you; your sponsor must sit in the rear. No children or pets are allowed. If the examiner so authorizes, a language interpreter may also be allowed in the vehicle. You and your sponsor are not allowed to converse unless authorized by the examiner.

The examiner's goal is to observe your driving performance. During a road test, you should be prepared to demonstrate your ability to...

- Use hand signals
- Start the engine
- Start and stop the vehicle
- Parallel Park
- Back the vehicle approximately 50 feet
- Make left - right turns
- Start, stop, and turn the vehicle on a hill
- Turn around between curbs (three point turn)
- Enter and leave intersections
- Recognize and obey traffic signs, lights and signals, and other rules of the road
- Use good driving sense

In addition to judging your overall driving skills, the examiner will note how well you follow general good-driving procedures, including whether you...

- Use good driving posture, with both hands always placed properly on the wheel
- Drive in the proper lane and look carefully and signal properly before changing lanes
- Maintain enough distance between your vehicle and the one ahead of you
- Always drive at safe speeds to comply with speed limits and varying traffic conditions
- Properly yield the right-of-way
- Are generally aware of your actions and particularly those of other drivers

Motorcycle Requirements

In general, the motorcycle you use for your Class M road test should be safe and in good working order. Your test will be canceled if the examiner believes your motorcycle is unsafe.

In addition, you must show the examiner...

- Your motorcycle's registration document
- A valid inspection sticker

If your motorcycle is registered out of state, you will have to show the examiner proof of insurance coverage equal to Massachusetts' minimum limits, which are \$20,000/\$40,000 for bodily injury and \$5,000 for property damage.

A policy or a certificate that lists limits of coverage serves as proof of the vehicle's insurance.

As a motorcycle operator, you must also...

- Wear a helmet that meets or exceeds US DOT standards.

State law requires your helmet to comply with the US DOT's Federal Motor Vehicle Safety Standard No. 218.

Helmetts that meet this standard will be labeled with stickers on the inside and outside.

- Wear eyeglasses, goggles, or a protective face shield, unless your motorcycle has a windshield or a screen.

For information on motorcycle rider courses for both beginner and experienced drivers, call 617-351-9585 or visit www.mass.gov/rmv.

For specific questions, call 413-781-0633 to speak to the program coordinator.

Motorcycle Test Procedures

You should arrive approximately five minutes early for your scheduled motorcycle road test appointment. You will not be able to take your test if you are late.

Before your road test, the RMV examiner will inspect your motorcycle to ensure that it is registered, inspected, and insured properly and that all equipment is in good working order.

Road Test Waiver Available: The RMV road test for a Class M motorcycle license may be waived if you can prove that you have successfully completed a course of motorcycle instruction known as the Massachusetts Rider Education Program (MREP) as approved by the RMV.

As a pre-road test, the examiner will assess your knowledge of motorcycle equipment and controls. For the road test, the examiner will observe your ability to operate a motorcycle. Your road test will consist of the following riding skills:

- "Figure eights" and 360° circles in both directions without your feet touching the road
- Normal starts and stops
- Driving in traffic
- Crossing intersections
- Making turns
- Riding up and down hills

If you take a Class M road test on a three-wheeled motorcycle or on a motorcycle with a sidecar, you will be limited to operating such a vehicle.

The RMV has a Motorcycle Manual. This manual focuses exclusively on motorcycles and is available in all RMV branches and online at www.mass.gov/rmv.

Check it out for important information you need to get a motorcycle license and to be a safer rider.

Hearing-Impaired Road Tests

If you are hearing-impaired, you can schedule a road test by calling 1-877-RMV-TTDD (1-877-768-8833). Describe your request and include your phone number, residential address, and e-mail address. The Driver Licensing Department will contact the Commission for the Deaf and Hard of Hearing to arrange for an interpreter. Once this has been set up, you will be contacted to book the road test.

Before the start of the road test, the examiner will have a discussion with you and the interpreter to determine the best way to communicate. The examiner will explain the elements of the test and will go over the hand signals that will be used during the test. You and the interpreter will also be provided with a written description of the road test and the required elements to review before starting the test.

If you have any questions during the road test, you will be allowed to pull over to the side of the road (when safe to do so) and communicate with the examiner.

Common Reasons for Failing a Road Test

- You were at fault in an accident with another motor vehicle, pedestrian, or object.
- You were driving in a way that may have caused an accident or in a way the examiner considered dangerous.
- You violated a motor vehicle law, rule, or regulation.
- You demonstrated a lack of experience safely operating a motor vehicle.
- You refused to follow or drove contrary to the examiner's instructions.

Receiving Your New License

If you pass the road test and **have prepaid** for your license, the examiner will stamp the back of your learner's permit and it will become a temporary license, valid up to 30 days. The RMV will manufacture your new, permanent photo-image license and mail it to you.

If you pass the road test and **have not prepaid** for your license, you must take the permit with the road test results indicated on the back to an RMV branch within 30 days. You must then pay for and obtain a temporary license while your permanent license is being manufactured. (Note: If you do not obtain a temporary license within 30 days of passing your road test, you may be **required to retake** the road test at your expense.)

If your permanent license does not arrive in the mail within four weeks of issuance of your temporary license, please call the RMV Phone Center at 617-351-4500.

Whenever you operate a motor vehicle in Massachusetts, the law requires you to carry a valid driver's license on your person or within easy reach inside your vehicle.

Massachusetts driver's licenses are produced at a secure location and are generally mailed to you within five to seven days after you visit the branch.

At the branch, you will receive a receipt that serves as a temporary license and provides proof of driving privileges while the permanent license is being manufactured. The receipt is not valid for identification. This means that it will not be accepted by most airlines, cruise ships, etc., for travel as a state-issued photo ID.

Converting Your Class D or M License

To retain driving privileges, out-of-state or foreign-licensed drivers must obtain a Massachusetts driver's license upon becoming a Massachusetts resident. If you currently carry a valid license from another state, a U.S. territory, Canada, or Mexico, you may be eligible to submit your license for conversion, but you will need to meet the RMV's identification requirements. (See the *Identification Requirements* section.) If your license does not contain a photo, you will be required to provide additional documentation.

All applicants who convert a license from a U.S. state, U.S. territory, Canada, or Mexico must surrender that license in order to receive a Massachusetts license.

Requirements for New Residents				
Place of Issue	License Status	Learner's Permit Exam	Road Test	Driving Record
Out-of-State	Valid or expired less than one year			
	Expired more than one year but less than four years	✓		
	Expired more than four years	✓	✓	
14 U.S. Territories, Canada, or Mexico	Valid or expired less than one year			✓
	Expired more than one year but less than four years	✓		✓
	Expired more than four years	✓	✓	✓
Other Foreign Countries	Valid license (with English translation if needed)	✓	✓	

Note: If you present any document that is inconsistent with the concept of your being a resident of Massachusetts (such as B1 or B2 or other short term visa status, or an expired visa status or documents showing an out-of-state residence), you will not be considered a resident and an application for a Permit, License, or Mass ID will be denied. You may be eligible for a liquor ID.

The table on the previous page summarizes the requirements for license conversion. License conversions require that you pay all application, testing, and license fees, regardless of whether you must take an exam. In most cases, if you hold a license from a foreign country, you will need to pass both the learner's permit exam and the road test.

Out-of-State Conversions

If you have an out-of-state Class D or M license that is current or has been expired for less than a year, you may transfer it to a Massachusetts license if you meet the RMV's identification and eligibility requirements. Your out-of-state license must indicate that you hold **full driving privileges** in that state.

Your right to operate will be verified through the Commercial Driver License Information System (CDLIS) and the National Driver Register (NDR) to determine if it is suspended, revoked, cancelled, withdrawn, or disqualified in any state or the District of Columbia.

An out-of-state license that indicates **a limit on the customer's right to operate, due to drug, alcohol, or habitual traffic offender violations or similar activity** may NOT be transferred to a Massachusetts driver's license and you may not be eligible for a Massachusetts license. If a restriction is present on your license, you may need to provide a driving record so that the RMV can establish your eligibility for a Massachusetts license. You may also need to provide additional documentation of your eligibility for a Massachusetts license to address any medical restrictions that may be present on your out-of-state license.

If you have a restriction for Corrective Lenses, the results of the RMV vision test or submission of a Vision Screening Certificate will determine whether or not you receive the same restriction on your Massachusetts license.

If it is determined that you do not qualify for a Massachusetts license, you have a right to appeal a decision of the Registry to the Board of Appeal on Motor Vehicle Liability Policies & Bonds (see *Appeals* section on page 18).

Note: Health insurance is required in Massachusetts. The law requires residents 18 and older to have coverage. Adults must enroll in a plan or qualify for an exemption to avoid a penalty.

The penalties for the 2009 tax year will add up for each month that an individual does not have coverage, and could be as much as \$1,068 for the year.

Information about how to obtain health insurance can be found on the Commonwealth Health Connector website at www.mahealthconnector.org or by calling 1-877-MA-ENROLL (623-6765) TTY 1-800-213-8163.

Junior Operator License Conversion

License Conversion for a Junior Operator requires that you provide a certified copy of your driving record from the state you are leaving, in addition to meeting the RMV's identification requirements. (See the *Identification Requirements* section.) You must also have a Massachusetts driver's education certificate electronically on file with the RMV (see *Driver's Education* section) and you must log an additional 40 hours of supervised driving (30 hours if you completed a driver skills development program) as shown by a certified statement provided by a parent or guardian.

You will be subject to all of the provisions of the Massachusetts JOL law (See the *Junior Operator License Law* section). The only exception is the period of time you will be subject to the passenger restriction, which depends on your driving record. If your record indicates you have had a valid license for a full six months, without suspension or revocation, you will not be subject to the passenger restriction.

To convert an out-of-state driver's education certificate, the program you completed must meet or exceed Massachusetts minimum requirements for classroom and in-car instruction. If you have any questions, call the RMV Phone Center.

Permit Conversion

Class D and M Learner's Permits may be converted to an equivalent Massachusetts permit, if you meet the RMV's identification requirements. (See the *Identification Requirements* section.)

If you are under 18 years old, your parent must sign the permit application, but you do not have to provide proof of Massachusetts residency. You will not be required to take the learner's permit exam; however, you will need to pay the applicable fee. A converted permit will be dated to reflect the issue date of the original permit in order to meet the six month experience requirement for applicants under 18. The Massachusetts permit will expire two years from the adjusted issue date.

Conversions from a U.S. Territory, Canada, or Mexico

When converting a permit or license from one of the 14 U.S. Territories, Canada, or Mexico, you must meet the RMV's identification requirements. (See the *Out-of-State Conversion* section of the *Identification Requirements* chart.) You must submit an original certified driving record from your home territory or country. Driving records must be no more than 30 days old.

The 14 U.S. Territories consist of the following:

American Samoa • Baker Island • Guam • Howland Island • Jarvis Island • Johnston Atoll • Kingman Reef • Midway Islands • Navassa Island • Northern Mariana Islands • Palmyra Atoll • Puerto Rico • U.S. Virgin Islands • Wake Islands

Source - The Worldfact Book (U.S. CIA-2004)

An original certified driving record is required from the 14 U.S. Territories, Canada, and Mexico because the driving records of those jurisdictions are not available for electronic review by the RMV through the Problem Driver Pointer System. If you have a disability that might prevent you from operating a motor vehicle properly, you may not be eligible for a license.

Starting July 1, 2010, Puerto Rican birth certificates issued before June 30, 2010 will not be accepted. However, birth certificates issued between June 15 and June 30, 2010 will be valid for an additional 15 days. If you wish to use a Puerto Rican birth certificate after July 1, 2010, you will need to obtain a new one from the Puerto Rico Health Department, Vital Statistics Records Office.

Other Foreign Licenses

If you hold a driver's license from any country **other than** the United States, a U.S. Territory, Canada, or Mexico, you must take both the learner's permit exam and road test. While you may drive in the United States with your valid foreign license from one of the countries listed in *Appendix A* of this manual for up to one year from the date you entered the country as a visitor, you must still apply for a Massachusetts license when you establish residency in the Commonwealth.

Many motor vehicle agencies around the country, including Massachusetts, are reviewing their rules for converting licenses from other countries, so there may be changes in this area. If you have a question about converting a foreign license, you should call the RMV Phone Center at 617-351-4500.

The United Nations Road Traffic Convention of 1949 and the Inter-American Automotive Traffic Convention of 1943 extend the one-year driving privilege to all member countries (see *Appendix A* for a complete list of participating nations).

Renewing Your License

It is your responsibility to renew your driver's license before the expiration date and you must inform the RMV and the U.S. Post Office of any address change. **As a license holder, you are solely responsible for its safekeeping, renewal, and replacement.**

The RMV no longer mails license renewal notices. Please check the expiration date printed on your license and remember to renew before this date.

There is a new RMV Reminder Service available on www.mass.gov/rmv. This free service allows customers to subscribe to phone, email, or text renewal reminders.

The RMV also offers an Internet feature that allows you to verify your license status and your renewal options online.

Your Massachusetts driver's license is valid for five years unless it is your first license, which expires on your fourth birthday after the date of issue. You may renew your license up to one year before the expiration date. **If your license expired more than four years ago, you may be required to take a learner's permit exam and road test.**

To renew your driver's license, visit any RMV Branch or Limited Service Branch (see *Appendix C* for locations and business hours). Each time you renew, you will have to pass a vision screening test, supply your SSN or updated Social Security Denial Notice (not more than 60 days old), and pay the renewal fee.

Massachusetts driver's licenses are produced at a secure location and are generally mailed to you within five to seven days after you visit the branch.

If you renew your license in a branch, you will receive a receipt that serves as a temporary license and provides proof of driving privileges while the permanent license is being manufactured. The receipt is not valid for identification. This means that it will not be accepted by most airlines, cruise ships, etc., for travel as a state-issued photo ID.

Please note that at Limited Service Branches (as opposed to full-service Branch locations), you can pay your renewal fee by check or credit card only.

Eligible customers may also renew their licenses online every other renewal period (once every ten years). To be eligible, your license photo must be less than nine years old and have been taken after your 21st birthday.

You are **not eligible** to renew online if:

- You hold a Commercial Driver's License (CDL)
- You need to change your name
- You do not have an SSN
- You have initiated a Change of Address transaction online and have not yet received a confirmation e-mail
- You want to register to vote

Visit **www.mass.gov/rmv** for more information.

Turning 21? If you choose to renew your Driver's License before your 21st birthday, you will receive a vertical license with the words "Under 21" printed on it. However, if you renew your license on or after your 21st birthday, you will receive a standard horizontal license that does not have the words "Under 21" printed on it.

RMV Phone Center: 617-351-4500

The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833).

Monday–Friday 9 a.m.–5 p.m.

Internet Address: www.mass.gov/rmv

SSN Verification on Renewal

Approximately six months prior to your license expiration date, the RMV will attempt to confirm your Social Security Number with the Social Security Administration (SSA). The RMV will run a computer check through the SSA to ensure that the SSN you provided to the RMV is the number that has been issued to you. If we are told it is not, you will receive a letter from the RMV informing you that license renewal is not possible until you resolve the SSN problem with the SSA.

Driving Record Check on Renewal

Approximately two months prior to your license expiration date, the RMV will run a check of your license status in other jurisdictions. The RMV will run a computer check of your name, birth date, and SSN with the Problem Driver Pointer System (PDPS). If you are identified as a suspended or revoked driver in that system, you will not be allowed to renew your license until the matter is resolved. You will be notified by letter of your non-renewal status.

Other Reasons for Non-Renewal

In addition to the reasons previously stated, if you have outstanding parking tickets, unpaid excise taxes, outstanding warrants, outstanding Fast Lane violations, Tobin Bridge violations, or abandoned vehicles, you will not be able to renew your license. The RMV will notify you by letter if you are not eligible for license renewal due to any of these problems. For detailed information on reasons for non-renewal, see *Chapter Two, Keeping Your License*.

Renewals for Military Personnel

Military personnel are not required to renew their Massachusetts driver's licenses during active service. However, you may wish to renew your license during your military service. In such cases, the RMV will issue a photo license or a special nonphoto driver's license, depending upon the circumstances, if you are stationed outside Massachusetts.

You are not required to renew your Massachusetts license while you are in active military service.

You can only request a nonphoto driver's license by mail. To order a nonphoto license renewal, for military personnel and their dependents, mail your request, the renewal fee (see the *License Fees* section), and a copy of your military ID to the address below. A nonphoto driver's license will be mailed to you, as long as you are located outside Massachusetts. In any correspondence, include your out-of-state address and phone number.

**The Driver Licensing Department, Registry of Motor Vehicles,
P.O. Box 55889, Boston, MA 02205-5889**

Replacing Your License

Duplicate License

To apply for a duplicate of your photo-image license, simply log on to **www.mass.gov/rmv** or call the RMV's Phone Center, request a duplicate, and pay the \$25 duplicate fee by VISA, MasterCard, Discover, or American Express. You can also visit an RMV Branch.

All fees are subject to change at any time.

Temporary Replacements

If you are temporarily out of Massachusetts and cannot return home before your driver's license expires, you may ask the RMV to issue you a temporary "pink" license. A temporary license is valid for a maximum of 120 days after the expiration date of your original license, and this extension can be granted only once. To request a temporary replacement license, call the RMV Phone Center at 617-351-4500 or write to the RMV's main office at the address listed below. In any correspondence, be sure to include your name, license number, out-of-state address, and telephone number.

Customer Assistance Bureau, Registry of Motor Vehicles, P.O. Box 55889, Boston, MA 02203-5889

Replacements for Military Personnel

Active members of the Armed Forces and their dependents who wish to obtain duplicates of their licenses can simply send letters of request stating whether their licenses were lost or stolen to the address listed below and include copies of their military IDs.

For military personnel and their dependents, duplicate licenses are free.

**The Driver Licensing Department, Registry of Motor Vehicles,
P.O. Box 55889, Boston, MA 02205-5889**

Surrendering Your License

If you become unqualified to operate a motor vehicle safely due to a physical or mental condition or simply wish to cease driving for other reasons, you may voluntarily surrender your license at any full service RMV branch during normal business hours or by mailing the license to the Medical Affairs Branch of the RMV.

Medical Affairs Branch, Registry of Motor Vehicles, P.O. Box 55889, Boston, MA 02205-5889

If you choose to give up your license, it will not negatively affect your insurance and there is no fee. When you give up your license, the RMV will give you a free Massachusetts Identification Card. If you want your license back, you may need to give the RMV medical documents. You may also need to take a competency road exam. You will not need to pay to get your license back unless it expired. If it did expire, you will need to pay the normal renewal fee.

Renewing Your Massachusetts Identification Card

It is your responsibility to renew your ID Card before the expiration date and you must inform the RMV and the U.S. Post Office of any address change. **As an ID Card holder, you are solely responsible for its safekeeping, renewal, and replacement.**

The RMV no longer mails ID card renewal notices. Please check the expiration date printed on your ID card and remember to renew before this date.

There is a new RMV Reminder Service available on www.mass.gov/rmv. This free service allows customers to subscribe to phone, email, or text renewal reminders.

The RMV also offers an Internet feature that allows you to verify your ID card status and your renewal options online.

Your ID Card is valid for five years unless it is your first ID Card, which expires on your fourth birthday after the date of issue. You may renew your ID Card up to one year before the expiration date or up to four years after the expiration date.

To renew your ID Card, visit any RMV Branch or Limited Service Branch (see *Appendix C* for locations and business hours). Each time you renew, you will have to supply your SSN or updated Social Security Denial Notice (not more than 60 days old), and pay the renewal fee.

Please note that at Limited Service Branches (as opposed to full-service Branch locations), you can pay your renewal fee by check or credit card only.

RMV Phone Center: 617-351-4500

The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833).

Monday–Friday 9 a.m.–5 p.m.

Internet Address: www.mass.gov/rmv

Eligible customers may also renew their ID Cards online every other renewal period (once every ten years). To be eligible, your ID Card photo must be less than nine years old and have been taken after your 21st birthday.

You are **not eligible** to renew online if:

- You need to change your name
- You do not have an SSN
- You have initiated a Change of Address transaction online and have not yet received a confirmation e-mail
- You want to register to vote

Turning 21? If you choose to renew your ID Card before your 21st birthday, you will receive a vertical ID Card with the words “Under 21” printed on it. However, if you renew your ID Card on or after your 21st birthday, you will receive a standard horizontal ID Card that does not have the words “Under 21” printed on it.

Change of Address or Name

If you hold a Massachusetts learner’s permit or driver’s license or ID, the law requires you to notify the RMV in writing of any address change within 30 days of the change. Go to **www.mass.gov/rmv** or call the RMV’s Phone Center at 617-351-4500 and give your new address. You should also notify the U.S. Post Office of any address change within 30 days of making the change. When you give the RMV your new address, you can either add your own label to the back of your driver’s license to reflect the change, or you can pay \$25 to obtain a new license with your new address. If your license or ID was issued on or after April 22, 2010, you can write your new address using permanent ink on the back of the license or ID in the area provided.

You must notify the Social Security Administration any time you change your name.

If you change your name, you must report the change promptly to the RMV so that all your license and vehicle records can be updated. Also, you must obtain a new driver’s license bearing your new name and signature. This transaction costs \$25 and must be done in person at a branch office.

Change of Gender Designation

If your gender identity no longer matches the gender designation printed on your Massachusetts Driver’s License or ID Card, you may be able to amend your license or ID. To do so, both you and a medical or social service provider who is treating and counseling you must complete and sign a *Massachusetts Gender Designation Change Form*. You must also complete and sign a new license application. The fee for the new license or ID Card is \$25 and a new photo-image is required. You must turn in your license or ID containing the other gender designation.

You **do not** need to provide proof of sex reassignment surgery, an amended birth certificate, or proof of a court-approved name change.

You must notify the Social Security Administration any time you change your name.

Voter Registration

If you are legally eligible to vote, you can register when you conduct a permit, license, or ID transaction at an RMV Branch or Limited Service Branch. All licensing transaction forms contain a section in which you can indicate if you wish to register to vote or update your current voter registration.

You must be a U.S. citizen and at least 18 years old at the time of the next election to register to vote.

You can choose to register with a political party or with one of the political designations on file at the State Elections Office. If you do not want to register with a particular political group, you can select "UNENROLLED" status. If you register or change your affiliation, your information will be forwarded first to the Secretary of State's Central Voter Registry and then to your local election office, which will send you a confirmation notice in the mail.

For more information on registering to vote or the election process, call the State Election Line at 1-800-462-VOTE.

Organ and Tissue Donor Program

When you apply for a Massachusetts driver's license or identification card, you will have the opportunity to become an organ and tissue donor. By registering as an organ and tissue donor with the RMV, you will be entered into the Massachusetts Donor Registry, which is legal consent for donation. However, you should also share your decision to donate with your family and friends so that they know about your decision to become an organ and tissue donor.

You can now register as an organ donor, or change your organ donor status, anytime on www.mass.gov/rmv

If you are planning on renewing your license or ID card online and would also like to change your organ donor status, please realize that these are separate transactions. You should change your organ donor status online first and then renew your license or ID card.

Even if you are currently a registered donor, you still need to check "yes" on question one of the license or ID card renewal form in order to remain in the donor registry.

A driver who is under the age of 18 can only register to be an organ and tissue donor with signed consent from a parent or guardian on the permit/license application. If you have any questions, please contact one of the organ donor organizations listed below.

For more information on organ and tissue donation:

Visit www.neob.org/faq.htm or www.unos.org

Call New England Organ Bank at 1-800-446-6362

Call LifeChoice Donor Services at 1-800-874-5215

Every day, 17 people in the United States die waiting for organ transplants. Currently, there are over 97,000 total patients waiting for an organ transplant in the United States. Thousands more await life enhancing tissue transplants.

Note: The RMV is required by law to provide certain information identifying organ and tissue donors to federally-designated organ procurement organizations and other federally registered non-profit eye and tissue banks serving the Commonwealth.

Organ Donor FAQs (see www.mass.gov/rmv for more FAQs)

- Q. What does the heart symbol on my license/ID represent?
- A. It indicates that you are in the Massachusetts Donor Registry and have consented to organ/tissue donation.
- Q. Can I be an organ/tissue donor if I don't have the heart symbol on my license/ID?
- A. Yes. You can register as an organ/tissue donor anytime on www.mass.gov/rmv. You don't need to get a new license/ID. Your license/ID won't have the heart symbol, but your name will be in the Donor Registry's database. When it is time to get a new license/ID, the heart symbol will then be printed on it.
- Q. What is the Massachusetts Donor Registry?
- A. The Donor Registry is a database that contains the names of everyone who has signed up to be an organ and tissue donor at the RMV. The database is checked (via computer) when necessary. This eliminates the need to look for a donor card or a license that could be misplaced or lost.
- Q. Do you need to carry a donor card with your license (in addition to the heart symbol)?
- A. No, you do not need to carry a donor card if you have the heart symbol on your license. The heart symbol indicates that you are in the Massachusetts Donor Registry and have consented to organ/tissue donation. The Donor Registry is checked whenever an individual becomes a potential candidate for donation.
- Q. Will it cost my family anything if I donate organs/tissues?
- A. Organ and tissue donation is completely free. A donor's family is not charged.

Keeping Your License

Driving in Massachusetts is a privilege. It is not a right. You earn driving privileges by passing a learner's permit exam and a road test. These tests prove that you can operate a motor vehicle safely and within the law. Once you have earned your driver's license, you are responsible for your actions as a driver.

The RMV tracks your history as a driver. This is called your **driving record**. It lists three types of events that can cause you to lose your driving privileges:

- Civil motor vehicle infractions
- Criminal violations
- Motor vehicle accidents where you are found to be more than 50 percent at fault

This chapter explains these three events. It also explains how the law works and how to avoid losing your driving privileges.

CHAPTER 2

The RMV must sometimes suspend or revoke your driver's license. These situations are described in this chapter. A **suspension** or **revocation** means that your driving privileges are taken away. It can be for a specific amount of time or it can be indefinite. (See the *License Suspension or Revocation* section later in this chapter.)

You cannot renew an expired license if you have unpaid parking violations, unpaid excise taxes, outstanding court warrants, outstanding Fast Lane violations, or Tobin Bridge violations. (See the *Reasons for License Nonrenewal* section later in this chapter.)

Motor Vehicle Violations and Penalties

When you break a motor vehicle law, you may receive a citation. A citation may require you to pay a fine, lose your driving privileges, appear in court, or go to jail. Major traffic law violations are criminal offenses. Examples are driving while intoxicated or leaving the scene of an accident. They carry strong penalties and could cause you to lose your license. You can also lose your license by getting *several* traffic violations. These include driving above the speed limit or failing to obey traffic signals.

Motor vehicle violations can be *civil* or *criminal*. The following sections explain the differences between the two types. For many violations, the penalties may be stronger if you have a Junior Operator's License, you are under 21, you are a repeat offender, or you are driving with a Commercial Driver's License (CDL).

Depending on the violation, you may get more than one penalty. These may include a fine, loss of license, and/or a prison sentence.

Civil Motor Vehicle Infractions

Civil violations, such as not obeying traffic signals or speeding, are noncriminal. They can usually be settled by paying fines. If you get a citation from a police officer for a civil motor vehicle infraction (CMVI), you must pay the required fine or request a hearing to dispute it. You have 20 days to do this.

If you request a clerk magistrate hearing, you must pay a \$25 filing fee. The fee is collected by the court at the time of your hearing. **DO NOT** mail the \$25 filing fee with your request for a court hearing.

If you do *not* respond to a citation within 20 days, you will be found responsible and charged a large late fee. Failure to pay the citation and late fee will cause your license to be suspended. When you pay a fine, you accept responsibility for that violation. Your driving record will show responsibility if you pay the citation by mail, request a hearing and are ordered by a court to pay the fine, or fail to respond to the citation within 20 days.

The RMV records all moving violations in Massachusetts on your driving record. Moving violations can increase your motor vehicle insurance rate (see *Chapter Six*). They may also cause your license to be suspended.

Parking violations are not CMVIs. They are handled by the city or town that issued the citations or tickets. If you do not pay the violation, you will not be able to renew your driver's license or vehicle registration.

You can pay for moving violations using a credit card. Call the RMV Phone Center at 617-351-4500 or visit the RMV website at www.mass.gov/rmv. Or you can mail the payment to:
RMV Citations - Processing Center, PO Box 55890, Boston, MA, 02205-5890

Speeding Violations

The beginning of *Chapter Four* explains the speed-limit laws in Massachusetts. The lowest penalty for driving above the speed limit is a \$100 fine. If you drive more than ten miles per hour (mph) over the speed limit, you must pay an extra \$10 for each mph you were traveling above the first ten. For example, if you drive 73 mph on a highway with a posted speed limit of 55 mph, you would get a \$180 dollar fine. By law, all fines for speeding violations include a \$50 surcharge. \$30 of the surcharge goes to the Head Injury Treatment Services Trust Fund and the rest goes to the General Fund. Speeding is often a factor in motor vehicle crashes that cause serious head injuries. The Legislature created this trust fund to treat people with head injuries.

Your Speed	73 mph
Speed Limit	55 mph
	18 mph over the limit
First 10 mph	\$100
Next 8 mph (8 x 10) =	\$80
	\$180 total fine

Your license will be suspended for 30 days if you are found guilty for three speeding violations in a 12-month period. If you have a Junior Operator's License, a 1st offense will cause a 90-day license suspension. Further offenses will cause a one-year license suspension.

Criminal Violations

Criminal motor vehicle violations are serious offenses. If you commit a criminal motor vehicle violation, you may be arrested immediately, your vehicle may be towed, your license may be taken away, and you may be sent to jail until you go to court. If you are convicted of a criminal motor vehicle offense, the court will set any fine or prison term.

Criminal motor vehicle offenses include driving with a suspended license, operating under the influence (OUI), and leaving the scene of an accident. The *License Suspension or Revocation* section of this chapter has tables that list the penalties for many criminal motor vehicle offenses.

A police officer may arrest you and you may face criminal charges if you refuse to...

- Give your name and address
- Give the name and address of the person who owns the vehicle
- Show your driver's license
- Show a valid registration certificate for the vehicle
- Sign your name in front of the officer

Out-of-State Violations

Massachusetts shares driving-record and criminal-violation information with other states. **Some traffic offenses from other states will be on your driving record. They will be**

treated by the RMV like they happened in Massachusetts.

Out-of-state violations can cause your license to be suspended. They can also cause your automobile insurance cost to go up. If you are suspended or revoked in another state, your Massachusetts license will be suspended automatically.

At-Fault Accidents

Your driving record is also affected if you are at fault in a motor vehicle accident. You are more than 50 percent at fault for an accident if your insurance company...

1. Finds you at fault based on one of the 19 Standards of Fault. These are listed at the end of *Chapter Six*. One example is causing an accident while driving on the wrong side of the road. Another example is crashing into another vehicle from behind.
and
2. Has paid more than \$500 for collision, limited collision, or damage to someone else's property or has paid more than \$500 for bodily injury (if there is no collision or damage to someone else's property over \$500 from the same incident).

All at-fault accidents you are charged with are listed on your driving record. At-fault accidents and motor vehicle violations count toward possible license suspension.

Surchargeable Events

Motor vehicle violations and at-fault accidents are called **surchargeable events**. Each surchargeable event counts toward a possible license suspension. Most out-of-state traffic convictions count as if they took place in Massachusetts.

If you are found guilty for three speeding violations within a 12-month period, your license will be suspended automatically for 30 days. The 12-month period starts when you either pay or are found guilty for the first citation.

A Junior Operator license (for drivers under age 18) will be suspended for 90 days for a first speeding citation and one year for any later citation. For a first drag racing citation, a Junior Operator license will be suspended for one year. A later drag racing citation will cause a three year suspension.

If you have five surchargeable events within a three-year period, your license may be suspended. The RMV will send you a letter telling you to complete a Driver Retraining course (*see the next section*). You must complete the retraining course within 90 days or your license *will* be suspended until you complete the course. If you took the Driver Retraining course in the past three years, you do not need to take it again.

If you have seven surchargeable events within a three-year period, your license will be suspended automatically for 60 days.

Surchargeable events also affect your motor vehicle insurance. The Merit Rating Board runs the Safe Driver Insurance Plan (SDIP). Under SDIP, your insurance premium is determined by your driving record. If you are a safe driver, your rate may go down. Your rate will increase if you are convicted of moving violations, or if you are more than 50 percent at fault in an accident (*see Chapter Six for more information*).

Driver Retraining Course

If you get five or more surchargeable events on your driving record within a three year period, you *must* complete the Massachusetts Driver Retraining Course. If you do not, your license will be suspended. This course does not teach driving skills. It helps you learn to change your driving behavior.

To enroll in a Driver Retraining course, call the National Safety Council at 1-800-215-1581.

After you are told by the RMV that you have five or more surchargeable events, you will be sent a driver retraining information packet. This packet has information about the course, the fees, and how to enroll. The eight-hour retraining program is held at many locations throughout the state. It is two four-hour sessions. However, one eight-hour Saturday session may be available in your area.

Completing the Driver Retraining course does *not* remove offenses or surcharges from your driving record. It also does *not* replace any other requirements. For example, if you were convicted of drunk driving, you may also have to complete an alcohol treatment or education program.

Driving Records

You can order a copy of your Massachusetts driving record by phone or Internet. You can also request one by mail, or pick one up in person at any full-service RMV Branch. You cannot get a certified copy of a driving record in a branch. The cost of a driving record that has been certified with an official stamp is \$20. If you do not need the driving record to be certified, you can order an unattested driving record for \$6. You can pay this by check, money order, or cash (in a branch), or by VISA, MasterCard, Discover, or American Express. To order by phone, call the RMV Phone Center at 617-351-4500. To order by mail, send a written request with your name, date of birth, driver's license number, Massachusetts address, and check or money order, to the address below.

Checks or money orders must be payable to MassDOT. Make sure your name, address, and driver's license number are printed on your check. If you live out of state, please indicate where you want your driving record mailed.

All fees are subject to change at any time.

Driver Control/ Court Records, Registry of Motor Vehicles, P.O. Box 55896 Boston, MA 02205-5896
If you order a driving record by mail or phone, it may take ten business days to get it.

License Suspension or Revocation

The Registrar of Motor Vehicles can suspend or revoke your driver's license. This can be done by Massachusetts law or when you are seen as a threat to public safety. Some motor vehicle violations require your license to be suspended or revoked immediately. Your license can also be suspended or revoked if you commit a number of moving violations or if you are at fault in a number of accidents.

Mandatory License Suspensions (18 Years and Older)

Situation	Explanation	Suspension Period	Fee to Reinstatement
Three Speeding Violations	Three speeding violations/ responsible findings within any one-year period.	30 days	\$100
Five Surchargeable Events	Any combination of moving violations and surchargeable accidents that total five surchargeable events within a three-year period.	Must complete Driver Retraining course within 90 days or license will be suspended indefinitely until course is completed	\$100
Seven Surchargeable Events	Any combination of moving violations and surchargeable accidents that total seven surchargeable events within a three-year period.	60 days	\$100
Habitual Traffic Offender	A total of three major moving violations or any combination of twelve major or minor moving violations within a five-year period.	Four years	\$500
Out-of-State Suspension	License has been suspended or revoked in another state.	Until the out-of-state suspension is resolved	\$100

Reasons for License Suspension

The Registrar **must** sometimes suspend or revoke a driver's license. The charts in this section show when a suspension is mandatory. The Registrar can also choose to suspend or revoke a license in the following cases:

- **Immediate threat** — If the Registrar believes that your driving is an immediate threat to public safety, he/she can suspend your learner's permit or driver's license immediately.
- **Improper operation** — If you have operated a motor vehicle improperly, the Registrar can suspend your driving privileges.
- **Fake ID** — Even if you are not convicted, the Registrar can suspend your driving privileges for six months (or one year after a conviction) for the following offenses:
 - Transferring, altering, or defacing a license/ID
 - Making, using, carrying, selling, or distributing a false license/ID
 - Using somebody else's license/ID
 - Furnishing false information to obtain a license/ID

Other Reasons for License Suspensions

Since a driver's license is a privilege and not a right, the Registrar is also required by law to suspend a driver's license for some reasons not related to driving. For example, your license will be suspended if you:

- Have failed to pay required child support
- Have an outstanding arrest or default warrant
- Have failed to register as a sex offender
- Have been convicted of a drug offense
- Have failed to pay Massachusetts income tax
- Have made a bad payment to the RMV (for example, you paid with a check that was later rejected or you paid with a credit card and later cancelled the payment with the bank)

If your license was suspended for a bad payment, you must pay the original fee, a license reinstatement fee, and a \$15 fee to clear your bad payment. You can pay at any full-service RMV Branch. You must either use cash or a certified bank check payable to MassDOT.

If you have questions about...

- Child support, contact the Department of Revenue's Child Support Office at 1-800-332-2733.
- Registering as a sex offender, contact the Sex Offender Registry Board at 978-740-6503.

Out-of-State Suspensions

Out-of-state suspensions or revocations affect your Massachusetts license. Your license **will be suspended** in Massachusetts until any out-of-state suspension or revocation is cleared. When your license is reinstated in the other state, you must bring either a reinstatement letter or a current driving record from that state to any full-service RMV Branch. You may also need to give additional information. Your reinstatement letter or driving record cannot be over 30 days old.

Each U.S. state must tell the Massachusetts RMV about any traffic offenses you commit there. **These offenses will be treated as if they happened in Massachusetts if they are a "like" offense.**

To determine a "like" offense, the RMV will look at what the other state's law prohibits. It does not matter if the other state chose to assess a higher or lower penalty, or treat the offense as a civil or criminal infraction.

The RMV must apply Massachusetts suspension rules to out-of-state violations, even if the offense did not cause a suspension in the other state.

When Your License Is Suspended or Revoked. . .

If the RMV suspends or revokes your driver's license, you *must* stop driving immediately. You have lost your driving privileges. It is illegal for you to operate any motor vehicle.

Driving Without a License

It is illegal to drive in Massachusetts without a valid driver's license or permit.

Driving With a Suspended License

If your license or permit has been suspended or revoked for any reason, it is *not* valid. You are *not* allowed to drive in Massachusetts or anywhere else. **Driving with a suspended or revoked license is a criminal motor vehicle violation. You may face a large fine and/or jail sentence, as well as additional penalties.**

Mandatory Permit Suspensions Junior Operators Only (16½ to 18 Years)

Violation	Suspension Period	Reinstatement Requirements	Fee to Reinstate
Conviction for Driving Without a Licensed Driver (c. 90, §8B)	60 days—first offense 180 days—second offense One year—subsequent offenses	All offenses require you to retake the learner's permit exam. Second offense requires a Driver Attitudinal Retraining course.	\$100
Conviction for Driving During the Night Restriction (c. 90, §10) (c. 90, §8B)	60 days—first offense 180 days—second offense One year—subsequent offenses	All offenses require you to retake the learner's permit exam. Second offense requires a Driver Attitudinal Retraining course.	\$100
Conviction for Speeding (c. 90, §17) (c. 90, §17A) (c. 90, §18)	90 days—first offense One year—second or subsequent offense	All offenses require a new learner's permit exam.	\$100
Conviction for Drag Racing (c. 90, §17B)	One year—first offense Three years—second or subsequent offense	All offenses require a Driver Attitudinal Retraining course and a new learner's permit exam. In addition, you may be required to take a State Courts Against Road Rage (SCARR) course.*	\$500-first offense \$1000-second or subsequent offense

Note: In addition to any other penalty required by law, Massachusetts General Laws chapter 90, section 24p requires that any Junior Operator who is convicted of Operating Under the Influence (OUI), Operating to Endanger, Leaving the Scene of an Accident, Drinking from an Open Alcohol Container, OUI with Serious Bodily Injury, Unauthorized Use of a Motor Vehicle, Reckless/Negligent Operation, Loaning/Allowing Another to Use Your License or Learner's Permit, or Motor Vehicle Homicide will face a 180 day suspension (in addition to any other suspension required by law) for a first offense, or a one year suspension for any subsequent offense. This additional suspension only applies to Junior Operators, and only in cases in which they did not already receive an additional suspension for failing or refusing a breath test.

In addition to the penalties listed, your parent or guardian will be notified of the suspension.

All fees are subject to change at any time.

Mandatory License Suspensions Junior Operators Only (16½ to 18 Years)

Violation	Suspension Period	Reinstatement Requirements	Fee to Reinstate
Conviction for Violating Passenger or Night Restriction (c. 90, §8) (c. 90, §10)	60 days—first offense 180 days—second offense One year—subsequent offenses	Second and subsequent offenses require a Driver Attitudinal Retraining course. Third and subsequent offenses require a new learner's permit and road exam.	\$100
Conviction for Speeding (c. 90, §17) (c. 90, §17A) (c. 90, §18)	90 days—first offense One year—second or subsequent offense	All offenses require a Driver Attitudinal Retraining course, a new learner's permit exam, and a new road test. In addition, you may be required to take a State Courts Against Road Rage (SCARR) course.*	\$500
Conviction for Drag Racing (c. 90, §17B)	One year—first offense Three years—second or subsequent offense	All offenses require a Driver Attitudinal Retraining course, a new learner's permit exam, and a new road test. In addition, you may be required to take a State Courts Against Road Rage (SCARR) course.*	\$500—first offense \$1000—second or subsequent offense
Conviction for Driving Negligently or Recklessly/ Operating to Endanger (c. 90, §24)	180 days—first offense One year—second or subsequent offense (within a three year period)	Second and subsequent offenses require a new learner's permit exam and a new road test.	\$500

Note: In addition to any other penalty required by law, Massachusetts General Laws chapter 90, section 24p requires that any Junior Operator who is convicted of Operating Under the Influence (OUI), Operating to Endanger, Leaving the Scene of an Accident, Drinking from an Open Alcohol Container, OUI with Serious Bodily Injury, Unauthorized Use of a Motor Vehicle, Reckless/Negligent Operation, Loaning/Allowing Another to Use Your License or Learner's Permit, or Motor Vehicle Homicide will face a 180 day suspension (in addition to any other suspension required by law) for a first offense, or a one year suspension for any subsequent offense. This additional suspension only applies to Junior Operators, and only in cases in which they did not already receive an additional suspension for failing or refusing a breath test.

*A Massachusetts JOL License or Permit holder that commits certain categories of motor vehicle violations is required under law to complete the SCARR program. Drivers may also be mandated to complete SCARR as assigned by a specific court. A Junior Operator will only be required to take the SCARR course one time. Visit www.mass.gov/rmv for more information.

For more information on, or to register for, a Driver Attitudinal Retraining course or a State Courts Against Road Rage (SCARR) course, visit www.mass.gov/rmv and click on “Teens and Parents.”

Criminal Offenses and Suspensions		
Criminal Conviction	Suspension Period	Fee to Reinstatement
Operating a motor vehicle with a suspended or revoked license	60 days–One year	\$500
Operating a motor vehicle without the owner's authority / larceny of a motor vehicle	One–Three years	\$500
Leaving the scene of an accident when a person is injured	One–Two years	\$500
Leaving the scene of an accident involving property damage	60 days–One year	\$500
Operating to endanger	60 days–One year	\$500
Motor vehicle homicide	15 years–Lifetime	\$500
Vehicular manslaughter	15 years–Lifetime	\$500
Operating under the influence of alcohol or drugs	One year (first) Two years (second) Eight years (third) Ten years (fourth) Lifetime (fifth)	\$500 (first) \$700 (second) \$1200 (third) \$1200 (fourth) N/A
Any drug-related conviction (Operation of a vehicle is not required)	One–Five years	\$500
Defacing real or personal property, spraying paint or applying stickers or other graffiti (Operation of a vehicle is not required)	One year (or delay of one year in obtaining a License)	\$100
Drag racing (by drivers over the age of 18)	30 days-180 days	\$500 - \$1,000

Many of the offenses in the chart above may also require you to serve time in jail.

Additional suspension periods will apply to many of the offenses in the chart above when Junior Operators commit them and alcohol or drugs are involved. For more information, see the *Under 21 Alcohol Offenses* section later in this chapter.

License Reinstatement

To reinstate your driver's license or right to operate a motor vehicle, you may need a hearing. You have the right to a hearing with a Hearings Officer. Hearings are held on a walk-in basis, unless your notice lists a certain date, time, and place. Walk-in hearing hours are 9:00am to 5:00pm (Mon, Tue, Wed, and Fri) and 10:00am to 5:00pm (Thurs) at the following locations:

Full Time Hearings Locations (Monday through Friday, excluding holidays): Boston, Brockton, Lawrence, Lowell, Springfield, and Worcester.

Part Time Hearings Locations (selected days): South Yarmouth (Mon/Tues), and Wilmington (Tues/Wed).

Note: Hearings days or locations are subject to change without notice. Please check www.mass.gov/rmv to see if hearings are currently available at the branch you wish to visit. If a hearing cannot be held there, the branch staff can tell you where to go for a hearing.

At your hearing, the Hearings Officer will review your case. This will include your driving record and all laws and regulations that apply. Most suspensions are mandatory, and the hearing is only about whether the law is being applied correctly.

Once you have been found guilty or responsible, the facts of the case are not important. The Hearings Officer will not be able to prevent a valid suspension. The Hearings Officer may take up to ten business days before making a decision.

You must pay a fee to reinstate a suspended or revoked license. Most fees are \$100. Fees for suspensions caused by serious offenses may be as high as \$1,200.

For some suspensions, you must also pass a learner's permit exam and road test to reinstate your license. You must give four forms of identification to take a learner's permit exam and road test (see *Identification Requirements* section of *Chapter One*).

All fees are subject to change at any time.

Alcohol, Drugs, and Driving

The facts are simple. **You cannot drive safely after drinking alcohol or taking other drugs.** Alcohol is a drug. It is a depressant that affects your vision, reaction time, coordination, and judgment. Even small amounts of alcohol or other drugs can lower the mental and physical abilities you need to drive safely. This includes some over-the-counter medicines. You do not have to be drunk or completely intoxicated to be a dangerous driver.

Safety must *always* be your first responsibility. If you take any substance that affects your awareness and your reflexes, you are no longer safe to drive.

Each year in the United States, alcohol causes nearly 40% of all highway deaths. This does not include the thousands of drivers, passengers, and pedestrians who are seriously hurt or permanently disabled. It does not include the millions of dollars of damage. It does not include the tragedies that friends and families must face. All of this is caused by drivers operating under the influence (OUI) of alcohol or drugs.

Because driving under the influence is so dangerous, Massachusetts has very strong penalties for OUI violations. The chart on the next page shows the penalties for each OUI conviction.

Alcohol

Whether it's beer, wine, or hard liquor, alcohol is a depressant. **It slows your reflexes, increases the time you need to react, and distorts your vision and judgment.** Alcohol also often makes you *feel* more confident. This can cause you to take chances while driving that you normally wouldn't take. This is a dangerous combination that often leads to serious motor vehicle accidents and tragic deaths.

Penalties for Operating a Motor Vehicle Under the Influence of Alcohol or Drugs

Conviction	Fine	Prison Term	License Suspension
First Offense	\$500–\$5,000	Maximum 2½ years	One year
For your first offense, the court may allow you to complete an alcohol education course to reduce your license suspension period.			Over 21, 45–90 days, Under 21, 210 days
Second Offense	\$600–\$10,000	Minimum 30 days Maximum 2½ years	Two years
Third Offense (Felony)	\$1,000–\$15,000	Minimum 150 days Maximum Five years	Eight years
Fourth Offense (Felony)	\$1,500–\$25,000	Minimum One year Maximum Five years	Ten years
Fifth Offense (Felony)	\$2,000–\$50,000	Minimum Two years Maximum Five years	Lifetime

In addition to the fines listed in this chart, you will have to pay any RMV reinstatement fees before you can get your license back.

Even one alcoholic drink in an hour can affect your driving. It can be much worse if you are tired, emotionally upset, or haven't eaten. No one is immune to alcohol. After drinking, your ability to drive safely is impaired. It does not matter how much you try to be careful or concentrate. There is still a drug inside your body affecting you physically and mentally.

In October 2005, Massachusetts passed Melanie's Law. This law increased the penalties and administrative sanctions for OUI offenses.

Blood Alcohol Content

When you drink alcohol, your body works hard to remove it from your system. You *do not* digest alcohol as you do food. Alcohol is processed by your liver and kidneys. This takes time. There is no quick way to sober up or to get the alcohol out of your body. Drinking black coffee, taking a cold shower, exercising, or eating might make you feel more alert after drinking alcohol. However, none of these actions affect how quickly alcohol leaves your body.

Ideally, if you have *any* alcoholic beverage, you should *not* drive. Knowing what is “too much” alcohol can be difficult. The amount of unprocessed alcohol in your body is measured as **blood alcohol content (BAC)**. This can be measured by a blood or a breath test. Your BAC depends on several factors:

License Suspension Periods for Failed Chemical Tests

All drivers will fail a chemical test if they have a Blood Alcohol Content (BAC) of .08 or greater. Drivers under 21 have the same standard for criminal purposes, but will face administrative sanctions for tests with a BAC as low as .02.

AGE	LICENSE SUSPENSION
Drivers <u>over age 21</u>	License is suspended for 30 days or until the conclusion of the court case, whichever is shorter. The suspension will end if the case is concluded either before or during the 30-day period. If the court finds you guilty, you will then face whatever sanctions ordered by the court.
Drivers age <u>18 to 21</u>	License is suspended for 30 days, plus an additional 180 days, pursuant to MGL c.90, s. 24P. If this is your first operating under the influence case, the 180-day suspension can be waived upon entry into a Department of Public Health (DPH) approved alcohol education program.
Drivers <u>under age 18</u>	License is suspended for 30 days, plus an additional one year, pursuant to MGL c.90, s. 24P. If this is your first operating under the influence case, the one-year suspension can be reduced to 180 days upon entry into a Department of Public Health (DPH) approved alcohol education program.

Note: The additional 180-day or one-year suspension for drivers under age 21 is designed to get youths charged with operating under the influence, or with having a BAC of .02 or higher, to undergo alcohol education. **It does not matter what happens with your court case. Even if you win the case, it will not change the requirement for you to take the alcohol education course.**

- Your body weight
- How much alcohol you had to drink
- The amount of food you ate before drinking
- The length of time you have been drinking alcohol
- The speed your body processes alcohol (everyone processes alcohol differently)

The *kind* of beverage you drink does not matter. What is important is the amount of alcohol you drink over a period of time. **Each of the following drinks contain about the same amount of alcohol** (about 1/2 ounce):

- 12-ounce beer
- Four-ounce glass of wine
- One-ounce serving of 80-proof liquor (even if mixed with a soft drink)

Any one of these drinks can raise an average person's BAC by 0.02. If you have more than one drink in an hour, your BAC will rise. Only time will rid you of the effects of alcohol.

Alcohol Tests

Massachusetts has an Implied Consent Law. Every licensed driver in the state must agree to consent to a breathalyzer or blood test in certain cases. If a police officer believes you

are operating under the influence of alcohol, he/she has the right to ask you to...

- Perform a field sobriety test
- Submit to a breathalyzer or blood test to calculate your BAC, if you have been arrested

You are operating above the legal limit if you have a BAC of 0.08 or higher. Massachusetts has a “zero-tolerance” law for drivers under 21. Any driver under 21 will face penalties for having a BAC of .02 or higher.

If your BAC is above the legal limit OR if you refuse a breathalyzer or blood test, the police officer must take away your license. You will be given a notice of suspension, which is effective immediately. See the charts on pages 55 and 57 for the suspension periods.

Under-21 Alcohol Offenses

Drivers under age 21 are *twice* as likely as other drivers to be involved in alcohol-related accidents. This is one reason why laws are stronger for under-21 drivers.

Massachusetts has a “zero-tolerance” law. If you are under 21 and are caught with a BAC as low as 0.02 while driving, you will lose your license.

Ignition Interlock Devices

If you had **two or more operating under the influence offenses** and are eligible for a hardship license or for license reinstatement, you must have an Ignition Interlock Device. It must be attached to your motor vehicle at your expense.

If you get a hardship license, you must use the device the **entire time you have the hardship license**. You must keep using the device **for two more years after your license has been reinstated**.

If your license is eligible for reinstatement, **the device is required for two years**. This two-year period is mandatory (even if you used the device with a hardship license). If you don’t have the device installed, your license will not be reinstated. If you do not obey the Ignition Interlock Law, your license will be revoked and suspended for ten years to life.

The RMV strongly recommends that you arrive prior to 4:00 pm for an Ignition Interlock Device hearing.

The RMV provides a list of vendors who install the device. Once it is installed, you must pass a breath test before starting the vehicle. A blood alcohol reading greater than .02 will prevent the vehicle from starting. Every 30 days, you must return to the vendor. The vendor will upload and transfer data from the device to the RMV. This law protects both the public and the driver. Most states now use this technology.

License Suspension Periods for Refusing a Chemical Test

Note: For this table, a prior operating under the influence (OUI) offense refers to a court conviction for OUI or a court-ordered assignment to an alcohol education program. Chemical test refusals do not count as prior OUI offenses.

AGE	LICENSE SUSPENSION	
Drivers <u>over age 21</u>	No Prior OUI Offenses	180 days
	One Prior OUI Offense	Three years
	Two Prior OUI Offenses	Five years
	Three or More Prior OUI Offenses	Lifetime
Drivers age <u>18 to 21</u>	No Prior OUI Offenses	Three years + 180 days
	One Prior OUI Offense	Three years + 180 days
	Two Prior OUI Offenses	Five years + 180 days
	Three or More Prior OUI Offenses	Lifetime

Note: The additional 180-day suspension for drivers under age 21 is designed to get youths charged with OUI who refuse a chemical test to undergo alcohol education. It does not matter what happens with your court case. **Even if you win the case, it will not change the requirement for you to take an alcohol education course.** If this is your first OUI case, the 180-day suspension can be waived upon entry into a Department of Public Health (DPH) approved alcohol education program.

Drivers <u>under age 18</u>	No Prior OUI Offenses	Three years + One year
	One Prior OUI Offense	Three years + One year
	Two Prior OUI Offenses	Five years + One year
	Three or More Prior OUI Offenses	Lifetime

Note: The additional one-year suspension for drivers under age 18 is designed to get youths charged with OUI who refuse a chemical test to undergo alcohol education. It does not matter what happens with your court case. **Even if you win the case, it will not change the requirement for you to take an alcohol education course.** If this is your first OUI case, the one-year suspension can be reduced to 180 days upon entry into a Department of Public Health (DPH) approved alcohol education program.

Buying, Possessing, or Transporting Alcohol

If you are under 21, it is illegal to...

- Buy alcohol or have someone buy it for you
- Possess, carry, or transport alcohol unless accompanied by a parent or guardian

Your license will be suspended for 90 days to one year for breaking either of these laws.

There are also fines and other penalties. **If you are under 21 and you buy, or try to buy, alcohol, your license will be suspended for 180 days.**

Open Container Law

You may *not* drink alcohol while driving. You may *not* have an open alcoholic drink inside your vehicle, even if someone else is holding it. If you are convicted of this offense, you will be fined \$100 to \$500. If you are under 21, you will be arrested, fined, and your license will be suspended.

False or Altered Licenses/Identification Cards

It is illegal to use a false license or ID, to alter a license or ID, or to use another person's license or ID. It is also illegal to use false information to obtain a license or ID. In most cases, these are felonies with serious penalties. You can face penalties even if you do not attempt to purchase alcohol. *M.G.L.c.90, §22(e) allows the RMV to suspend your license or right to operate in Massachusetts for six months. **A conviction is not required.** If you are convicted, your license will be suspended for one year.*

Illegal Drugs, Medicine, and Other Controlled Substances

Laws for operating under the influence of alcohol also apply to drugs. Almost any drug can affect your driving skills. Illegal drugs, prescription medicines, and over-the-counter medicines can all make it dangerous to drive.

Marijuana

Smoking or eating marijuana makes it more difficult to respond to sights and sounds. This makes you dangerous as a driver. It lowers your ability to handle a quick series of tasks. The most serious problem is facing an unexpected event, such as a car coming from a side street or a child running out from between parked cars. These problems get worse after dark, because marijuana also causes a bad loss of night vision.

Other Drugs

Many other drugs and controlled substances can decrease your ability to drive:

- Illegal hard drugs, like lysergic acid diethylamide (LSD), heroin, and opium, make you feel unaware of where you are. You also feel like you don't care.
- Prescription sedatives and tranquilizers make you drowsy. This makes you a dangerous driver.
- Most medicines taken for colds, hay fever, or headaches can make you drowsy. Pain killers and medicines with codeine can be very dangerous.

You can be considered OUI with prescription drugs. It is illegal to operate a motor vehicle while impaired by *any* substance.

- Stimulants like pep pills, speed, cocaine, and diet pills make you feel more awake and aware for a short time. However, this is always followed by fatigue, nervousness, dizziness, and a lack of concentration. They can also affect your vision.
- Inhaling substances like solvents or glue vapors is a serious health risk. It can leave you unable to operate a motor vehicle properly.

Make sure you read labels carefully and know the side effects of prescription or over-the-counter medicines. Ask your doctor or pharmacist if you're not sure.

Combining alcohol with other drugs dramatically increases the negative effects. Do *not* mix alcohol, drugs, and driving. It's a fatal mistake.

Drug Possession Offenses

If you are convicted of *any* drug offense, in Massachusetts or another state, your driver's license *will* be suspended. **It does not matter if a motor vehicle was involved. You will lose your driving privileges for one to five years, depending on the conviction.**

Reasons for License Nonrenewal

The RMV will refuse to renew your license if you have...

- Unpaid fines for parking violations
- Citations for abandoned vehicles
- Unpaid excise tax due to your local community
- Outstanding court warrants
- Unpaid Fast Lane violations
- Unpaid Tobin Bridge violations

Before renewing, you must present official **release forms**. They must show that all fines and taxes have been paid to local communities or that outstanding warrants have been satisfied. For an outstanding court warrant, a recall notice from the court is required. No other documents will be accepted by the RMV.

Unpaid parking tickets and excise taxes must be paid to local cities and towns.

The RMV can only collect Fast Lane violations that are 60 or more days delinquent. This means that at least 60 days have passed since the date the violation was issued.

For more information, call Fast Lane Violation Processing Center at 1-877-627-7745.

Tobin Bridge violations can be paid in person at:

Terminal C
Lower Level
Logan International Airport
East Boston, MA 02128

Tobin Bridge violations can be paid by mail to:

Parking Violations
1 Harborside Drive
Suite 200S
East Boston, MA 02128

License Suspension

You cannot renew your license if it is suspended or revoked. See the *License Suspension or Revocation* section of this chapter for more information.

The RMV cannot serve you until you have cleared all outstanding problems.

Safety First

Motor vehicle crashes are the leading cause of death among children and young adults in this country, and statistics show that about one in three Americans will be injured or killed in a motor vehicle crash.

One in three.

Whether or not you are driving, chances are that sometime during your life you will be involved in a motor vehicle crash. It does not matter how skillful you are or how much driving experience you have. You can never predict when and where a crash might occur.

This chapter explains the laws that address motor vehicle safety and suggests a few good practices to help you avoid serious trouble.

CHAPTER 3

Passenger Vehicle Safety

Passenger vehicles, including vans and pickup trucks, must have a number of safety equipment items in good working order. Each passenger vehicle must have safety belts for all occupants, a mirror, a horn, a lock for the engine's ignition, windshield wipers, an exhaust muffler, and two braking systems: a foot brake and a parking brake.

Each passenger vehicle also must have certain lights for driving in darkness or poor visibility. The vehicle must have two approved, correctly aimed white headlights in the front; two approved red lights in the back; and directional signals. In addition, the vehicle must have three red stop lights (brake lights) in the rear and a small white light to illuminate the rear license plate.

The CaresVan program, which is operated by the MassHighway Department and sponsored by Commerce Insurance Company, promotes highway safety and provides assistance to stranded motorists. For more information, visit www.commerceinsurance.com/documents/CaresVan.pdf

If the directional signals or brake lights on your vehicle stop working properly, you must have them repaired immediately. In the meantime, you must use the appropriate hand signals when turning or slowing (see Chapter Four for hand-signal diagrams).

Every vehicle must pass an annual safety and emissions inspection. For details, see Chapter Six.

A passenger vehicle may be equipped with a spot light, but the spot light may be used only to read signs or to serve as an emergency light when the vehicle's headlights are not working. At a distance of 30 feet from your vehicle, a spot light may not shine more than two feet above the roadway.

Certain equipment and vehicle modifications are illegal. For more information, see Chapter Six.

After-market glass tinting is allowed on passenger vehicles, but with restrictions. Side and rear windows may be darkened up to 35 percent. Unless the RMV issues you a special medical waiver, tinting the windshield is a traffic offense that carries a fine and a possible license suspension.

Safety Belt Law

Massachusetts law requires every occupant of a private passenger (Class D) motor vehicle—including vans and small trucks (under 18,000 lbs.)—to wear a properly fastened and adjusted safety belt or ride in a child passenger restraint when traveling on any roadway.

- Any driver who operates a motor vehicle without wearing a safety belt or any passenger 16 years old or older who is not wearing a safety belt is subject to a \$25 fine.
- For each occupant aged 12, 13, 14, or 15 who is *not* wearing a safety belt, the driver can be fined an additional \$25 per person.

This law will be enforced if you are stopped by a police officer for a possible traffic violation. Certain people are exempt from this law:

- Drivers and passengers of vehicles manufactured before July 1966
- Operators of taxis, liverys, tractors, buses, and trucks with gross weights of 18,000 pounds or more (However, under federal law, operators of certain commercial motor vehicles are required to wear safety belts.)
- Passengers of authorized emergency vehicles and operators of police and fire vehicles
- Any rural carrier of the U.S. Postal Service who is operating a motor vehicle on duty
- Anyone who is physically unable to use a safety belt. In this case, the person's disability must be certified by a physician



An air bag is more effective and safer if you are wearing your safety belt.

Because a crash can happen at any time, the best way to protect yourself while riding in a motor vehicle is to wear your safety belt at all times. For drivers and passengers alike, the simple fact is that safety belts save lives.

Child Passenger Restraints

The law requires infants and small children to ride in federally approved child passenger restraints until they...

1. Are at least eight years old **or**
2. Measure at least fifty-seven inches in height

Children who are at least eight years old or who measure at least fifty-seven inches in height must use safety belts that are properly adjusted and fastened in accordance with the manufacturer's instructions. Violating this law carries a \$25 fine.

Any child restraint you use must have a sticker that says the restraint meets the U.S. Department of Transportation's (US DOT's) Federal Motor Vehicle Safety Standard No. 213 or that it meets the standards as established in 49 C.F.R. 571.213. The child passenger restraint must either be permanently affixed to a motor vehicle or affixed to the vehicle by a safety belt or a universal attachment system.

If your vehicle has a front-seat passenger-side air bag, never place a rear-facing child safety seat in the front passenger seat.

A child's height and weight, not the child's age, determines which child safety seat is right for the child. Each seat is different; check manufacturer's instructions for exact height and weight limits.



Guide to Child Safety Seats	
Infant seat	up to 20 pounds
Toddler convertible seat	20-40 pounds
Booster seat	40-80 pounds

The safest places for children to ride are in the back seat and, whenever possible, in the middle. Infant seats must face the rear of the vehicle.

To locate a certified Child Passenger Safety Technician to assist you to properly install a child safety seat, please call 1-877-392-5956 or go to www.mass.gov/highwaysafety.

How Safety Belts Work

Safety belts keep you from being thrown around inside your vehicle or being thrown out of your vehicle in a crash. It is best to use both lap and shoulder belts. When used correctly, safety belts lower the chance of death or serious injury in a crash by about 50 percent.

In a crash, a correctly fastened safety belt can help in many ways.



The *right* way to wear a safety belt.



The *wrong* way to wear a safety belt.

- **Protect you from hitting the windshield, dashboard, steering wheel, or other hard surfaces in the vehicle.**

If you do not wear a safety belt and your vehicle crashes head on, your vehicle will stop moving. Your body will keep moving until it hits something hard, like the windshield. Your safety belt will keep you from hitting the windshield or other passengers in the vehicle.

- **Keep you from being thrown out of the vehicle.** With lap and shoulder belts, your chances of surviving a crash are five times better, because you stay inside the protection of your vehicle.
- **Help you stay seated and in control of the vehicle to avoid a more serious crash.** A driver who wears a safety belt stays behind the wheel no matter what happens. If the vehicle is hit from the side, the safety belt will keep the driver from being pushed across the seat.

Hitting the windshield at 30 mph is like falling from the third story of a building and hitting the pavement.

A lap belt should be fastened low, snug, and flat over the hips, not twisted. A shoulder belt should be worn across the shoulder and chest. A shoulder belt should *never* be worn under the arm or across the face or neck.

Myths About Safety Belts

The truth is safety belts save lives and reduce the risk of injury in a crash. Stories about the “dangers” or “hassles” of safety belts are simply unfounded.

“I’ll be trapped inside the car if I’m wearing a safety belt in a crash.”

You may have heard stories of cars catching fire or sinking in water. These types of crashes

rarely happen, but if you were involved in one, wearing a safety belt would increase your chances of *not* hitting your head and losing consciousness. If you remain conscious during and after such a crash, you'll at least be able to unbuckle your safety belt and get out. You can be trapped in your vehicle whether you're wearing a safety belt or not. The fact is, even if you're upside down, it takes less than a second to unfasten your belt.

"My car has air bags, so I don't need to wear a safety belt."

An air-bag system is a *supplemental* safety device and is designed to work *with* safety belts, not instead of them. You still need to wear a safety belt whenever you drive. Furthermore, unless your vehicle is equipped with side airbags, front air bags are designed for front-on collisions *only* and do not offer protection in collisions from the side or rear.

"I'm only driving a short distance. I don't need to wear my safety belt."

Most motor vehicle crashes happen within 25 miles of home. In fact, eight out of every ten accidents occur when drivers are going 40 mph or less. Don't take chances. Wear your safety belts whenever you drive.

"I'm only running to the store. It's too much trouble to put the kids in child safety seats."

Motor vehicle crashes are the most preventable cause of death in children. Most kids killed in car crashes would have survived had they been fastened properly into child safety seats. Take the extra minute to buckle your children into their seats before you set off on any drive.

Air-Bag Safety

When combined with lap and shoulder safety belts, air bags are very effective in saving adult lives in motor vehicle crashes. To maximize air bag effectiveness and safety, however, you should follow certain procedures.

- *Children in back.* Infants in rear-facing child safety seats should *never* ride in the front seat of a vehicle with a passenger-side air bag. With or without air bags, all children are safest when riding, properly restrained, in the back seat.
- *Child safety seats.* Infants and young children should always ride in age- and size-appropriate child safety seats. For more information, see the *Child Passenger Restraint Law* section previously in this chapter.
- *Air bags do not eliminate the need for safety belts.* To ensure the safe and effective operation of air bags, you should always wear both lap and shoulder belts. For more information, see the *Safety Belt Law* and *How Safety Belts Work* sections of this chapter.
- *Move the front seat back.* To allow for proper operation of your vehicle, you should position the front seat as far back from the dashboard as is practical. Also, if your front passenger seat operates independently, you should move it as far back as possible.

Following these simple tips will improve your chances—***and those of your children***—of surviving and avoiding serious injury in a crash.

A common cause of death and injury to children is being crushed by unbelted adults during a crash.

Inside the Vehicle

When driving, you must make sure that nothing interferes with your ability to see the road, react to situations, or operate your motor vehicle properly.

Distracting Objects

You must have no objects inside your vehicle that might interfere with your ability to drive safely. Nothing should block your view of the road, either ahead of you or through your mirrors. Be careful that nothing near your feet can roll and get in the way of your pedal controls (the accelerator, clutch, and brake).

Cellular Phones and CB Radios

You are allowed to use a cellular (mobile) telephone while driving as long as you keep one hand on the steering wheel at all times and can operate your motor vehicle safely.

Headphones

It is illegal to wear a radio headset or other types of headphones while driving. One earplug for use with a cell phone is acceptable.

Televisions

The law requires that any television installed in a private passenger vehicle must be located *behind* the front seat and not be visible to the driver. This ensures that a driver cannot be distracted by a television screen, even when looking sideways out of the vehicle.

Truck Beds

With very limited exceptions, and never at speeds greater than five mph, children under 12 years old are not allowed to ride in the beds of pickup trucks.

Driving Defensively

Even the most experienced drivers make mistakes. Regardless of how many years you've been driving, at some point you will have to face equipment failures, bad weather conditions, unskilled drivers on the road, unpredictable pedestrians, and drivers who ignore traffic regulations.

The best way to prepare yourself for unpredictable events is to **drive defensively**.

- Always maintain good vision ahead and around your vehicle.
- Stay alert and be prepared to react to the unexpected.
- Maintain a safe distance around your vehicle.
- Drive at the right speed and know when to slow down and stop.
- Always wear your safety belt.
- Do not drive if you have been drinking, are on medication, or are very tired.
- Keep your vehicle in good working order.
- Obey the rules of the road and give the right-of-way when appropriate.

As a defensive driver, you should constantly look ahead of and around you, and frequently check your mirrors. Be aware of the road conditions or possible hazards that lie in front, to the sides and behind you.

- Take in the whole scene in front of you. Scan the roadside for vehicles stopping ahead and watch for individuals entering or exiting parked vehicles. Pay close attention to pedestrians or cyclists who may be sharing the road with you.
- Anticipate mistakes or unsafe maneuvers from other drivers.
- Watch for back-up lights of any vehicle ahead of you.
- Pay close attention to crosswalks. Don't rely on traffic signals alone to alert you to your driving environment. Motorists and pedestrians may ignore traffic signals.
- Always pay close attention when driving in the vicinity of playgrounds, schoolyards, and shopping centers, as children and pedestrians may be hidden from sight.
- Remember that the right-of-way is something you give. A big part of driving defensively is giving the right-of-way to prevent unsafe traffic situations.

Your Health and Physical Condition

Have your eyesight checked every year or two, and correct any vision problems immediately. As you age, you may find the clarity of your vision decreasing, or you may find it more difficult to see at night.

Because you must be in control of your vehicle at all times, it is important that you remain alert and responsive. You not only need good vision; you need good hearing as well.

There are certain situations in which you should never drive:

- When you have been drinking alcohol
- When you have taken any prescription drug or over-the-counter medication that can cause drowsiness
- If you are under the influence of any drug
- When you are very tired
- When you are emotionally upset. Emotional states like anger and depression can cause you to drive carelessly

On bright, sunny days, you should always wear sunglasses.

Checking Your Vehicle's Condition

The law requires you to have your passenger vehicle or motorcycle inspected for safety and/or emissions every year (see *Chapter Six*). However, you should always follow the routine maintenance procedures recommended by your vehicle manufacturer. Each time before you enter your vehicle or mount your motorcycle, make a quick visual check for low tire pressure or any damage you may not have noticed before.

Brakes and Tires

Pay close attention to changes in how your vehicle responds when braking. If you think you have a problem, have your brakes inspected immediately. If you feel the vehicle pull to one side when you brake, your brakes may need adjustment or repair.

Check your tires for proper inflation and wear. Rotate your tires as often as is recommended by the vehicle or tire manufacturer. It is dangerous and illegal to drive a vehicle with extremely worn or damaged tires. Tires must have at least $\frac{2}{32}$ inches of tread depth in the proper grooves and no fabric breaks or exposed cords.

The distance between the edge of a penny and the top of Lincoln's head is about $\frac{2}{32}$ of an inch. A quick way to check your tire tread is to slide a penny into a tread groove. If you can see Lincoln's head, your tires are worn out.

Steering

Your steering wheel should not feel so loose that you notice a delay between when you turn the wheel and when your tires respond. With power steering, you should check the fluid level regularly. If your vehicle makes a high-pitched noise when you turn, you should have your power steering inspected.

Lights and Glass

Make sure to check your headlights, brake lights, and turn signals periodically. Keep your lights clear of dirt, snow, and ice. Keep your windows and mirrors clean. Change your windshield wipers if they streak or fail to clear your windshield properly.

Safe Distances Around Your Car

Always keep enough space between your vehicle and others. Keep a cushion of space on all sides to give yourself room to stop safely or avoid hazards.

- When driving behind another vehicle, use the "two-second" rule for keeping a safe distance. On the road ahead, pick a fixed object, like a sign post or a tree. When the vehicle in front of you reaches that object, count out "one one-thousand, two one-thousand.....". If you reach the object before you count two, you are following too closely. Slow down until you've put enough distance between you and the other vehicle.

The two-second rule is a minimum safe distance when road conditions are clear and dry and traffic is moderate but moving. Count three or four seconds for added safety, and allow more distance when traffic allows.

- If following a motorcycle, allow even more distance than you would for another vehicle.
- Allow extra space between your vehicle and heavy equipment (for example, dump trucks, tractors).
- Never cut in front of heavy equipment or tractor-trailers. These vehicles carry more weight and need much more space to stop safely.
- Never tailgate a vehicle ahead of you. Tailgating is illegal and the main cause of rear-end crashes.
- If a tailgater is following you, move to another lane if possible or pull to the side of the road to let the tailgater pass.

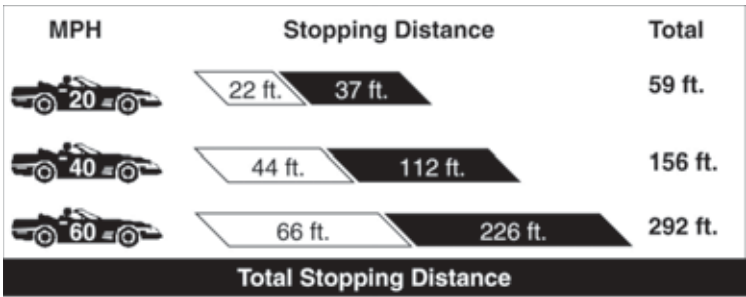
Allow yourself an extra cushion for problem drivers and problem situations:

- Blind driveways or obstructed-view driveways or roads
- Drivers backing out of parking spaces or driveways
- Children playing in nearby yards or near the roadside

Braking and Stopping

Look well ahead of your vehicle so you have enough time to brake and stop safely if something gets in your path. The time it takes you to react, think, and apply the brakes is called reaction time.

On average, it takes about three-quarters of a second for you to react to a situation and step on the brake pedal. This time can also be measured in feet traveled, or reaction distance.



Sample stopping distance statistics from *How to Drive, A Text for Beginning Drivers* by the American Automobile Association (Ninth Ed.)

For example, at 50 mph, your vehicle would travel another 55 feet along the pavement in the three-quarters of a second it would take you to react. Once you apply the brakes, it may take you another 160 feet or more to come to a complete stop.

This would be your average braking distance on dry, level, unobstructed pavement.

Your total stopping distance would be about 215 feet (55 feet + 160 feet). If roadway conditions were anything other than clear and dry, your stopping distance would be greater.

Assuming your brakes and tires are functioning properly and the roadway is dry and level, remember these facts:

- If you are traveling at 60 mph it takes an average of 292 feet (almost a whole football field) to react to a hazard, step on the brake, and come safely to a stop.
- At just 30 mph, your total stopping distance might be 104 feet.

These figures are presented for educational purposes only, to illustrate that motor vehicles have a great deal of momentum when in motion and require much more distance to stop safely than you imagine. Your actual stopping distances will vary widely with road, weather, and vehicle conditions.

Follow some useful braking tips:

- Warn pedestrians, cyclists, or other drivers of possible trouble. Brake early and gently when preparing to stop or turn.
 - Do not let your foot rest slightly on the brake pedal while driving. (This is called riding your brakes.)
 - If your vehicle has antilock brakes, never pump the brakes.
 - Always slow down when approaching a curve or an area of road where you cannot see clearly ahead.
-

Using Your Horn, Headlights, and Emergency Signals

It is important to know how to operate your vehicle's safety equipment properly.

Use your horn to:

- Warn pedestrians or other drivers of possible trouble
- Avoid accidents

Do not use your horn to:

- Express anger or complain about other drivers' mistakes
- Try to get a slower driver to move faster
- Try to get other vehicles moving in a traffic jam

Use your headlights:

- Use your headlights from one-half hour after sunset until one-half hour before sunrise
- In rain, snow, fog, or other inclement weather that makes it hard to see
- Anytime you have trouble seeing other vehicles
- To flash another vehicle to alert the driver to turn on his/her headlights

Use your emergency lights and signals when your vehicle breaks down, so that other drivers can see it. Make sure you get your vehicle as far to the side of the road as you can. For your own safety, stay off the road. Never take chances changing a flat tire in a traffic lane. Wait for help to arrive.

You can also use your emergency lights to warn drivers behind you that a traffic accident or major hazard lies ahead. Give other drivers as much warning as possible.

Night Driving

Nighttime driving is more dangerous than daytime driving because you cannot see as well. The law requires you to use your headlights from one-half hour after sunset to one-half hour before sunrise. Always use extra care when driving at night, as vehicles, pedestrians, or road obstacles may not be readily visible. It is recommended that drivers do the following:

- Do not drive when you are tired or drowsy.
- Drive more slowly at night than you would in daylight, particularly when you are

unfamiliar with the area. Drive at a speed that allows you to react and stop safely within the distance you can see ahead.

- Keep more space between your vehicle and other vehicles than you would normally.
- Switch your interior rearview mirror to the "night" position. This will cut down on the glare from headlights behind you. Keep interior dome lights off.
- To reduce the effects of glare from oncoming headlights, do not stare directly at the headlights. Instead, look to the lower right side of your traffic lane.
- Make sure your windows and headlights are clean.
- If another driver flashes headlights at you, your headlights may not be on when they should be, or you may not have lowered your high beams.

High Beam Headlights

In normal conditions, high beam headlights allow you to see about 350 feet ahead. Low beam headlights allow you to see about 100 feet ahead.

- Only use high beams in dark or remote areas where you cannot see the road surface ahead.
- If you are driving with your high-beam headlights, you must lower your headlights to low beam when you are within 500 feet of an oncoming vehicle or within 200 feet of a vehicle traveling ahead of you.
- If an approaching driver is using high beams, you may flick your headlights to remind the driver to dim his or hers. If the oncoming driver does not switch to low beams, stay to the right and avoid the temptation to turn on your high beams.

Driving in Rain or Fog

Rain and wet roads make it harder to start, stop, and turn. Hard rain, fog, and mist can also reduce your visibility dramatically. You are advised to use your headlights whenever you are using your windshield wipers.

Slow down at the first sign of rain. Many roads are most slippery when rain first mixes with road dirt and oil, forming a greasy film on the road's surface. If a road is slippery, your tires can lose traction and, in a heavy rain, your car can hydroplane.

Hydroplaning, which results from a combination of road conditions, water, and speed, means your tires are riding on a layer of water and have lost all contact with the road. If you feel your vehicle start to hydroplane, you're driving too fast for conditions. Slowly ease up on the gas pedal. Never hit the brakes or turn suddenly. You may lose control and go into a skid.

Following are some useful driving tips for driving in rain or fog:

- Increase the space between your vehicle and other vehicles. You need more distance to stop your vehicle. Be prepared to stop quickly, and keep within the limits of what you can see ahead.
- Be careful of wet leaves on the road. They can be as slippery as ice.

- Make sure your windshield wipers and window defoggers are in good condition.
- In fog, use your low beam headlights to reduce glare.
- Always use your directional signals.
- If it is hard to see the pavement or sign posts, slow down and look for road edge markings to guide you.
- Avoid driving through puddles. Wet brakes do not work properly. If you drive through a large puddle, apply your brakes lightly as soon as you can to dry them until you feel them working normally again.

To get accurate, up-to-date information about traffic and weather conditions, construction projects, and MBTA service, or to report problems on the road, the Highway Department has a new 511 phone service that replaces the former SmarTraveler service. To access this service, dial 511 from your cell phone or 617-374-1234 from a land line. It is available Monday through Friday from 5:30am – 9:00pm and weekends and holidays from 10:00am – 7:00pm.

Winter Driving

Driving in winter is probably the most difficult and hazardous situation for both new and experienced drivers. You should practice driving in winter conditions, because motor vehicles handle much differently on ice and snow than they do on warm, dry pavement.

- Reduce your speed according to road conditions. Drive cautiously and accelerate gently.
- Never lock your brakes on icy roads. You will lose steering control. If you do skid, remember to **turn into the direction of the skid** (see *Driving Emergencies* in *Chapter Five*).
- Increase the space between your vehicle and others. You need more distance to stop safely on slippery surfaces.
- Because the earth does not insulate them, bridges and highway overpasses tend to freeze before the rest of the road and can be very slippery.
- If it is snowing, start slowly. Test your brakes by tapping them gently to see how much traction your tires have.
- Make sure your windshield wipers and defroster are in good condition.
- Before driving, remove ice and snow from your vehicle. Clear all windows, windshield wipers, headlights, and brake lights. Clear ice and snow from your vehicle's roof so they do not blow off while you're driving and create hazards for drivers behind you.
- Keep your fuel tank at least half full to prevent the fuel line from freezing.
- Make sure you fill your windshield washer reservoir with a cleaning solution that won't freeze.
- Keep a blanket, flashlight, and small shovel in your trunk.

Pedestrians

At least one in five motor vehicle deaths involve a pedestrian. Take extra care to look for pedestrians when you drive. Pay close attention in congested areas where pedestrians are

greater in number. Be especially careful of...

- **Children** – Children are often the most unpredictable and hardest to see. Be cautious when driving near school zones, parks, bus stops and playgrounds.
- **Joggers and Skaters** – The popularity of jogging and in-line skating has created more pedestrian hazards. Joggers and skaters do not always obey traffic signal and crosswalk rules.
- **Pedestrians, when you're backing up** – Use caution when backing in reverse. Do not rely solely on vehicle mirrors or sensors, as blind spots may obstruct your vision and hide obstacles that lie behind the vehicle. It is recommended that you turn your head and look out the window before beginning to back up. If children are nearby when backing out of a driveway, get out of your vehicle and check behind it.
- **Visually impaired (blind) individuals** – Always yield to a blind pedestrian at a street crossing. You must remain stopped until the person has safely crossed. Do not honk or wave the person on. Never pass another vehicle which is stopped. Blind pedestrians may use a white cane or a guide dog. The White Cane Law states that a driver must come to a complete stop when a blind pedestrian is attempting to cross a street.

Remember, the law says that you must slow down and stop if necessary if a person is walking in the street you are traveling on. Always look ahead for places where pedestrians may be in the road but not visible, such as around a curve, at the top of a hill, or between parked cars.

Bicycles and Mopeds

Except on limited-access or express state highways where prohibited by posted signs, bicyclists and moped riders have the same rights to use the public roadways as any other drivers. They must obey the same traffic control and right-of way laws. But, like pedestrians, these riders are often difficult to see in traffic and are poorly protected against being hit by motor vehicles.

Be safe, when passing a bicycle or moped:

- Reduce your speed. The wind turbulence or air pressure change caused by your passing vehicle can throw a rider off balance.
- Leave plenty of room between your vehicle and riders.
- If you have too little room in your lane to pass safely, you must wait for oncoming traffic to pass or for the lane to widen.



At night, you should dim your headlights if you meet an approaching bicyclist. Be aware that a bicyclist or moped rider might react to a road hazard and swerve suddenly, just like any other driver. Remember, you should respect the rights of a bicyclist to use the roadway, as you would respect the rights of another driver.

When parked on the side of a roadway, remember to check carefully for approaching bicycles or mopeds before opening your vehicle door.

Motorcycles

Check Twice, Save A Life • Motorcycles Are Everywhere

Motorcycles are motor vehicles, just like cars and trucks. In recent years the number of motorcycles registered in the Commonwealth has grown steadily. Although the typical riding season lasts from March through October, some motorcyclists ride throughout the year. By being aware of their presence and operating characteristics, you can share the road safely and courteously.

Although motorcycles travel as fast as cars and trucks, riders are exposed to additional dangers on the road, including weather and changing road conditions. Because motorcycles lack the safety features of an automobile, the risk of injury to a motorcyclist involved in a crash is much greater.

- **Changing lanes** – While driving on the highway, pay particular attention during lane changes and merges. Motorcyclists are often hidden in blind spots due to their size. Always check your mirrors and blind spots for motorcycles. Signal early, and check twice before changing lanes.
- **Following Behind** – Leave plenty of space between your vehicle and a motorcyclist in front of you. Use a four-second following distance (compared to a two-second for other motor vehicles).
- **Sharing lanes** – Motorcycles have the same right as other vehicles to use the full lane width. Although a motorcycle may physically use a smaller portion of the road, never share a lane of travel. Motorcyclists often move within a lane to prepare for an anticipated traffic maneuver or to avoid road debris, potholes or surface oil. **Never move into the same lane space as a motorcycle, even if the lane is wide and the cyclist is riding to one side.** Crowding into a lane with a motorcycle is illegal and extremely dangerous.
- **Turning at Intersections** – Cars or trucks turning left in front of an oncoming motorcycle cause a high number of crashes. While turning at intersections, pay particular attention to motorcycles in the area. Because motorcycles are smaller and often obscured by other traffic, it is sometimes difficult to accurately judge their speed and position. Although you may have enough time to turn, an approaching motorcyclist may not have time to safely adjust speed. Allowing the motorcycle to clear the intersection first will allow both you and the rider to move safely.
- **Road and Weather Conditions** – Conditions that are minor problems for cars and trucks are often major hazards for motorcycles. Gravel, potholes and slippery surfaces can force a motorcyclist to change speed and direction suddenly. Inclement weather



It is illegal for a motorcycle operator to weave between lanes at any time.

requires increased stopping distance for motorcycles. Please allow sufficient room both in front of and behind a motorcycle in case sudden stopping is required.

By following these few simple tips, you can share the road safely with motorcycles and other motor vehicles, making the Commonwealth safer for all.

Motorcycle Safety

The RMV has a Motorcycle Manual that you must read before applying for a motorcycle license. This manual has detailed information on motorcycle equipment, operation, riding gear, carrying passengers, and rules of the road.

The Motorcycle Manual is available in all RMV branches and online at www.mass.gov/rmv.

Every motorcycle must pass an annual safety inspection. For details, see *Chapter Six*.

Rider Training

The Registry of Motor Vehicles sponsors the Massachusetts Rider Education Program (MREP). Beginner and experienced rider courses are available, and graduates of both courses are exempt from the RMV's road test for a Class M license.

For information on motorcycle rider courses for both beginner and experienced drivers, call 617-351-9585 or visit www.mass.gov/rmv.

For specific questions, call 413-781-0633 to speak to the program coordinator.

A course certificate entitles you to a limited ten percent discount on your motorcycle insurance.

Motorized Bicycle (Moped) Safety

Under Massachusetts law, mopeds fall into the category of "motorized bicycles" (with or without pedals) and are therefore regulated by driver's license rules. You must have a valid driver's license or learner's permit to operate a moped. The following rules apply when operating a moped:

- You may not drive at a speed greater than 25 mph.
- You may not ride on limited-access or express state highways where specific prohibitions against bicycles are posted.
- You must use the proper electronic and hand signals before stopping or turning.
- While you may use bicycle lanes along roadways, you may not ride on off-street recreational paths.
- You and any passenger must wear helmets that meet or exceed the US DOT standard.
- You must obey all traffic laws and regulations.

- You may not carry a passenger if you are operating on a permit.

Any violation is subject to a fine of up to \$100.

Motorized Scooter Safety

You must have a valid driver's license or learner's permit to operate a motorized scooter, and you can be issued citations for violation of motor vehicle laws.

The Registry of Motor Vehicles will not register motorized scooters.

The following rules apply when operating a motorized scooter:

- You may not drive at a speed greater than 20 mph.
- You may not ride on limited-access or express state highways.
- You must wear a helmet that meets or exceeds the US DOT standard.
- You must keep to the right side of the road at all times, including when passing a motor vehicle which is moving in the travel lane of the way.
- You must use the proper electronic and hand signals before stopping or turning.
- You may not ride after sunset or before sunrise.
- You may not carry any passengers.
- You must obey all traffic laws and regulations.

Any violation is subject to a fine of up to \$25 (1st Offense); \$25-\$50 (2nd Offense); \$50-\$100 (3rd + Offense).

All fees are subject to change at any time.

Bicycle Safety Law Changes

Recent law changes have established a new curriculum for municipal police training programs in bicycle safety and traffic enforcement. As more police are trained, we expect to see more effective and widespread enforcement of laws relating to bicycle safety.

Beginning January 1, 2011, a police officer who sees a traffic violation committed by a bicyclist can use the same citation procedure used for motorists. The violation will not affect the bicyclist's driving record, but he/she may get a fine. A bicyclist who is stopped must provide his/her true name and address, if requested, and can be fined for failing to do so or for providing a false name and address. Refusing to do so can also result in an arrest without a warrant.

Companies that rent bicycles must make safety-conforming helmets available to renters.

The amended laws change some rules bicyclists were previously required to follow. More significantly, motorists must change certain behaviors in relation to bicyclists or be cited for a motor vehicle violation. This will encourage motorists to be more careful around bicyclists.

For a bulleted list of laws relevant to bicyclists and laws relevant to motorists in the presence of bicyclists, please see page 102.

Rules of the Road

Travel on public roadways is controlled by signs, signals, pavement markings, and driving laws. No matter what vehicle you drive or what road you drive on, you *must* obey these “rules of the road.”

You must learn how to drive properly on:

- Streets, roads, alleys, and avenues
- Traffic rotaries (circles)
- Highways, expressways, and freeways

You must also learn how to drive safely at:

- Special crossings
- Intersections
- Traffic hazards



CHAPTER 4

Speed Limits

Driving too fast (speeding) is a main cause of motor vehicle crashes. To protect safety, speed laws in Massachusetts are strongly enforced. If you speed, there are severe penalties (see *Chapter Two*). When speeding, you need more distance to react and safely stop your vehicle.

1. You must never travel so fast that it is not safe. That is the fundamental speed law. Even if the speed limit is higher, your speed must be based on the following.
 - **Traffic conditions** – the number of vehicles on the road and their speed
 - **Road conditions** – is the road surface rough or smooth; how much water, ice, or snow is on the road surface; and how wide is the roadway
 - **Weather conditions and visibility** – situations that make it hard to see, including rain, snow, ice, dust, and wind
 - **Pedestrians or bicyclists** - people who are traveling along or across the road

You must lower your speed if there are poor driving conditions or hazards. It does not matter if the posted speed limit is higher.

2. Never drive faster than the **posted speed limit**. Sample speed limit signs appear on the next page. All speed limits are based on ideal driving conditions. If conditions are hazardous, you must drive slower.

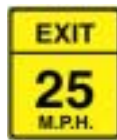
Most roadways in the state have posted speed limits. Speed limits change as you drive on different kinds of roads or enter and exit highways. Limited-access highways, like interstate routes, have speed limits from 50 to 65 mph. Smaller highways have speed limits of 55 mph or lower.

Some roadways may have minimum speeds. There is a minimum speed of 40 mph on the Massachusetts Turnpike. There is a minimum speed of 20 mph in the Boston Harbor tunnels (Callahan, Sumner, and Ted Williams). Even without a minimum speed, a police officer may order a driver to the side of a state highway if he/she is slowing traffic.

3. Unless posted otherwise, **your speed would *not* be reasonable and proper if you drive over...**
 - 20 mph in a school zone
 - 30 mph in a thickly settled or business district
 - 40 mph outside a thickly settled or business district
 - 50 mph on a highway outside a thickly settled or business district

If you drive 40 mph in a heavy rainstorm on a highway with a speed limit of 50 mph, you can get a ticket for driving too fast.

A “thickly settled district” is an area where buildings are fewer than 200 feet apart.



School Zones

The speed limit on roads near schools is 20 mph. This can be posted in various ways. Speed limit signs may have flashing yellow lights or be posted for certain hours of the day. Look closely for signs saying you are approaching or entering a school zone.

Drive carefully when entering a school zone. Be aware of children crossing the street or riding bicycles. Look out for school safety patrols or crossing guards.

Traffic Signals



Traffic signals are lights that control movement of vehicles and pedestrians, usually at intersections. You must know what each light means and obey its signals at all times.

Motor Vehicle Signals

Traffic signals are usually three round lights: red, yellow, and green, from top to bottom. There are also other types of signals, such as single flashing lights or colored arrows.



Steady Red

A steady red light means "stop." Do not go until the light turns green. You can make a right turn on a red light *only* after you come to a complete stop and yield to pedestrians or other vehicles in your path. You may *not* turn on red if a **NO TURN ON RED** sign is posted.

You can turn left on a red light when driving on a one-way street and turning left onto another one-way street. Stop and yield to pedestrians and other vehicles before turning.

Steady Red Arrow

A steady red arrow means the same as a steady red, circular signal (see the preceding *Steady Red* section). However, it only applies to vehicles going in the direction of the arrow. The same rules for "turning on red" apply.



Flashing Red

A flashing red light means the same as a **STOP** sign. Come to a complete stop. Obey the right-of-way laws and proceed when it is safe. If there is a white stop line or crosswalk line, you must stop **before** the line. If there are no lines, you must stop as close to the intersection as needed to see traffic in both directions. Do not enter the intersection.



Steady Yellow

A steady yellow light means the traffic signal is changing from green to red. You *must* stop if it is safe. If you are already stopped at an intersection or a stop line, you may *not* proceed.



Flashing Yellow

A flashing yellow light is a warning. Proceed with caution, and stay alert. Look both ways when crossing an intersection.



Steady Green

A steady green light means “go.” But first, you must yield to other vehicles, bicycles, or pedestrians in the road. If you are crossing an intersection, make sure you have enough room to make it completely through. Never block an intersection. You may make a turn as long as you have enough space to complete the turn and not create a hazard. Look out for drivers who do not obey traffic signals or race through intersections.



Green Arrow

A green arrow means you can make a “protected” turn in the direction of the arrow. When a green arrow displays for your turn, pedestrians and oncoming vehicles should be stopped for red lights. Look closely for signs saying you can *only* turn on a green arrow.



Traffic Lights Not Working



If traffic signals are not working, they will simply flash red or yellow lights. When this happens, follow the rules for flashing lights. If signals are blacked out and not functioning, be cautious and proceed as though there is a stop sign in all directions. Go when it is safe.

Pedestrian Signals

Special lighted signals are often used at crosswalks to tell pedestrians when to cross a roadway. Pedestrians must obey white and orange **DON'T WALK** and **WALK** signals.

Laws for Drivers

- You must yield to pedestrians entering or using a crosswalk in your travel path.
- Never let your vehicle block a crosswalk.
- You must yield to pedestrians if your traffic signal is red or if it is red and yellow.
- Never pass a vehicle that is stopped or slowing for a pedestrian.

Laws for Pedestrians

- Use a crosswalk if one is available.
- At crosswalks with pedestrian signals, push the button on the signal pole and wait for the **WALK** signal. Intersections without push buttons automatically give **WALK** signals.
- Before you cross a roadway, stop at the curb and look left and right for traffic. *Be alert.* Look out especially for cars turning onto the road you are crossing.

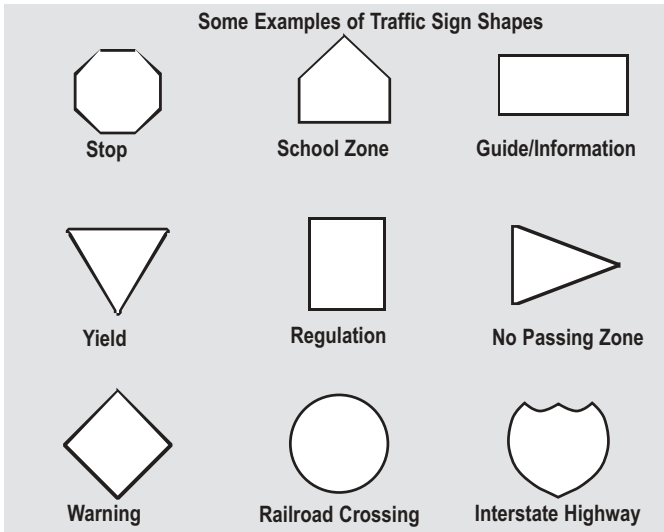


Traffic Signs

Traffic signs control traffic, warn you of hazards, help you get where you are going, and tell you about roadway services. The shapes and colors of traffic signs are important. Sign colors mean the following:

- RED**—stop or prohibition
- GREEN**—direction, shows where you can go
- YELLOW**—general warning
- BLACK/WHITE**—regulation
- BLUE**—motorist service (e.g., gas, food, hotels)
- BROWN**—recreational, historic, or scenic site
- ORANGE**—construction or maintenance warning

Know signs by their appearances so you can recognize them at a distance.



Stop and Yield Signs

A **STOP** sign always means “**come to a complete halt**” and applies to each vehicle that comes to the sign. You must stop before any crosswalk or stop line painted on the pavement. Come to a complete stop, yield to pedestrians or other vehicles, and go carefully. Just slowing down is not enough. If a **4-WAY** or **ALL WAY** sign is added to a **STOP** sign at an intersection, all traffic coming to the intersection must stop. The first vehicle in the intersection or four-way stop has the right of way.

Regulatory



4-WAY
ALL WAY



Yield



No right turn



No left turn



No U-turn



No trucks



No
pedestrians



No bicycles



No parking
allowed
between
posted hours



Traffic moves
only in direction
of arrow



You may not
overtake
another vehicle



You may *not* turn
right after stop-
ping at a red light



All traffic
must go left



Keep to the right of
the upcoming median
or lane divider

Warning



Traffic signal
ahead



Lane merging
from right,
watch for
other traffic



Divided high-
way begins



Winding road,
do not pass



Road
curves right



Roundabout
ahead



Playground



Divided high-
way ends



Crossroad
ahead



Area off paved
road is soft dirt
and could be
hazardous



Stop ahead



School
zone



Two-way
traffic



Road entering
from the right



Road narrows
or right lane
ends



School
crossing



Road slippery
when wet



Road ends
at junction



You may not cross
the yellow line
to pass



Traffic may
flow on both
sides of sign



Pedestrian
crossing



Deer crossing



Railroad
crossing ahead



Maximum height
allowed

Guides and Directions



Interstate highway route marker



Information



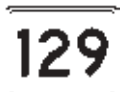
Gas



Telephone



Food



Massachusetts state highway route marker



Hospital



Lodging



Access for those with disabilities



Picnic area



Junction with a numbered route ahead



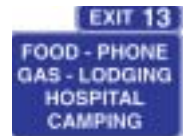
Destination directions



Notice of highway exits, in miles



Point of interest



Motorist services



Destination distances, in miles



Highway mile markers



Parking facilities



Freeway interchange sign



Highway rest area

Road Work



Notice



Work in progress on the side of the road



Road crew flag person ahead



Maintenance or public utility crew ahead



Drum



Roadway detour directions



Work zone flag person



Barricade



Traffic cone



Tubular marker



Lighted directional signs

When you see a **YIELD** sign, slow down and be prepared to stop. Let vehicles, bicyclists, and pedestrians go before you proceed. You must come to a complete stop if traffic conditions require it.

Regulatory Signs

The United States uses an international system of traffic control signs that have pictures and symbols instead of words. The red-and-white **YIELD** and **DO NOT ENTER** signs are examples. There are also signs that use a red circle with a diagonal slash. These signs mean no access or movement is allowed. When you see one, think of the word *no*.

Warning Signs

Yellow warning signs warn you of hazards or changes in conditions ahead. The road layout may be changing, you may be coming to a school zone, or there may be a special situation ahead. Slow down and obey the sign.

Guide Signs

In the “guide signs” category are route markers, distance and destination signs, and informational signs. Green signs give highway directions and guide you through highway interchanges. Blue signs list motorist services, like gas, food, and lodging. Brown signs direct you to public recreational areas, state and national parks, points of interest, and scenic sites.

In Massachusetts, numbered state highway routes are posted on white, rectangular signs with black letters and borders. Interstate highway signs are blue, red, and white shields.

Construction and Maintenance Road Work Warnings

Road work or construction areas are protected from traffic by orange warning signs and other devices. These signs and devices may have warning flags or yellow flashing lights. They help to guide you safely through a work zone and past any hazards.

Many of these warning signs use the same symbols as yellow warning signs. You should take extra care when you see orange signs. Traffic and road conditions around work zones often change quickly.

Road work crews also use “channeling” devices to keep traffic in lanes and away from hazards. Sometimes, electric warning arrow signs will direct traffic near a work zone.

Civilian flaggers direct traffic in some work zones and construction sites. Police officers direct traffic in other sites. When a flag person or police officer directs traffic, you must obey his or her signals or directions.

The Highway Department has a 511 phone service. You can use this to get up-to-date information about traffic and weather conditions, construction projects, and MBTA service. You can also report problems on the road. Dial 511 from your cell phone or 617-374-1234 from a landline. It is available Monday through Friday 5:30am – 9:00pm and weekends and holidays 10:00am – 7:00pm.

Railroad Crossings



There is usually a round warning sign before a railroad crossing. When you see this sign, slow down and prepare to stop. If you see or hear a train coming, do *not* speed up and try to beat the train to the crossing.

The point at which train tracks cross a road is marked with a white crossbuck sign. If more than one track crosses a road, the number of tracks is posted below the crossbuck.

A railroad crossing may also have red flashing lights, a bell, and a red-and-white striped gate that lowers across the roadway when a train is passing. If the lights begin to flash, you must stop at least 15 feet before the light post or gate. You must then remain stopped until the gate raises and the lights stop flashing.

Failure to stop is a violation that has a heavy fine. Even if you do not see a train coming, *never* drive around a lowered gate or ignore the flashing lights.

Pavement Markings

Lines, symbols, and words are often painted on a roadway to help direct drivers and control traffic. You must know what the different lines and colors mean and obey them.

White and yellow lines are used on pavement edges and between lanes to keep vehicles in line. The lines may be solid or broken (long dashes), single or double. A solid white or solid yellow line that turns into a dotted line (short dashes) is a continuation of the line through an intersection or highway interchange.

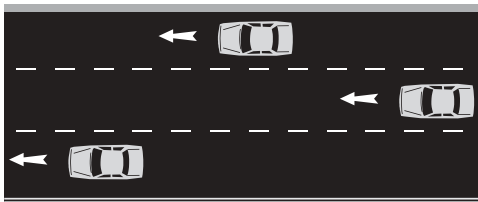
Unless you are turning, exiting a highway, or changing lanes, always stay between the lane lines.

White Lane Lines

White lane lines separate lanes of traffic moving in the **same** direction. Single white lines may also mark the right edge of the pavement.

Broken White Line

A broken white line separates two lanes traveling in the same direction. Once you have signaled, and it is safe to do so, you may cross this line when changing lanes.



Solid White Line

Broken white lines separate lanes in the same direction.

A solid white line marks the right edge of the roadway or separates lanes of traffic going the same direction. You can go in the same direction on both sides of this line, but you should not cross it unless you need to avoid danger.

Double Solid White Line

A double solid white line separates two lanes of traffic going in the same direction. Crossing a double solid white line is not allowed.

Yellow Lane Lines

Yellow lane lines separate lanes of traffic moving in **opposite** directions. Single yellow lines may also mark the left edge of the pavement on divided highways and one-way streets.

Broken Yellow Line

A broken yellow line separates lanes of traffic moving in opposite directions. Stay to the right of the line, unless you are passing a vehicle in front of you. When passing, you may cross this line temporarily when it is safe to do so.



Double Yellow Lines: One Solid, One Broken

One solid yellow line and one broken yellow line separate opposite lanes of traffic. If the *solid* yellow line is closer to you, you *cannot* cross the lines. If the *broken* line is closer to you, you can *only* cross the line to pass another vehicle when it is safe to do so.



Double Yellow Lines: Both Solid

Two solid yellow lines prohibit vehicles from crossing them to pass another vehicle. You may not cross these lines unless turning left when it is safe to do so.

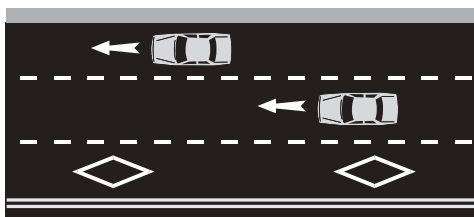


Do not cross a double yellow line unless turning left.

Words and Symbols

Words or symbols may be painted on roadway surfaces to help guide, warn, or regulate drivers. Words or symbols are often used with traffic signs, signals, and other pavement markings. White arrows show lane directions or restrictions.

A white diamond symbol means there is a special lane restriction, like “high-occupancy vehicle (HOV) only,” “bus only,” or “bicycle only.”

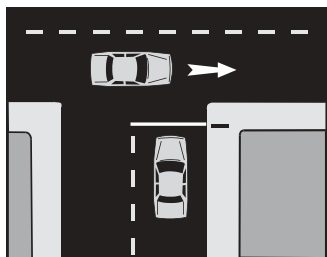


In the above three-lane diagram, the far left travel lane is reserved for buses or high-occupancy vehicles (HOVs), like those used in carpools.

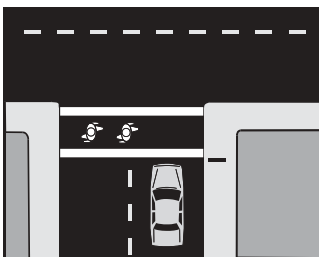
Stop Lines and Crosswalks

An intersection or pedestrian crossing with a stop sign, yield sign, traffic signal, or traffic officer may have a solid white **STOP** line painted across it. You must stop your vehicle behind this line.

A crosswalk is a pair of white lines painted across a lane to guide pedestrians from one side of the road to the other. A painted crosswalk also warns drivers that pedestrians are crossing the road. Crosswalks may have diagonal or vertical lines painted between the two main lines.



Stop line



Crosswalk

Lanes, Intersections, and Turns

This section explains the rules of driving that apply to any roadway or intersection. In addition to standard travel lanes, there are...

- Special lanes for turning
- Restricted lanes for buses, car pools, and bicycles
- Breakdown lanes on the right-hand shoulder of highways and expressways

Signaling

When you are driving on a roadway, you are expected to drive straight ahead, unless you show otherwise. This is why you must use signals whenever you make *any* move in traffic. Your signals alert pedestrians and motorists of what you are doing and give them time to react.

Regardless of the kind of vehicle you are driving, you *must* use signals. If the electronic signals on your vehicle are not working, you must use the three hand signals shown in the margin. Signals should be made through the driver's side window.

You must signal in certain situations:

- Changing lanes
- Turning at an intersection or into a driveway
- Pulling away from a curb
- Pulling over to the side of the road
- Entering or exiting an expressway or a freeway



Left turn



Right turn



Slow or stop

Once you have completed your move, you must turn your signal off. Any time you want to turn, merge, join traffic from a stopped position, or change lanes, you must...

1. Check your mirrors for traffic behind you and check your blind spot on the side you are moving or turning toward.
2. Signal your intent to move.
3. Make your move.

Bicyclists may use either arm to signal.

Using Lanes

Always use traffic lanes as they are defined by pavement markings and road signs. Many intersections have special lanes marked for turns. Follow the rules of the road, using the proper lanes for turning and driving straight ahead.

On roadways with two or more lanes in your travel direction, use the right lane for driving unless...

- You are passing another vehicle.
- You are making a left turn.
- The right lane is blocked.

Here are a few more general rules for using lanes properly:

- Never change lanes in the middle of an intersection. It is illegal and dangerous.
- As a general rule, do *not* use a highway breakdown lane for travel or passing. On some highways, however, you may use the breakdown lane for travel during specific times.
- If you come to a curve in the road and cannot see ahead, keep to the right and slow down.

The use of breakdown lanes as travel lanes is very restricted, and hours of use are posted clearly.

Special rules for motorcycles:

- Do not ride along pavement lines, between lanes of traffic.
- Ride no more than two abreast.
- Unless your motorcycle can safely drive at minimum posted speeds, do not travel on highways or expressways.

Restricted Lanes

You must not drive in lanes posted as restricted, except when preparing for a turn. Look for signs like the one to the right.



Highway Driving

A divided highway has separate roadways for traffic in opposite directions. There are often multiple lanes on each side. Highway speed limits are usually between 45 to 65 mph.

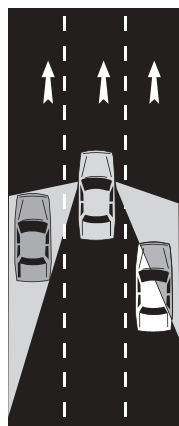
Some highways cross other roads and are controlled by traffic signals. Others are “controlled access,” which means they have no signals or intersections. You enter and exit these highways using ramps. These highways are called “expressways” or “freeways,” and you enter or exit these highways at “interchanges.” In Massachusetts, interstate Routes 90

and 495 and State Highway 128 are examples of expressways.

Highway driving can make any new driver nervous. Following are some useful tips for driving on highways:

Entering and Exiting the Highway

- Make sure you are in the proper lane well in advance so you can safely enter or exit the highway.
- Yield the right-of-way to drivers already on the highway.
- When you enter the highway, increase your speed to match the vehicles already on the road.
- **If you miss your exit, do *not* stop. Never back up on the highway.** Get off the highway at the **next** exit and look for signs showing you how to rejoin the road in the other direction.
- Be sure to signal your exit at least 500 feet before you reach the exit ramp.
- As you leave the highway and drive along the exit ramp, slow to the posted exit ramp speed limit.



The accompanying diagram shows the “blind spots” around your vehicle, in which you cannot see with your vehicle’s mirrors.

Driving on the Highway

- Make sure your vehicle operates good and can drive at highway speeds.
- Stay to the right and only use the left lane for passing. On an expressway with three or more lanes in your direction, use the far right lane for slower driving, the middle lane for faster driving, and the far left lane for passing.
- Drive in the middle of your lane, staying between the lines.
- Use your rearview mirror, check your blind spots, and use your directional signals when changing lanes. Remember these three steps: **(1) look, (2) signal, (3) move.**
- Do not drive in another driver’s blind spot. If you are in another driver’s blind spot, safely drive through the blind spot as quickly as you can.
- Look out for vehicles entering the highway and any vehicles or pedestrians in the breakdown lane.
- Do not weave in and out of traffic.
- Be aware of road construction signs, work crews, and signs that require you to reduce speed or change lanes.

Take extra care when exiting a highway that uses breakdown lanes as travel lanes. Look to your right and check your right-hand blind spot before exiting.

- Avoid “highway hypnosis.” If you’ve been driving for a long time and feel tired, you should get off the highway at the next exit, rest stop, or service area.
- If you plan to drive far, stop and stretch every two hours or every 100 miles.

The Highway Department has a 511 phone service. You can use this to get up-to-date information about traffic and weather conditions, construction projects, and MBTA service. You can also report problems on the road. Dial 511 from your cell phone or 617-374-1234 from a landline. It is available Monday through Friday 5:30am – 9:00pm and weekends and holidays 10:00am – 7:00pm.

Intersections

Intersections are where two or more roadways meet. Traffic flow at intersections is often controlled by signals, signs, and/or pavement markings. The next two sections in this chapter, *Turns* and *Right-of-Way Rules*, describe the rules and procedures you must follow at intersections.

Some roads have multiple turning lanes. While on these roads, you should follow the applicable road signs or markings.

Intersections are very important to the flow and safety of traffic. **It is illegal to block an intersection with your vehicle.** When driving through an intersection, you must obey all signs or traffic signals. **You may *only* enter an intersection or drive across a crosswalk if there is enough room for you to drive through safely. Blocking the paths of other vehicles or pedestrians in an intersection or a crosswalk is dangerous. This causes traffic jams and violates traffic law.**

Turns

Many motor vehicle crashes are caused by improper turns. Take the following steps to turn safely.

1. Plan for the turn. Do not turn suddenly.
2. Signal your turn at least 100 feet before making the turn. On a highway, signal at least 500 feet before a turn. It is best to signal before you apply your brakes, so you make your intentions known to other drivers.
3. Reduce your speed.
4. Check your mirrors for traffic behind you and check the blind spot on your turning side.
5. Give the right-of-way when appropriate (see the *Right-of-Way Rules* section).
6. Complete the turn carefully, making sure you turn into the proper lane.

The road diagrams on the next pages show proper turns. It is very important that you turn from and turn into the proper lane. Look for yellow or white pavement lines marking the road you are turning into. If you need to change lanes, do so *after* you turn. Here are a few rules:

- Turn from the lane closest to the lane you want to enter. For a right turn, turn from the far right lane. For a left turn, turn from the lane closest to the center lane.
- Do not swing your vehicle out of your lane when making a turn or swing wide through the intersection. Keep your vehicle centered in the middle of the lanes you are leaving and entering.

- Once you have started a turn through an intersection, you must follow through. Do not stop in mid-turn and change direction. If you decide you do not want to make the turn, simply drive to the next intersection and work your way back.

Turns on Red

You must come to a complete stop at a red traffic light. You may then turn *right* unless a **NO TURN ON RED** sign is posted. You must first give the right-of-way to pedestrians and other vehicles. You may turn *left* on red *only* if you are turning from a one-way street onto another one-way street. The same rules that apply to right turns apply to left turns.

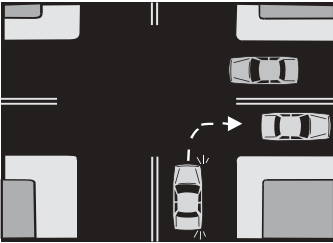
U-Turns

A U-turn is a tight left turn that puts you in the opposite direction.

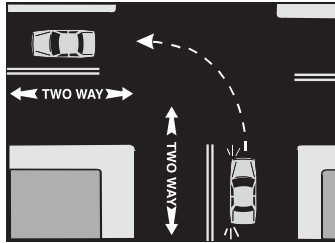
You can make a U-turn if your path is clear and it is safe to do so. You cannot make a U-turn if a NO U-TURN sign is posted.



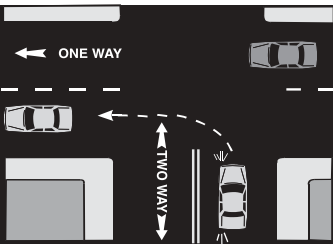
- You may only make a U-turn from the lane closest to the center line.
- Make sure you have enough room to complete the turn. Do not create a hazard for oncoming vehicles.
- Do not make a U-turn at the crest of a hill, near a curve, or anyplace where you or other drivers cannot see 500 feet away.



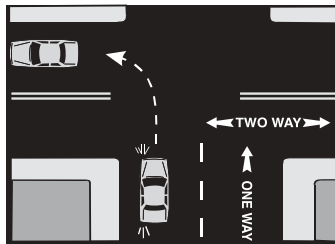
Right turn



Left turn from a two-way road to a two-way road



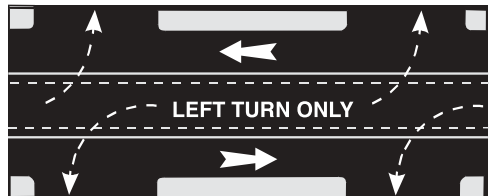
Left turn from a two-way road to a one-way road



Left turn from a one-way road to a two-way road

Left Turns from Center Lanes

On some two-way roads, a center lane may be marked as a common left-turn lane to be used by vehicles in both directions. You may *not* travel in a center turning lane.



Three-Point Turns

When there is not enough room for a U-turn, you may consider a three-point turn. This will put you in the opposite direction. This turn should only be used when all of the following conditions are met:

- The street is narrow
- There is good visibility
- There are no public driveways to turn into
- The traffic is light
- The turn is legal
- There is no other option

Following are the steps of a three-point turn.

1. Position yourself as close as possible to the right edge of the curb. Signal a left turn. Check for traffic and pedestrians in both directions (including your blind spot). Wait until you have a 20-30 second gap to complete the turn.
2. Move slowly and turn the steering wheel quickly to the left. This will bring the vehicle perpendicular to the street about two feet from the curb. Come to a stop.
3. Turn your steering wheel fully to the right. Check for traffic in both directions (including your blind spot). Shift into reverse and start backing up, while looking over your right shoulder.
4. Back up to the opposite curb, stopping just before the curb.
5. Check again for traffic in both directions (including your blind spot). Signal a left. Shift into drive (or for manual cars, first gear) and accelerate to the proper speed.

Right-of-Way Rules

“Right-of-way rules” help drivers handle traffic situations not controlled by signs or signals. These rules are based on safety and courtesy. They do not give you any “rights.” **Remember, the right-of-way is something you give, not take.** If another driver does not follow these rules, you should always give the right-of-way.



This section describes many right-of-way rules. Other rules, like giving the right-of-way to emergency vehicles, are covered later in this chapter.

Pedestrians

You must always yield to pedestrians who are in a roadway. Also note these rules concerning pedestrians:

- If you are stopped at a traffic light that turns green, you must yield to pedestrians already in the crosswalk.
- When turning, look for pedestrians. Pedestrians have the right-of-way if using a sidewalk or crossing a driveway or an alley.
- Always yield to visually impaired (blind) people crossing a street. You must remain stopped until the person has safely crossed. Do not honk or wave the person on. Never



pass another vehicle which is stopped. Blind pedestrians may use a white cane or a guide dog. The White Cane Law states that a driver must come to a complete stop when a blind pedestrian is crossing a street.

Intersections Not Controlled by Signs or Signals

Slow down at an uncontrolled intersection. Look left and right for oncoming traffic and proceed if the way is clear. However:

- You *must* yield the right-of-way to any vehicle that has entered the intersection from your *right* or is coming from your right.
- Look for traffic coming from the left. Even though you may have the legal right-of-way, make sure that the other driver is yielding before you proceed.

Four-Way Stop

At an intersection with stop signs in all directions, you must yield the right-of-way to...

- Another vehicle that has **already** come to a full stop
- A vehicle directly to your *right* that has stopped at the **same time** as you



At a four-way stop, vehicles must go in the order they stopped. The first to stop is the next to go. If in doubt, give the right-of-way to the driver on your right.

Four-way stop intersections can cause confusion. Try to make eye contact with the drivers of other vehicles to judge their intentions and avoid accidents.

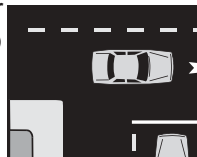
Turning Left

When making any left turn, you must first yield the right-of-way to any...

- Oncoming vehicle
- Vehicle already in the intersection
- Pedestrians or bicyclists crossing your intended path of travel

Private Roads, Driveways, and Unpaved Roads

When entering a paved thoroughfare from a private road, a driveway, or an unpaved road, you must stop. You must then give the right-of-way to pedestrians, bicyclists, or vehicles on the road you are entering.



You must give the right-of-way at throughways.

Throughways

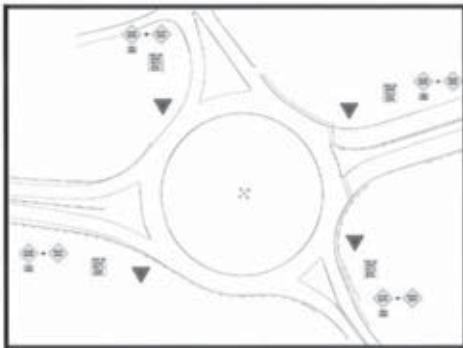
On a designated throughway, you must yield the right-of-way to traffic on the throughway before you turn.

Intersection of Single or Two-Lane Road and Multiple-Lane Road

If you are on a single or two-lane road and come to an intersection with a divided highway or a roadway with three or more lanes, you must yield the right-of-way.

Rotaries

Rotaries are much more common in Massachusetts than in other parts of the country. A rotary is an intersection of roads coming together from several directions. It allows you to continue through without stopping at a STOP sign or a traffic signal. There are yield signs at the entrance to a rotary. There is a physical barrier (the Central Island) in the center that forces traffic to travel around it. Big rotaries are designed to handle traffic traveling at up to 40 miles per hour.



Traffic in a rotary circles counter- clockwise.

Rotary Traffic Rules

Traffic travels counter-clockwise in a rotary. **Always yield the right-of-way to vehicles already in the rotary** (unless told differently by signs or police officers) **and to pedestrians**. Use your turn signals in the same way as any other intersection. Travel through the rotary and, when you are ready to exit, use your right turn signal.

Choosing a Lane

If the rotary has a single lane, you must enter from the right lane of the road you are coming from. You must exit onto the right lane of the road you intend to travel on.

If the rotary has multiple lanes, look for signs to help you choose the proper lane. If there are no signs, you should do the following:

- For a quarter-turn, or to continue straight ahead, enter the rotary from the right lane. Stay in that lane, and exit onto the right lane.
- For a three-quarter-turn, or a U-turn, enter the rotary from the left lane. Travel through the middle or inner lane. Exit onto the right lane. If coming from a road with a single lane, you should stay in the right lane for the entire turn.

In a multiple-lane rotary, there may be traffic on both sides of your vehicle. Do not attempt to move out of your lane until it is safe to do so. If you miss your exit, don't get upset. Check the traffic around you. If it is safe to do so, go around again and position your vehicle to properly and safely exit the rotary. **Do not stop in the rotary.**

Roundabouts

Roundabouts are similar to rotaries. They are generally much smaller than rotaries and have a smaller central barrier. Most roundabouts have yield lines on the pavement and crosswalks for pedestrians. Roundabouts are used on busy streets and their small size requires vehicles to reduce speed to 25 miles per hour or less. When entering a roundabout, you should follow the same rules as for a rotary. Slow speeds in roundabouts make them safe for cyclists.



If a roundabout has more than one lane, choose your lane the same way you would in a rotary.

Rules for Passing

In general, the law requires you to drive on the right side of the road. When passing is allowed, you should pass on the left. Passing on the right is allowed only in certain situations.

You should pass a pedestrian, bicyclist, or motor vehicle *only* when it is necessary and safe to do so. **You may *not* exceed the speed limit when passing.** If you have any doubt, do not pass.

Never use a breakdown lane, the shoulder of a road, or a sidewalk for passing another vehicle.

Passing on the Left

On a multiple-lane roadway with several lanes in one direction, you must use the middle and left lanes for passing. A broken yellow line on a two-way road allows you to cross over into the oncoming lane temporarily to pass a vehicle, **if it is safe to do so.**

The following steps go with the diagram to the right:

1. Keep a safe distance between you and the vehicle you want to pass. Check the passing lane to make sure it is clear. If you are crossing a broken yellow line to pass, you must be able to see clearly **at least 400 feet** in front of you. Check your mirror and your blind spot.
2. Signal left and gradually move into the passing lane.
3. Maintain your speed until safely past the other vehicle, then signal right.
4. Make sure there is enough distance between you and the other vehicle before moving back into the right lane. Wait at least until you can see the vehicle's headlights in your mirror.
5. You must return to the right lane before any oncoming vehicle comes within 200 feet of you. Turn off your signal once you have returned to the right lane.



If you are operating a motorcycle, you may only pass single file.

Passing on the Right

Passing on the right is only allowed in certain circumstances. It can only be done when the road is clear and is wide enough for two or more lines of motor vehicles. You can pass on the right in the following circumstances:

- The vehicle you are passing is making, or is about to make, a left turn.
- You are driving on a one-way street.
- You are driving on a road where traffic moves in one direction (such as a multiple lane highway).

Being Passed

If you are being passed by another vehicle, you must slow down and stay to the right. Allow the other driver to pass safely. Do *not* speed up.

Road Respect/Sharing the Road

The Governor's Highway Safety Bureau has a program called "Road Respect-Tame the Rage." It is enforced by the RMV and the Massachusetts State Police. The idea is that a little courtesy will not kill you and it will go a long way towards increasing safety on our roads. We ask that you show respect to people you share the roadway with. Do not let your anger get the best of you when someone else drives irresponsibly.

How Can You Identify Aggressive Drivers?

Aggressive Drivers often do the following:

- Cut people off
- Exceed the speed limit
- Switch lanes without signaling
- Tailgate
- Run red lights
- Prevent other motorists from passing them

What Can You Do When confronted by an Aggressive Driver?

- Attempt to get out of his/her way.
- Do not challenge that person.
- Avoid eye contact.
- Ignore rude gestures.
- Wear your safety belt. It will keep you in control of your vehicle and protect you in a crash.

Do not become an Aggressive Driver!

Control your anger and do not let the situation get worse. Do not question how aggressive the other driver may be. If you have a cell phone, call the State Police at 911 to report dangerous drivers.

State Police patrol highways in unmarked vehicles. They look for aggressive drivers who put everyone in danger. If you are arrested for aggressive driving, the Registrar may review your case. The Registrar can suspend your license and registration before a court date if you are a threat to public safety.

Be a safe driver, be courteous, and always treat other drivers as you would like to be treated. As the driver of a passenger car, van, small truck, or motorcycle, you must constantly share the roadway with other people and other vehicles.

School Buses

Yellow school buses have flashing red lights and stop signs that fold out from the driver's side. School pupil transport vehicles, like vans, station wagons, or family sedans, have flashing red lights and **SCHOOL BUS** signs on top. Drivers use these warning signals when letting pupils on and off.

If a school bus or a school pupil transport vehicle has its lights flashing and a stop sign extended, you *must* stop. It is the law. It does not matter which side of the road you are traveling on. Remain stopped until the lights stop flashing or the stop sign folds back.



Obey school bus signals from either side of the road.

A first violation of this law can cause a license suspension and a \$250 fine.

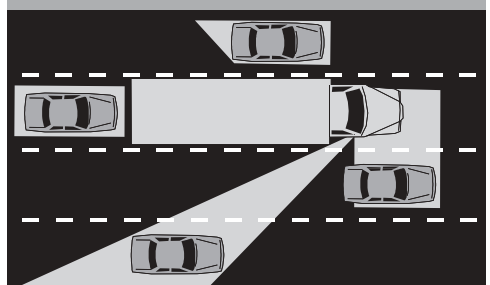
Even after the warning signals have stopped, you should proceed slowly and continue to look for children.

The only exception to this law is if a school bus has stopped on the other side of a divided highway with a barrier between travel directions. In this case, you do not have to stop.

Trucks and Other Large Vehicles

One of the worst “sharing-the-road” problems is between large vehicles, like trucks and buses, and smaller ones, like cars and motorcycles. Following are some rules for driving safely among trucks, tractor-trailers, and buses:

- **Blind Spots** — It is easy for a car or a motorcycle to be hidden in a large vehicle's blind spots. Therefore, do **not** follow closely behind a truck or a bus. When driving near a large vehicle, be aware of the driver's blind spots on the right, left, front, and behind.
- **Tailgating** — If you cannot see a truck's rearview mirrors, you are tailgating. Tailgating is dangerous. By following too closely, you are losing the safety cushion you need if the vehicle in front of you stops short.
- **Cutting in Front** — Drivers of large vehicles try to keep a safety cushion of space around them. A large truck may need twice as much distance to stop as an automobile or a motorcycle, especially when roads are wet or icy. Do not drive into the space immediately surrounding a large vehicle. Do *not* pull in front of a large vehicle and slow down or stop suddenly. The driver will have too little room to stop and will crash into you or may risk “jackknifing” by trying to stop suddenly at highway speeds.



This diagram shows the various blind spots for a tractor-trailer

Studies by the National Safety Council and the Insurance Institute for Highway Safety show that a fully loaded tractor trailer may take twice as far to stop as a passenger vehicle.

- **Driving Too Slowly** — On a multiple-lane highway, trucks and buses can only drive in the two right-hand lanes. They use the far right lane for normal travel and the second lane for passing. If you travel in the second lane, stay with the flow of traffic and do not drive below the minimum speed limit.

Driving too slowly in this lane can create a bottleneck of large vehicles. This can increase highway traffic hazards. If the driver of a truck or bus wants to pass you, move over when it is safe to do so and let the vehicle pass.

- **Passing on the Left** — It takes longer to pass a tractor-trailer or a bus than another car or a motorcycle. Be aware that large vehicles travel slower uphill and faster downhill.

- **Passing on the Right** — Do not pass a truck or bus on the right unless it is absolutely necessary. Large vehicles make wide turns, and sometimes they must move to the *left* before making a wide turn to the *right*. If you are next to a truck or bus, you are probably in a blind spot. Watch for possible right-hand turns, and stay safely behind until you know what the driver is doing.



If you are thinking about passing, remember that a tractor may be pulling more than one trailer.

- **Truck or Bus Approaching** — If a large vehicle is coming toward you on an undivided road, stay to the right. You will avoid being sideswiped or shaken by air turbulence. At intersections, take extra care in judging the speed of the oncoming vehicle. Trucks and buses cannot slow down easily if you cut in front of them to turn.

Buses and Trolleys

Be very careful near public transport buses and trolleys. Buses stop often.

Be courteous and allow signaling buses to pull away from bus stops. Be cautious of pedestrians entering or exiting buses or trolleys.



State law is very specific about driving near trolleys and their tracks:



- You must *not* drive closer than eight feet of a trolley passenger step when the trolley is letting passengers on or off.
- Look for oncoming trolleys before crossing any tracks. Do *not* turn in front of a trolley if one is approaching.
- Keep a safe distance between your vehicle and a trolley if the trolley is sharing the roadway.

Remember, a trolley's path is limited to the tracks. A trolley driver cannot swerve to avoid you.

Slow-Moving Vehicles

Most farm vehicles, construction rigs, and other slow-moving vehicles have orange warning signs attached to the back. If you approach one, reduce your speed and use caution. Treat them similar to bicyclists and pedestrians. Leave plenty of space around the vehicle if you plan to pass.

Funeral Processions

You *must* yield the right-of-way to all vehicles in a funeral procession until they have all passed. **It is illegal to cut through or disrupt any vehicles in a funeral procession.**

Road Workers and Repair Crews

Although road construction and maintenance sites are often well posted with warning signs, you must take extra care to ensure the safety of anyone working on a roadway. Orange warning signs and work equipment usually mean that people are on foot nearby. Follow road work signs carefully, and stay alert. Look for sudden changes in road direction or condition. Be prepared to stop. If you are cited for speeding in a “work area”, you will pay double the appropriate fine.



Animals and Horse-Drawn Vehicles

Always give the right-of-way to an animal that someone is leading, riding, or driving. Animals are easily scared by motor vehicles. When you get near an animal or horse-drawn vehicle, be careful and do the following.



- Slow down.
- Stop if the animal or vehicle is coming toward you or is crossing your path. Allow the animal to pass.
- If the animal or vehicle is traveling in the same direction as you, allow plenty of room for passing safely. Drive at a reasonable speed.
- Do not honk your horn or make a loud noise.
- If the animal you are passing looks scared, you must pull your vehicle to the side and stop.
- Proceed only when it is safe.
- You must stop if a rider or driver signals you to do so.

The law applies to horses, cows, and any other draft animals.

In rural areas, take extra care when passing hay rides. These are usually animal drawn and full of passengers.

Parking

Stopping and parking your motor vehicle is regulated. It is important to ensure safety and a smooth traffic flow. You should practice parking maneuvers and know the parking laws.

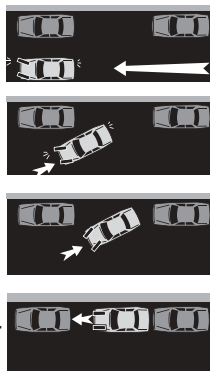
Here are some general rules about stopping and parking:

- You must not create a traffic hazard while parking or while your vehicle is stopped.

- You must always make sure that you leave at least a 12-foot wide, clear roadway for traffic to pass.
- When you leave your vehicle by itself, state law requires you to stop the motor, set the brake, make sure the ignition is locked, remove your key, and lock the door.
- When you pull away from the curb, you must wait for vehicles in the travel lane to pass. You must then signal that you are pulling out and move slowly into traffic.

Parallel Parking

1. Choose a space that is long enough for your vehicle. Make sure parking is legal.
2. Pull up alongside the vehicle in front of the space. Leave about two or three feet between your vehicle and the parked one. Position your vehicle so that your rear bumper or front seats line up with the rear bumper or front seats of the other vehicle.
3. Look behind you *both* ways to check for pedestrians and other traffic.
4. Slowly back up and turn the steering wheel all the way toward the curb. Rest your foot lightly on the brake. Look directly out your rear window. Do *not* use your mirrors.
5. When your front passes the parked vehicle's rear bumper, turn your steering wheel the opposite way and continue backing up. Do not hit the vehicle behind you.
6. When you are back far enough, straighten your wheels and pull forward. Make sure you keep enough space in front of and behind you so that other vehicles can get out.

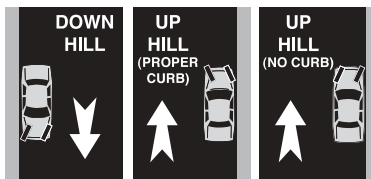


The steps in parallel parking

Parking on Hills

Always set your parking brake and leave your vehicle in gear when parking on a hill if you have a manual transmission. If you have an automatic transmission, set your parking brake and shift into park. You must turn your front wheels in the proper direction to stop it from rolling downhill if the brake fails.

- **No Curb** — Turn your wheels *inward*, toward the edge of the road.
- **Uphill Against a Curb** — Turn your wheels *outward*, toward the travel lane.
- **Downhill Against a Curb** — Turn your wheels *inward*, toward the curb.



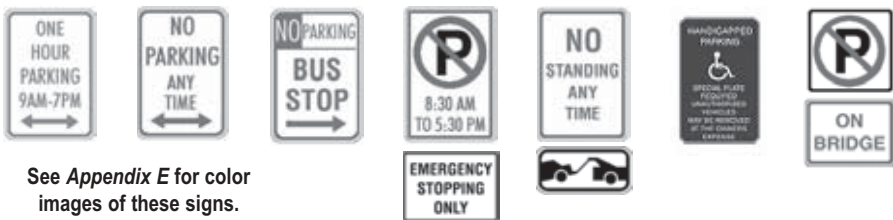
Parking Regulations

Parking regulations are generally determined by state law. They are enforced by local cities and towns. If you park in a business or residential district, your vehicle must be no more than 12 inches from the curb. The only exception is if angled parking is allowed. Parking

spaces are often marked by white road lines. You must park your vehicle between these lines. You may not take part of two spaces. In Massachusetts, you may *not* park your vehicle in certain places.

- In a zone posted with a NO PARKING, NO STANDING, or NO STOPPING sign
- In a bus stop (as of April 2009, the penalty for parking in a posted bus stop is \$100)
- In a taxi stand
- In a zone and at a time posted for street cleaning
- In a posted loading zone
- Within 20 feet of an intersection
- In a crosswalk, in front of a driveway, or in front of a handicap-access ramp
- In a zone posted for HP-DV parking only (disabled person plates or placards, disabled veteran plates). Violating this parking regulation carries a heavy fine.
- Within ten feet of a fire hydrant or fire lane
- On a sidewalk, curb, center traffic island, or median
- During a weather or roadway emergency
- Facing the wrong way against traffic
- On a state or an interstate highway, unless authorized
- On a roadway in a rural area or outside a thickly settled district
- In a traffic lane next to a row of parked vehicles (“double parked”)
- To make nonemergency repairs to your vehicle

You may get a citation with a fine for violating a parking regulation. Unpaid parking tickets can stop you from renewing your license or vehicle registration.



Parking Meters

Many public parking spaces are operated by coin-fed meters. Rules and time limits usually apply during posted days and hours.

If you park longer than allowed or fail to pay the meter fee, you may be issued a parking citation.

Parking Permits

Many cities and towns give special parking permits to residents. Certain streets have **RESIDENT PERMIT PARKING ONLY** signs. If you do not have a permit or a special visitor's placard, you may not park there. Contact your local city or town to find out how to get a permit.

Miscellaneous Rules of the Road

Listed below are laws that have not yet been covered. **It is illegal to...**

- Drive on a bet or wager
- Drag race
- Throw garbage or glass onto a roadway or onto public or private land
- Throw lighted cigarettes or anything that can cause a fire near a forest or open field
- Bypass or cut out a motor vehicle's muffler system

You must return used motor oil, transmission fluid, and other hazardous materials to the place you bought them. The garage or store that sold it to you is responsible for disposing of it.

Rules for Pedestrians



See *Appendix E* for color images of these signs.

Pedestrians must remember the following rules:

- State law requires you to use a crosswalk when one is available. If an intersection has a traffic signal, press the button and wait for the **WALK** signal. Intersections with no push buttons automatically give **WALK** signals. Be patient!
- Do not cross if the signal says **DON'T WALK**.
- Before you cross a roadway, stop at the curb, look left, look right, and look left again for traffic. Do this even on a one-way street. Be alert while crossing. Be especially alert at intersections that allow motor vehicles to turn right on red.
- If you must enter the street from between parked cars, stop and look before crossing.
- You must use a sidewalk when one is available. When no sidewalk is available, you should walk on the shoulder **facing** traffic.
- Never walk along or across expressways, interstate highways, or turnpikes.
- Wear clothing with bright colors or reflective strips, especially at night.

Laws for Bicyclists and Motorists in the Presence of Bicyclists (as amended by Chapter 525 of the Acts of 2008)

Bicyclists have the right to use all public ways in this state except limited access or express state highways where signs specifically prohibiting bicycles have been posted. When riding on public ways, bicyclists must obey the same basic traffic laws and regulations that apply to motor vehicle operators. The rules for bicycles (including amendments) are listed here.

As a bicyclist: (from Chap. 85, Section 11B)

- You can keep to the right when passing a motor vehicle moving in the travel lane.
- You must signal your intent by either hand to stop or turn. However, the signal does not have to be continuous or be made at all if both hands are needed for the bike's safe operation.
- You can ride on sidewalks outside of business districts for safety unless banned locally.
- If on the sidewalk, you must yield to pedestrians and give an audible signal before overtaking or passing (no sirens or whistles).
- No more than two bicycles can be operated side-by-side. On a roadway with more than one lane in the direction of travel, you must stay in one lane and not unnecessarily restrict a passing vehicle's ability to overtake you.
- You must ride on or astride a permanent seat affixed to the bicycle. A passenger must also ride on a permanent seat attached to the bike or to a trailer towed by the bicycle.
- You cannot transport a person who is between one and four years old or who weighs 40 lbs. or less except in a "baby seat" attached to the bicycle. The person must be in a harness, be seated in an upright position, and their hands and feet must be protected from hitting the wheel spokes. A person can ride on or astride a seat on a tandem bicycle if the person can reach the pedals and handlebars. You cannot transport a child under the age of one year on a bicycle.
- A bicycle helmet approved by the U.S. Consumer Product Safety Commission must be worn by a bicycle operator or passenger under 16 years old. It must be secured to the person's head when the bicycle is operated on a public way or bicycle path, unless the passenger is secured in an enclosed trailer which protects his/her head.
- You must give an audible warning (other than a siren or whistle) when necessary to ensure safe operation.
- You can park your bicycle on a way or a sidewalk, but only if it does not obstruct vehicle or pedestrian traffic.
- You cannot let the bicycle be pulled by another vehicle and can only tow a bike trailer.
- You cannot carry any objects that would interfere with the safe operation of the bicycle and must keep one hand on the handlebars at all times.
- You must have a proper working brake system to stop from 15 MPH within 30 feet.
- From a half hour after sunset to a half hour before sunrise, you must have a white lamp in front visible from up to 500 feet and a rear facing red light or reflector visible up to 600 feet.
- From a half hour after sunset to a half hour before sunrise, you must have a reflector on each pedal or reflective material on yourself or on the bicycle visible up to 600 feet.
- Your handlebars cannot be set at a height above your shoulders while gripping them and you cannot extend the fork from its original manufacturer's design.
- You must report any accident involving personal injury and any accident involving property damage in excess of \$100 to the police in the municipality where it occurred.

As a motorist in the presence of bicycles:

- **Do Not Cut-Off After Passing:** When passing a bicycle traveling in the same direction that is on your right, you must not return to the right until you have safely passed the overtaken bicycle. (Chap. 89, Sec. 2)
- **Do Not Make an Abrupt Turn After Passing:** When passing a bicycle near an intersection or driveway where you want to turn right, you cannot turn unless you are at a safe distance from the bicyclist and you can make the turn at a reasonable and proper speed. (Chap. 90, Sec 14)
- **Do Not Squeeze Bikes in a Narrow Lane:** If a lane is too narrow to pass a bicycle at a safe distance, be **PATIENT** until you can safely use an adjacent lane or **WAIT** until it is safe to pass in the lane you share. (Chap. 89, Sec. 2)
- **Do Not Fail to Yield When Turning Left:** When turning left at an intersection or into an alley, private road, or driveway, you must yield the right of way to a vehicle approaching from the opposite direction, including a bicycle, if it is in the intersection or close enough to be an immediate hazard. (Chap. 90, Sec 14)
- **Watch for Bicycles on Your Right:** Bicycles can legally ride to the right of motor vehicle traffic. The law says it is not a defense for a motorist causing an accident with a bicycle that the bicycle was to the right of vehicular traffic. (Chap. 90, Sec 14)
- **Do Not Open a Door Without First Looking:** Drivers and passengers can now be fined up to \$100 for opening a vehicle door into an oncoming bicycle. (Chap. 90, Sec 14)
- **Bicyclists can now ride two bicycles side-by-side.** However, on a road with more than one lane in the direction of travel, they must stay in one lane. (Chap. 85, Sec. 11B)
- **Bicyclists Do Not Always Have to Signal Turns!** Bicyclists must signal their intent by either hand to stop or turn. However, the signal does not have to be continuous or be made at all if both hands are needed for the bike's safe operation. (Chap. 85, Sec. 11B)



See *Appendix E* for color images of these signs.

About 75% of bicycle-related deaths and disabling injuries could have been prevented if riders wore a proper bike helmet.

For a free brochure with more bicycle safety tips, call the Governor's Highway Safety Bureau at 617-725-3301.

Special Driving Situations

Only practice and experience can make you a good driver. Almost 40 percent of highway crashes involve drivers under 25 years old, and most of these crashes are due to driver inexperience. To become a good driver, you must follow several rules:

- Give driving your full attention. Don't let yourself be distracted while moving. Talking to passengers, adjusting a car stereo, or eating can all be dangerous distractions.
- Drive defensively, and keep your eyes on the road ahead. By staying alert, you will be able to see possible hazards and have time to avoid them.
- Learn how to drive in different situations. Practice highway driving, night driving, and handling a motor vehicle in various weather conditions.
- Know how to handle emergency driving situations, such as skidding or tire blowout.
- Know, understand, and obey the rules of the road.

This chapter explains what defensive driving means and how to tackle special driving situations. It also offers a few more rules of the road, such as what you must do in the event of a motor vehicle accident, even if you are only a witness.

CHAPTER 5

Your Health and Physical Condition

Because you must be in control of your vehicle at all times, it is important that you remain alert and responsive. You not only need good vision, you need good hearing as well. There are certain situations in which you should never drive:

- When you have been drinking alcohol
- When you have taken any prescription or over-the-counter medication that can cause drowsiness
- If you are under the influence of any drug
- When you are very tired
- When you are emotionally upset. Emotional states like anger and depression can cause you to drive carelessly.

Checking Your Vehicle's Condition

The law requires you to have your passenger vehicle or motorcycle inspected for safety and emissions every year (see *Chapter Six*). However, you should always follow the routine maintenance procedures recommended by your vehicle manufacturer. Each time before you enter your vehicle or mount your motorcycle, make a quick visual check for low tire pressure or any damage you may not have noticed before.

Brakes and Tires

Pay close attention to changes in how your vehicle responds when braking. If you think you have a problem, have your brakes inspected immediately. If you feel the vehicle pull to one side when you brake, your brakes may need adjustment or repair.

Check your tires for proper inflation and wear. Rotate your tires as often as recommended by the vehicle or tire manufacturer. It is dangerous and illegal to drive a vehicle with extremely worn or damaged tires. Tires must have at least 2/32 inches of tread depth in the proper grooves and no fabric breaks or exposed cords.

The distance between the edge of a penny and the top of Lincoln's head is about 2/32 of an inch. A quick way to check your tire tread is to slide a penny into a tread groove. If you can see Lincoln's head, your tires are worn out.

Steering

Your steering wheel should not feel so loose that you notice a delay between when you turn the wheel and your tires respond. With power steering, you should check the fluid level regularly. If your vehicle makes a high-pitched noise when you turn, you should have your power steering inspected.

Lights and Glass

Make sure to check your headlights, brake lights, and turn signals periodically. Keep your lights clear of dirt, snow, and ice. Keep your windows and mirrors clean. Change your windshield wipers if they streak or fail to clear your windshield properly.

Moving Emergency Vehicle

- You must always yield the right-of-way to fire engines, ambulances, police cars, and other emergency vehicles when those vehicles are using a siren and/or emergency flashing lights.
- If you see or hear an emergency vehicle coming from any direction, you must pull as close as possible to the right side of the road and stop until the vehicle has passed. Slowly rolling is not acceptable.
- Check your mirrors and find a safe place to pull over to the right. You should not pull your vehicle to the left or slam on your brakes and stop suddenly. Use your right turn signal to let those driving behind you know what you plan to do.
- NEVER stop in the middle of an intersection. Continue driving through an intersection and pull over as soon as it is safe to do so.
- After the emergency vehicle has passed, use your left turn signal and make sure the lane is clear before merging into traffic. Be sure that there are no other emergency vehicles approaching before you enter traffic.
- It is illegal to follow closer than 300 feet behind an emergency vehicle responding to an alarm.

Stationary Emergency Vehicle

- As a driver, you need to slow down and stay alert whenever you see an “emergency response vehicle” stopped ahead of you with its emergency lights flashing. These vehicles include fire trucks, police cars, ambulances, and “disaster vehicles” (usually in support of other emergency vehicles and services). You must do the same when the stopped vehicle ahead is a highway maintenance vehicle or recovery vehicle (tow truck, ramp truck, etc.) and is displaying flashing emergency lights. You must exercise caution for the safety of yourself and others.
- The new “move-over law” (Chapter 418 of the Acts of 2008) requires that if you are approaching a stationary vehicle described above and it is displaying its flashing lights, you must proceed with caution and reduce your speed to that of a reasonable and safe speed for the road conditions. If you are on a highway with at least four lanes (at least two of which allow travel in the same direction you are heading), yield the right-of way by safely “moving over” to a lane that is not next to the lane the emergency, highway, or recovery vehicle is occupying. In other words, leave an open lane between your vehicle and the stopped emergency vehicle. If “moving-over” is impracticable, you must still proceed with caution and reduce your speed to that of a reasonable and safe speed for the road conditions.
- Always be prepared to stop if necessary when passing an emergency vehicle.
- If approaching at nighttime, be sure to dim your high beams.
- If you need help, pull in front of the police cruiser and ask for assistance. Never stop behind a police cruiser. *(Do not attempt to approach a police officer who appears to be*

dealing with a stopped motorist. Stand next to your vehicle on the shoulder until the police officer is finished.)

- It is illegal to drive by or park within 800 feet of a fire. You are not allowed to drive over an unprotected fire hose unless directed to do so by a firefighter or public safety official.

General Guidelines if You Are Stopped by a Police Officer

State law requires you to pull over to the right side of the road and stop when signaled to do so by a police officer-whether the officer is in a police car or on foot. Being pulled over may cause anxiety for both you and the police officer. Your anxiety may be caused by the fear of getting a ticket or because you are not sure why you are being stopped. Police officers rarely know what to expect from a driver or his or her passengers during a traffic stop and are likely to be anxious about their own personal safety.

As a driver, you should understand that the way you act during the traffic stop may well determine the police officer's reaction. Becoming argumentative, disregarding the officer's instructions or requests, suggesting that the officer could be more productive by stopping other drivers, or allowing yourself or your passengers to suddenly reach under the seat or into unseen areas of the passenger compartment are not appropriate reactions during a traffic stop and may increase the officer's own anxiety.

Traffic law enforcement is one of the most important duties that police officers perform. Their efforts are aimed at helping to ensure the orderly flow of traffic and to help prevent deaths and injuries on our public roads. There is an obvious need for a constant enforcement effort. More persons are killed and injured in motor vehicle traffic crashes across the U.S. each year than are killed and injured in all other forms of violence combined. In 2007 (the last year for which figures are available), 41,259 persons (drivers, passengers, pedestrians and cyclists) were killed and over 2,491,000 were injured in the U.S. as the result of motor vehicle traffic crashes (National Highway Traffic Safety Administration-NHTSA). Locally, in 2007, Massachusetts recorded 434 deaths and 50,065 injuries from motor vehicle traffic crashes (RMV Crash Data Department).

Statistics show that police officers have reason to be concerned about their personal safety while performing traffic enforcement duties. Each year in the United States a number of police officers are killed and thousands more are assaulted in the performance of traffic law enforcement duties. During 2007 alone, 11 police officers were killed and 6,424 others were assaulted as a result of traffic pursuits and stops (Federal Bureau of Investigation-Uniform Crime Reports).

You can help reduce the levels of anxiety during a traffic stop, both your own and the officer's, and help to lessen the chance of that stop unnecessarily erupting into something more serious, by reading and following these common-sense guidelines. The Registrar strongly urges you to do so.

- Do not ignore the officer's signal by pretending you didn't see it or by assuming it wasn't meant for you.
- Turn on your right-turn signal to let the officer know you intend to stop and carefully move your vehicle completely to the right side of the road after checking your mirrors. If the officer continues on by without ordering you to stop, you can return to the flow of traffic when it is safe to do so.
- Gradually slow the vehicle and bring it to a safe stop by the right side of the road or wherever the officer directs you (not in an intersection, or in front of a driveway or in a travel lane).
- Put the car in park (if an automatic transmission) or in neutral with the parking brake on (if a standard transmission) and turn off the engine.
- Both you and your passengers should stay in the vehicle unless you are instructed to get out by the officer.
- If it is after dark, leave your headlights on and put the interior overhead light on.
- Roll down the driver's window as the officer approaches.
- Wait to be instructed by the officer to produce your license and registration, but have them ready, and **do not** present them to the officer in a wallet or in a holder. (You are required by law to have your license and registration when operating a vehicle.)
- Make sure that your hands are in plain sight and tell your passengers to do the same.
- Neither you nor your passengers should make any sudden movements or gestures that could be construed as threatening by the officer, such as reaching under the seats or reaching into any other unlit areas of the vehicle.
- Stay in your vehicle when the officer goes back to the police car. If you have a question to ask at that point you should remain in your vehicle until the officer returns. If you are able to find any documents the officer previously requested, hold them out the window so he or she can see you have them and wait until the officer returns.
- Accept the return of your paperwork politely. If the officer issues a citation to you, do not attempt to argue your case or to persuade the officer to change or rescind it. Once a citation is issued, the police officer is required to file the appropriate copies with his or her superior officer. You have the right to challenge the issuance of the citation in court, if you choose to do so.
- When the officer tells you that you may go, put on your left-turn signal, check your mirrors prior to re-entering traffic and, if on a divided highway, accelerate to a safe speed while in the breakdown lane before merging into traffic.

Remember, a police officer never knows what to expect when stopping a driver—even if the stop is unrelated to a motor vehicle violation. Don't let your emotions or sudden unexplained movements (or those of your passengers) introduce a higher degree of tension or anxiety into the traffic stop. A police officer may be more likely to listen to you and less likely to feel threatened by you (or your passengers) if you follow these simple guidelines.

IMPORTANT: If you believe that you were stopped by a police officer because of your race or your gender, you may report the incident by contacting the police department or law enforcement agency of the officer who made the stop.

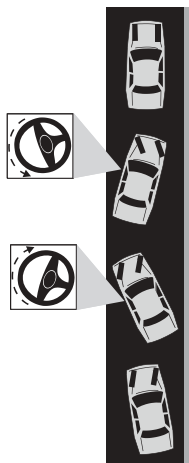
Driving Emergencies

In any emergency driving situation, it is very important that you think clearly and don't panic. In most emergency situations, you have only a short time to react. Read this section to learn what to do when an emergency occurs. It could save a life.

Skidding

The technique for handling a skid is the same for front- and rear-wheel drive vehicles:

- Ease off the gas, and shift into neutral.
- Don't hit the brakes. You will make the skid worse.
- Turn your steering wheel **in the direction of the skid**. If your rear tires are skidding to the left, turn your steering wheel left. If they are sliding right, steer right.
- Be prepared to steer left and right a few times until you get your car completely under control.



Running Off the Pavement

If you drive off the pavement edge and onto the shoulder of the road. . .

- Grip the steering wheel tightly and ease your foot off the gas pedal.
- Gently apply the brake to reduce your speed.
- Check for traffic behind you, then steer gently back onto the road.

If your vehicle skids, always turn your steering wheel in the direction of the skid.

Flat Tire, Blowout, or Wheel Loss

If while driving, you get a flat tire, your tire blows out, or you lose a wheel. . .

- Grip the steering wheel tightly and ease your foot off the gas pedal.
- Gently apply the brakes.
- If you begin to skid, turn the steering wheel **in the direction of the skid**.
- As you recover, gently straighten the car and don't use the brake until you have the vehicle under control.
- Pull your car well off the road as soon as it is safe to do so.

Brake Failure

If your brake pedal is fully depressed but the brakes fail to respond. . .

- Pump the brake pedal several times rapidly to build up brake fluid pressure, but **do not pump antilock brakes**.
- Downshift to a lower gear, and work your way down to the lowest gear, if necessary.
- Apply the parking brake gently, but hold the brake release in case your vehicle starts to skid.

- If you cannot slow your vehicle, sound your horn and flash your lights to warn drivers or pedestrians around you.

Stuck Gas Pedal

If your gas pedal (accelerator) sticks. . .

- Put your car in neutral and apply the brakes to slow down.
- Using your foot, try to free the gas pedal.
- If the gas pedal doesn't release, reapply the brakes.
- Keep your eyes on the road.
- When safe to do so, pull your vehicle to the side of the road and bring it to a stop.

Vehicle Approaching Head On

If a vehicle approaches you head on in your lane. . .

- Slow down and pull to the right.
- Sound your horn to alert the other driver.

Headlight Failure

If your headlights suddenly go out. . .

- Turn on your parking lights, emergency flashers, or turn signal.
- Try the headlight switch a few times.
- Pull off the road as quickly as possible and leave your emergency flashers on.

Stalling on Railroad Tracks

If your vehicle stalls on railroad tracks and you know a train is approaching. . .

- Get yourself and any passengers out of your vehicle and off the tracks, and move as far from the tracks as you can. Try to signal the train any way you safely can.
- To avoid being hit by debris, run from your vehicle in the direction the train is coming from.

If your vehicle stalls on railroad tracks and you are not sure whether a train is approaching. . .

- Roll down your window or open your door and listen for an approaching train.
- Try to start your engine.
- If your vehicle won't start, shift to neutral and try to push the vehicle off the tracks.
- If you cannot move your vehicle from the tracks, call the police immediately to report the situation.

If your car is caught on a crossing for any reason, contact the local or state police as quickly as possible and ask them to call the railroad station manager. The police may be able to stop any approaching trains before a collision.

Breakdowns

- Move your vehicle off the pavement to the side of the road. Never park on a hill or on a curve where others cannot see you. If you cannot get your vehicle off the pavement, safely get all passengers out of the vehicle and off the road.

On a highway with a breakdown lane or shoulder, move your vehicle as far from the travel lane as possible. Do *not* stand anywhere near the travel lane or in the breakdown lane, if you can avoid doing so.

- Turn on your emergency warning lights (flashers). At night, also turn on your vehicle's interior lights.
- Tie a white cloth to your antenna or door handle (use a red cloth when it's snowing). Raise your vehicle's hood.
- If you have flares or reflective signs, place them 200 feet in front of and behind your vehicle to warn other drivers.

The CaresVan program, which is operated by the MassHighway Department and sponsored by Commerce Insurance Company, promotes highway safety and provides assistance to stranded motorists. For more information, visit www.commerceinsurance.com/documents/CaresVan.pdf

Car Catches Fire

If you see smoke coming from under your vehicle's hood. . .

- Pull off the road, turn off the ignition, and move away from the vehicle.
- Call the fire department or emergency services.
- Do not try to fight the fire unless you have an extinguisher.

Vehicle Plunges into Water

If your car plunges into water. . .

- Unfasten your safety belt and escape through a window.
- If you have power windows, open them quickly before the water causes them to short circuit.
- Do not open a door, because doing so would cause water to rush in and your vehicle could turn over on top of you.

If your vehicle sinks before you can get out, climb into the rear seat. An air pocket may form there, because the weight of the engine will cause the car to sink nose first. When the vehicle settles, take a deep breath and escape through a window.

Driving Through Tunnels

Public Safety is a priority at MassDOT. Please follow these important safety tips when traveling through our tunnels.

When entering a tunnel, stay alert, turn on your headlights, obey all signs and signals, listen to the media for traffic updates, maintain a safe driving distance, and do not enter the tunnel if you notice smoke near the entrance or if your car is smoking or burning.

If there is a fire, stop, turn off the engine, and exit the vehicle. To assist emergency personnel, please leave your keys in the vehicle. For your safety, leave your belongings in

the vehicle. Call 911 and follow the instructions of firefighters, State Police, MassDOT officials, and message signs. Exit at the nearest tunnel entrance unless directed otherwise.

Please remember: Fire and smoke can kill. Save your life, not your car.

Traffic Accidents

Each year, more than 140,000 motor vehicle crashes are reported in Massachusetts. Obeying the rules of the road, following the guidelines in this manual, and learning to drive defensively can reduce your risk of a collision or fatal accident. If you are involved in or witness a crash of any sort, state law requires you to respond as explained in this section.

If You Are Involved in an Accident

When you're involved in a crash, regardless of how minor it seems, you must stop your vehicle. **Never leave the scene of an accident.** It's against the law. You could be charged with a "hit and run" violation.

Property Damage Only

1. Move your vehicle off the road, if possible.
2. Exchange name, address, driver's license number, vehicle registration, and insurance information with all drivers or property owners who are involved. You must show your driver's license and registration, if asked to do so.
3. If you have damaged a parked vehicle or stationary property, **you must try to locate the owner to report the accident or notify the local police.**
4. Within five days of the event, you must complete and file an accident report with both the RMV and the local police department. You must report *any* crash in which there has been \$1,000 or more of property damage.
5. If you've injured a cat, a dog, or any other animal, **notify the local police and, if possible, the animal's owner.**

If you have a cellular phone, you can contact the state police to report any emergency by dialing 911.

Accidents Involving Injuries

1. Check to see whether anyone is injured.
2. Call the police and request an ambulance or a rescue squad, if necessary.
3. If possible, move your vehicle off the road.
4. Exchange name, address, driver's license number, vehicle registration, and insurance information with anyone who is injured or with any other driver who is involved. You must show your driver's license and registration if asked to do so.
5. Within five days of the event, you must complete and file an accident report with both the RMV and the local police department. The law requires you to report *any* accident in which someone is killed or injured or in which there has been \$1,000 or more of property damage.
6. Notify your insurance company.

Emergency First Aid Tips

- Don't move an injured person unless it is absolutely necessary. If you must move someone because of a life-threatening situation, fully support the person's head and spine.
- Check to see if the person is breathing. If the person is not breathing and you are certified in cardiopulmonary resuscitation (CPR), begin performing CPR immediately.
- If the person is bleeding, put pressure directly on the wound. Maintain pressure until help arrives.
- Cover the injured person with a blanket or coat to provide warmth and prevent shock.

If You Witness an Accident

If you drive by an accident with police and emergency vehicles at the scene, use common sense and good judgment. Reduce your speed and drive cautiously, looking out for people and equipment in the road. Do not stop or slow down to "sightsee." You will only create a hazard and disrupt traffic.

If you arrive at an unattended accident scene:

1. Park your car off the road and turn on your emergency flashers so that your vehicle warns others.
2. Check to see if anyone is injured.
3. If you have a cellular phone, call the police. If you don't have a cellular phone, tell the next person with a phone who stops to call the police.
4. If you or someone else at the scene has flares, emergency triangles, or reflectors, place them 200 feet or more in front of and behind the accident scene to warn approaching traffic.
5. Follow the emergency first aid tips described in the preceding section.
6. If possible, move any vehicle involved in the accident out of the traffic lane.
7. Turn off the ignition of any vehicle involved in the accident.

Reporting an accident to your insurance company alone does not satisfy your legal obligation.

If utility poles have been hit and any electrical wires have fallen, do not go near them. If electrical wires have landed on one of the vehicles involved in the crash, tell the occupants to remain inside their vehicles until emergency personnel arrive. Do not touch the vehicle.

Reporting an Accident

The law requires you to report any motor vehicle accident in which you are involved, in which someone is killed or hurt, or in which there has been \$1,000 or more in property damage. You must file a written report with the RMV within five days of the accident.

Accident/Motor Vehicle Crash Operator Report forms are available at local police stations, RMV branches, or by calling the RMV's Phone Center. You can also download these forms from our website at www.mass.gov/rmv.

Where to send completed reports:

1. Mail or deliver one copy to your local police department in the city or town where the crash occurred.
2. Mail one copy to your Insurance Company.
3. Mail one copy to the RMV at the address below.

**Crash Records, Registry of Motor Vehicles,
P.O. Box 55889, Boston, MA 02205-5889**

It is recommended that a copy should be kept for your own files.

Owning a Vehicle

If you own or lease a motor vehicle in Massachusetts, you must meet certain obligations to keep your vehicle legally registered and safe for the road, with some exceptions:

- A vehicle owned or leased by a resident of Massachusetts must be registered, have at least the minimum required liability insurance coverage, and display a valid inspection sticker to be operated on public ways in Massachusetts.
- Each vehicle must have a Certificate of Title.
- You must pay 6.25 percent sales tax on any vehicle you buy.

This chapter presents information on meeting each of these obligations for private passenger vehicles and motorcycles. Unless exempted by law, each person operating a motor vehicle should have a Certificate of Registration on his or her person or in his or her vehicle at all times.

CHAPTER 6

Vehicle Registration

Although there are a few exceptions, if you are a Massachusetts resident, to drive a vehicle legally on the roads of Massachusetts you must register your vehicle with the RMV and your vehicle must bear the assigned license plates. All vehicle registrations are subject to periodic renewal with fees.

When you are issued two plates, you must display both plates.

When you register a passenger vehicle or motorcycle, you will be issued license plates that you must mount on your vehicle. Newly registered passenger vehicles are issued two plates for front and back mounting; motorcycles require single plates. For each renewal period that your registration is valid, you will receive a plate decal that must be placed in the upper right corner of the rear plate. Failure to place the decal as instructed can result in a fine. For motorcycles, you must also affix an inspection sticker each year (*see the Vehicle Inspections section later in this chapter*).

New Registrations

To register a newly acquired new or used vehicle, you must follow these steps:

1. Go to an authorized Massachusetts insurance agent and have the agent fill out, stamp, and sign an RMV-1 form, which is an application for registration and title.
2. After verifying the information, sign the application.
3. Take the completed RMV-1 application, along with the Certificate of Origin for a new vehicle, the previous owner's certificate of title for a used vehicle, or a bill of sale and copy of last registration for a non-titled vehicle, to a full-service RMV branch.

Translation Required

If you present a document that is not written or printed in the English language, the Registrar may require the document to be accompanied by a translation that is certified by a bilingual teacher at an accredited Massachusetts college, university, or private language school, or by the local consulate for the document's country of origin. The translation must be printed on the letterhead of the consulate, college, university, or private language school and it must be properly formatted. Visit **www.mass.gov/rmv** to see the acceptable format.

4. For a new vehicle, you will pay a 6.25 percent sales tax or use tax based on the price you paid the Massachusetts dealer or an out-of-state dealer. If the vehicle is used and was purchased from a private party or an out-of-state dealer who is *not* registered with the Massachusetts Department of Revenue (DOR), the vehicle sales tax is calculated as 6.25 percent of the actual purchase price **or** 6.25 percent of the NADA trade-in (book) value, **whichever is higher**. Acceptable evidence of the purchase price you paid includes the following documents:
 - a. **If the vehicle was purchased from a licensed Massachusetts dealer or an out-of-state dealer registered with the Massachusetts DOR**, you will need a completed RMV-1 form (Application for Registration) that clearly shows the price you paid for the vehicle in the area labeled Sales or Use Tax Schedule.

- b. If the vehicle was purchased from an out-of-state dealer not registered with Massachusetts DOR, you will need either a completed RMV-1 form or a completed purchase contract that clearly shows the price you paid.
- c. If the vehicle was purchased from a private party, if the vehicle does not have a title, if the Certificate of Title does not have a space provided for sale price information, or the price information was not included, you need a bill of sale that clearly shows the price you paid.

Sales tax may be paid in cash or by certified check, personal check, or money order, made payable to the MassDOT.

In addition to sales tax, your local city or town levies an annual excise tax.

To apply for a tax abatement (rebate), you must submit a form to the DOR. To obtain a form, visit an RMV Branch or call the DOR at 1-800-392-6089.

5. Pay the registration fee and title fee (the regular fee for private passenger vehicles is \$50); special registration plates require an additional fee for each renewal period. The title fee is \$75.
6. **State law requires you to have your vehicle undergo a Massachusetts motor vehicle inspection within seven days of registration** (*see the Vehicle Inspections section later in this chapter*).

All fees are subject to change at any time.

Rules for Military Personnel

If you are serving on extended active duty in the military, the following two cases generally apply:

- If your vehicle was purchased, titled, and registered in your home state, you may retain your home state registration indefinitely, regardless of where you are stationed in the country. The only requirement is that you carry insurance at least equal to Massachusetts minimum levels.
- If your vehicle was purchased, titled, and registered in a state *other* than your home state, you will need to register the vehicle in each state you are assigned to. If you are not a Massachusetts resident and your vehicle falls into this category, you may drive the vehicle with the existing out-of-state registration for 30 days only. You must register and title the vehicle in Massachusetts before the 30-day period has expired.

If you are returning from service abroad and your vehicle bears plates issued by the Armed Forces, you may drive the vehicle for up to 30 days for the purpose of traveling to military duty or to your place of residence.

Registration Renewal

You are obligated to renew your vehicle registration, when necessary. About six to eight weeks before your registration expires you should receive a renewal card (RMV-2) in the

mail. If you do *not* receive a renewal notice, please call the RMV Phone Center to make sure your correct address is listed with the RMV.

To check the current status of your registration and find out if you are eligible to renew, visit www.mass.gov/rmv and select Registration Inquiry.

Renewal by Mail

When you receive your renewal card, you are asked to do the following:

1. Verify that all information on the renewal card is correct.
2. Indicate any changes or corrections on the card by marking an **X** in the box.
3. If your renewal card shows **Ins Stamp Required**, have your insurance agent stamp and sign the renewal card.
4. Make sure the renewal card has been signed by **all** owners listed on the front of the card and that all owners have included their driver's license numbers and dates of birth in the space provided.
5. Mail the completed insurance-certified renewal card and payment (check or money order only made payable to the MassDOT) to this address:

Mail-In Registration/Data Scan
Registry of Motor Vehicles
P.O. Box 55891
Boston, MA 02205-5891

Please allow at least ten days for processing.

Note: If you did not receive your renewal card, it could be because . . .

- You have outstanding parking tickets, excise tax bills, abandoned vehicle citations, or unpaid Fast Lane violations. If you do, you must obtain release forms from the city or town involved before you can renew your registration.
- You have outstanding court warrants. If you do, you must obtain a recall notice from the court that issued the warrants.
- You have outstanding child support obligations. If you do, you must contact the DOR at 1-800-332-2733.

Renewal by Phone or Internet

Eligible customers can renew registrations by calling the RMV Phone Center or by using the Internet (may be restricted by plate type).

To renew over the phone, call 866-MASSRMV (866-627-7768). To renew using the Internet, go to www.mass.gov/rmv. If you have outstanding parking tickets, unpaid excise taxes or a suspended or revoked registration, you will *not* be able to renew your registration.

RMV Phone Center: 617-351-4500
The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833).
Monday–Friday 9 a.m.–5 p.m.
Internet Address: www.mass.gov/rmv

Duplicate Registration

If you lose your registration certificate, you may apply for a duplicate by taking one of the following steps.

By Phone or Internet

If you have a MasterCard, VISA, Discover, or American Express charge card, you can call the RMV Phone Center or visit the RMV's website (www.mass.gov/rmv) to order a duplicate registration.

In Person or by Mail

To order a duplicate registration in person or by mail, you must complete and submit a Universal Form, and pay the \$25 duplicate registration fee. RMV Branches accept cash, check, or money order. Make checks payable to *MassDOT*. Stop by any RMV Branch with these items or mail them to this address:

Duplicate Registrations
Registry of Motor Vehicles
P.O. Box 55891
Boston, MA 02205-5891

Your request will be processed and sent in about ten days from the postmarked date.

All fees are subject to change at any time.

Canceling a Registration

To cancel a vehicle registration, turn in your plates and registration certificate at any RMV office. You will receive two plate return receipts. Send one receipt to your insurance company, and keep the other for your records. You may be able to use the second return receipt to seek an abatement of your excise tax from your local city or town.

You may be able to cancel your registration through your insurance agent. Contact your agent to see if they can process this transaction for you.

If you cannot go to an RMV office, you can mail your plates and registration certificate to this address:

Registration Cancellations
Registry of Motor Vehicles
P.O. Box 55891
Boston, MA 02205-5891

Your failure to properly cancel the registration may result in additional excise tax being due.

If you wish to cancel the registration but do *not* have the plates to turn in, you must fill out and submit a Lost Plate Affidavit (C-19) form, which is available at RMV Branches, through the Phone Center, or can be downloaded from www.mass.gov/rmv.

Transferring a Registration to a Newly Acquired Vehicle

The Seven-Day Registration Transfer Law

The seven-day registration transfer law allows you enough time to transfer the registration from your current vehicle to a vehicle you just bought.

Under this law, if you transfer ownership or lose possession of your vehicle or trailer, you have seven calendar days to transfer your registration to another vehicle or trailer. During these seven days, you may operate your new vehicle with the registration plates from your old vehicle. However, you must transfer your registration to your new vehicle by 5:00 p.m. of the seventh day after transferring ownership of your former vehicle. The day of transfer counts as the first day.

You cannot use the Seven-Day period to transfer your registration if you have retained the currently registered vehicle.

The following conditions of the law apply:

- The seller has properly assigned the Certificate of Origin (if a new vehicle) or the Certificate of Title (if a used vehicle) and delivered it to the buyer when the newly acquired vehicle is delivered (MGL c. 90D, §15).
- The term *vehicle* means a motor vehicle or trailer.
- The term *owner* means a person, a corporation, or another entity that is legally qualified to hold title to property.
- The owner, if a person, must be at least 18 years old.
- The previously owned vehicle and the newly acquired vehicle must be the same type and have the same number of wheels.
- When operating the newly acquired vehicle, the owner must carry an original copy of the bill of sale, or, if the vehicle was purchased from a dealer, the owner must carry the purchase and sales agreement indicating the registration number to be transferred and the registration card of the transferred vehicle.
- The registration plates must be attached to the newly acquired vehicle.
- The phrase *lose possession* means an involuntary circumstance, like theft or repossession.
- The newly acquired vehicle may be a **new** or **used** motor vehicle or trailer.

Registration Policies for New Residents

Converting an Out-of-State Registration

You must register your vehicle in Massachusetts as soon as you become a Massachusetts resident. The law does not provide a grace period.

To convert your out-of-state vehicle registration, follow the instructions in the *New Registrations* section earlier in this chapter.

If you want to convert your out-of-state registration and your current certificate of title is being held by your lienholder, you must submit your out-of-state registration and list your lienholder information on the application for Massachusetts registration and title (RMV-1

Form). A memorandum non-negotiable title will be mailed to your lienholder. **Note:** This vehicle cannot be sold unless the Massachusetts memorandum title is accompanied by the original out-of-state title.

If your vehicle has been registered in another state, you may have to pay some sales tax. To determine your Massachusetts sales tax, call the DOR at 617-887-6367.

Follow the instructions earlier in this chapter for applying for a title and registration. The registration and plates are valid for two years. The RMV will process and mail your new title to you.

Note: Health insurance is required in Massachusetts. The law requires residents 18 and older to have coverage. Adults must enroll in a plan or qualify for an exemption to avoid a penalty.

The penalties for the 2009 tax year will add up for each month that an individual does not have coverage, and could be as much as \$1,068 for the year.

Information about how to obtain health insurance can be found on the Commonwealth Health Connector website at www.mahealthconnector.org or by calling 1-877-MA-ENROLL (623-6765) TTY 1-800-213-8163.

Nonresidents Registering in Massachusetts

Even a nonresident (anyone whose legal residence is outside the Commonwealth) may be required to register and/or insure a motor vehicle or trailer in Massachusetts in certain situations. Following are some examples:

- Nonresidents whose primary residences are in other states may not operate motor vehicles or trailers in Massachusetts for more than 30 total days in one year unless they have liability insurance (*see the Insurance and Merit Rating section later in this chapter*).
- Nonresidents must register in Massachusetts the motor vehicles or trailers they use for their Massachusetts businesses. If nonresidents use their vehicles in Massachusetts and one or more other states, they must register the average number of vehicles they use in Massachusetts. Other rules apply to vehicles owned by nonresidents who have “apportioned” license plates from other states.
- Nonresidents who own motor vehicles or trailers that are registered in other states or countries must register those vehicles and trailers in Massachusetts if Massachusetts residents have or control those vehicles or trailers for more than 30 total days in one calendar year.
- Nonresidents who must register their motor vehicles or trailers in Massachusetts may still be required to register those vehicles or trailers in their states of residence. This is called “dual registration.”

If you know of an illegally registered out-of-state vehicle, contact the RMV’s anonymous tip line at 1-800-I PAY TAX (1-800-472-9829).

Please report the vehicle type, the plate number, the location, and how long the vehicle has been in the area. Include local address of the person you believe owns the vehicle, if you know it.

Exemption for Enrolled Students: While nonresidents who are enrolled as full-time students in Massachusetts schools, colleges, and universities do not have to register their out-of-state vehicles in Massachusetts, they must complete and file **Nonresident Student**

Vehicle Information Forms with the police departments in the cities and towns where their schools, colleges, and universities are located. These forms, which should be available at schools, colleges, universities and on www.mass.gov/rmv, provide registration, residence, and insurance information. In addition to submitting these completed forms, full-time nonresident students must carry full liability insurance policies.

This exemption does not apply to graduate students who are compensated beyond the cost of tuition or to fully registered medical practitioners (per the definition of “student” as defined in MGL c. 90, §1).

Motorcycles, Motorized Bicycles (Mopeds), and Motorized Scooters

Motorcycle Registration

By law, a motorcycle is any motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, including any bicycle with a motor or driving wheel attached, **except** a tractor or a motor vehicle designed for the carrying of golf clubs and not more than four persons, an industrial three-wheel truck, a motor vehicle on which the operator and passenger ride within an enclosed cab, or a motorized bicycle. A motorcycle is registered in the same fashion as any other motor vehicle, using the RMV-1 form.

Motorized Bicycle (Moped) Registration

By law, a moped (also known as a motorized bicycle) is a pedal bicycle which has a helper motor, or a non-pedal bicycle which has a motor, with a cylinder capacity not exceeding fifty (50) cubic centimeters, an automatic transmission, and which is capable of a maximum speed of no more than thirty (30) miles per hour (mph).

To register a moped, you must complete a Motorized Bicycle (Moped) Registration application. This application is available at RMV branches or at mass.gov/rmv. The registration fee is \$40.00 for two years. You will also be subject to a 6.25 percent sales/use tax, as applicable. Once your application is approved, it is stamped and becomes your registration. You must carry it whenever you operate the moped. You will also be issued a decal that must be affixed on the rear of the moped so that it is clearly visible.

Motorized Scooters

The Registry of Motor Vehicles will not register motorized scooters. By law, a motorized scooter is any two-wheeled tandem or three-wheeled device that has handlebars, is designed to be stood or sat upon by the operator, and is powered by an electric or gas powered motor that is capable of propelling the device with or without human propulsion. The definition of a “motorized scooter” shall not include a motorcycle, motorized bicycle, or three-wheeled motorized wheelchair.

There has recently been some confusion about registering new, fuel-efficient “alternative vehicles.” Some of these vehicles are marketed as motorcycles or as scooters, but **do not** meet the Massachusetts legal definition for a motorcycle, moped, or motorized scooter. At the present time, these vehicles cannot be registered in Massachusetts. Check www.mass.gov/rmv for more information or for updates.

Low Speed Vehicles

A new law (Ch. 523 of the Acts of 2008) that took effect July 31, 2009 requires low speed vehicles (LSVs) be registered. An LSV is a “motor vehicle” that has four wheels, a minimum speed of 20 mph, a maximum speed of 25 mph, and a gross weight rating of less than 3,000 lbs. New and used LSVs must be certified by the National Highway Traffic Safety Administration (NHTSA) as meeting federal safety standards, be equipped as required by federal and state law, be insured, be inspected annually, and be operated by properly licensed drivers or permit holders accompanied by qualified drivers. LSVs will be prohibited from “limited access” and “express state highways,” and any portion of other roads where the speed limit exceeds 30 mph. They may also be prohibited from other heavily-trafficked areas. Companies that sell, lease, or rent LSVs will be required to provide certain pre-printed information explaining the limitations in operating these vehicles. Operators are subject to all existing state traffic laws and regulations, and penalties will be provided for operating LSVs in violation of laws. The Registrar can make regulations for these vehicles. LSVs can only be registered and used as “passenger vehicles.”

Small Motor Vehicles with Maximum Speed of 30-40 mph

This law (Ch. 523) also requires the registration of qualifying motor vehicles that are designed and manufactured to operate at maximum speeds between 30 and 40 mph. The RMV is drafting regulations to further clarify the definition of these vehicles. No new vehicle in this category will be registered unless the applicant can prove that the vehicle has been certified to NHTSA by its manufacturer that it meets Federal Motor Vehicle Safety Standards for that particular class of vehicle (the Certificate of Origin can be provided as evidence). Registration of these vehicles began on July 31, 2009. Generally, these vehicles may include:

- A two-wheeled vehicle that could not previously be registered as a “motorized bicycle” (because of a larger engine or higher maximum speed) and could not safely be registered as a “motorcycle” (because of limited speed capability), but is certified by NHTSA as a motorcycle
- A vehicle that previously could not be registered as a motorcycle under state law because of its limited speed capability and because its operator and passenger rode within an “enclosed cab,” but is certified by NHTSA as a motorcycle

Segways

The Registrar has determined that a “Segway” cannot be registered in this state as a “motor vehicle” or as a “motorized bicycle” (moped). The Segway, a battery-powered vehicle with two (2) wheels (not in tandem), uses gyroscopes to help maintain balance, carries the operator in a standing position, and has a top speed of approximately 12 1/2 mph. Segways do not have the same legal rights to use public ways as bicycles. Municipalities may regulate their use on local ways and on public property through ordinances, by laws, or by regulations.

Special Design Plates

In addition to the initial registration fee, specialty license plates require a special plate fee each renewal.

All fees are subject to change at any time.

In 1995, Massachusetts introduced its first environmental fundraising plate, featuring the tail of a **Right Whale** and two roseate terns. The second environmental plate, **Fish and Wildlife**, was introduced in 1998, and the third, **Blackstone Valley**, in 1999. The special fee for these plates, which is \$40 every two years, is contributed to the Massachusetts Environmental Trust, which provides grants to educate and preserve the Massachusetts environment. A portion of the initial fee for these plates, and the full renewal fee, are tax deductible.

Another specialty plate highlights **Cape Cod and the Islands**. Its design features Eastham's Nauset Lighthouse along with the cliffs of Siasconset and Aquinnah. Proceeds from this plate go toward promoting economic development and tourism on Cape Cod, Martha's Vineyard, and Nantucket. The special plate fee is \$50 every two years.

The RMV has issued an **Olympic Spirit** plate that shows the five colored Olympic rings. The special plate fee of \$50 every two years is used to help Massachusetts residents on the US Olympic teams.

In 1998, the RMV issued the **Invest in Children** plate, which features artwork provided by the United Way. The special plate fee of \$40 for this plate benefits the Child Care Quality Fund, which is a division of the Massachusetts Office of Child Care Services.

In recent years, the RMV has continued to issue new special plates.

Basketball Hall of Fame plates feature an image of a basketball below a basketball hoop. The bottom of the plate has the words "Birthplace of Basketball." Proceeds go the Hall of Fame. The special plate fee is \$40 every two years.

United We Stand plates feature an American flag in the background. Proceeds go to the Massachusetts 9/11 Fund and to the Commonwealth Security Fund. The special plate fee is \$40 every two years.

Red Sox/Jimmy Fund plates feature the Red Sox logo and help the fight against cancer. The proceeds benefit cancer care and research at the Dana-Farber Cancer Institute in Boston. The special plate fee is \$40 every two years.

Boston Bruins plates feature the Bruins logo. Proceeds from this plate benefit the non-profit organization Massachusetts Hockey Inc. The special plate fee is \$40 every two years.

New England Patriots plates feature the Patriots logo, the words "Super Bowl Champions", and decals for each championship the team has won. Proceeds from the plate benefit the New England Patriots Charitable Foundation, which assists a variety of charitable organizations and programs that foster cultural diversity, education, family and health. The special plate fee is \$40 every two years.

Massachusetts Animal Coalition plates feature a silhouette of a cat and a dog. Proceeds go to non-profit humane organizations and municipal animal control agencies to prevent pet overpopulation by funding programs that provide services, such as spaying and neutering cats and dogs for free or at minimal cost. The special plate fee is \$40 every two years.

Conquer Cancer plates feature a candle, an eye with a teardrop, a sailboat, and the words “Conquer Cancer.” Proceeds from this plate benefit the Conquer Cancer Coalition of Massachusetts. The special plate fee is \$40 every two years.

Firefighters Memorial plates feature an image of a firefighter against a backdrop of a red Maltese Cross. Proceeds from this plate benefit the Massachusetts Fallen Firefighters Memorial Fund Inc. The special plate fee is \$40 every two years.

Cure Breast Cancer plates feature an image of a Pink Ribbon with the word “Cure” (in blue) across it. The bottom of the plate features the words “Cure Breast Cancer.” Proceeds from this plate benefit the Tufts New England Medical Center Hospital Inc/Diane Zaniboni Breast Cancer Research Fund for Inflammatory Breast Cancer Research Project. The special plate fee is \$40 every two years.

Mini Fenway Park plates feature an image of Fenway Park. Proceeds from this plate benefit Kids Replica Ballpark, Inc. and will fund Mini Fenway Park, a half-sized replica of Fenway Park to be used for children’s baseball, softball, and tee ball programs. The special plate fee is \$40 every two years.

Boston Celtics plates feature the Celtics logo. Proceeds from this plate go to the Boston Celtics Shamrock Foundation, which benefits the Boston Children’s Hospital. The special plate fee is \$40 every two years.

Choose Life plates feature an image of a mother holding a child with a yellow colored heart behind them. Proceeds from this plate go to Choose Life Inc., which benefits not-for-profit agencies within Massachusetts. The special plate fee is \$40 every two years.

A “Year of Manufacture Plate” is a registration plate (in the possession of the applicant) originally issued by the Commonwealth in the exact year of manufacture of the antique motor car to which it is proposed to be attached. For more information, contact the RMV Phone Center or visit the RMV’s website.

Annually renewed vanity plates are also available for an extra fee of \$50. You can obtain the necessary form from the RMV’s website.

If you have questions about registrations or special plates, please call the RMV Phone Center or visit the RMV’s website.

RMV Phone Center: 617-351-4500

The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833).

Monday–Friday 9 a.m.–5 p.m.

Internet Address: www.mass.gov/rmv

“Green Driving” Tips

The following tips on improving your vehicle’s fuel efficiency are from the Massachusetts Department of Energy Resources’ website (www.mass.gov/doer).

- Drive sensibly

Aggressive driving (speeding, rapid acceleration, and braking) can lower your gas mileage by 33% at highway speeds and by 5% around town.

- Observe the speed limit

Gas mileage decreases rapidly at speeds above 60 mph. Each five mph you drive over 60 mph is like paying an additional 20 cents per gallon.

- Avoid excessive idling

Sitting in traffic, or idling, wastes gas. Cars with larger engines typically waste more gas idling than cars with smaller engines. It is also illegal in MA and carries a \$100 fine to allow a stopped vehicle to run at idle for over five minutes (MGL Chapter 90, Section 16A).

- Use cruise control

Using cruise control on the highway helps you maintain a constant speed and, in most cases, will save gas.

- Use overdrive gears

Some vehicles are equipped with overdrive capability, which is the highest gear in the transmission (check your vehicle's owner's manual to determine if you have overdrive capability). Overdrive allows the engine to spin at a lower speed or cruising speed. When you use overdrive gearing, your car's engine speed goes down. This saves gas and reduces engine wear.

- Keep your engine properly tuned

Routine maintenance and repair can improve gas mileage by an average of 4.1%.

- Check and replace air filters regularly

Replacing a clogged air filter can improve your car's gas mileage by as much as 10%. Follow the manufacturer's recommendations for replacement intervals.

- Keep tires properly inflated

You can improve your gas mileage by around 3.3% by keeping your tires inflated to the proper pressure (as recommended by the vehicle's manufacturer and typically displayed on a plate in the driver-side door frame). Under-inflated tires can lower gas mileage by 0.4% for every one psi (pounds per square inch) drop in pressure of all four tires. Operating on under-inflated or over-inflated tires can also result in tire failure and loss of control.

- Use the recommended grade of motor oil

You can improve gas mileage by 1-2% by using the manufacturer's recommended grade of motor oil.

- Choose the appropriate grade of gasoline for your engine

Check your vehicle's user manual. If the manufacturer recommends premium, use it. If not, use the lowest octane available for your vehicle.

- Traveling with cargo

Avoid carrying unneeded items, especially heavy ones. An extra 100 pounds in the trunk reduces gas mileage by 1-2%. A loaded roof rack can decrease your gas mileage by 5%.

Disability Plates and Placards

Through its Medical Affairs Branch, the RMV issues special license plates and placards to people with disabilities who meet certain medical qualifications. Designated disability plates and placards allow people with disabilities to park vehicles in spaces posted with HP-DV parking only signs and at coin meters without paying fees or penalties.

These special privileges are extended *only* to people with disabilities who have been granted special disability plates or placards. These privileges are *not* available to any other person using a vehicle displaying such a plate or placard. Abuse of an HP plate or placard may result in fines, license suspension, and/or plate or placard revocation. The person who abuses this special parking privilege may face additional penalties which may include a fine and license suspension.

Medical Affairs Branch, Registry of Motor Vehicles
P.O. Box 55889, Boston, MA 02205-5889

Disabled Plate

If you own a vehicle, you may apply for a disabled registration number plate. The vehicle must be registered in the disabled person's name. If you have a vehicle registered in your name, you may choose to apply for a plate. Holders of disabled plates may apply for a placard on a temporary basis.

Note: Temporary placards are now available to holders of HP plates by written request. The applicant must provide information showing good cause for the temporary placard.

Disabled Placard

Any disabled individual who meets the eligibility criteria described below, may apply for a placard, regardless of whether or not they have a valid license or own a vehicle. Placards are issued on a temporary or permanent basis and hang from the rear-view mirror when in use. Temporary placards are valid anywhere from two months to 24 months, based on your particular need. Permanent placards must be renewed every five years. Before the RMV can issue you a disabled placard, you must be photo-imaged (*see the Photo-Image License section of Chapter One*). For security reasons, only one valid placard may be issued to a person at a time. The RMV includes a solid plastic sleeve with your placard that slides over your picture and name to protect the privacy of placard holders. The use of this sleeve is not required. Placard holders may use it at their discretion.

Note: If you currently have an old dashboard style placard, contact the RMV's Medical Affairs Branch at 617-351-9222 to convert it to the new hanging style placard.

Disabled Veteran Plate

The disabled veteran (DV) plate has the same purpose as a disabled plate (*see the Disabled Plate section earlier in this chapter*). To be eligible, you must meet the same qualifications as if you were applying for a disabled plate. In addition, you will also need a statement of disability from the U.S. Department of Veterans' Affairs.

Eligibility Standards

To obtain a disability plate, disability placard, or DV plate, you must be a Massachusetts resident. In addition, a licensed physician, chiropractor, or nurse practitioner must certify that you meet one of the following conditions:

- Cannot walk 200 feet without stopping to rest, or cannot walk without the assistance of another person, prosthetic aid, or other assistive device, as a result of a described clinical diagnosis;

- Have a cardiovascular disease to the extent that your functional limitations are classified in severity as Class III or Class IV according to the guidelines set by the American Heart Association (*if you are a Class IV heart patient you must surrender your license*);
- Have a pulmonary disease to the extent that forced expiratory volume (FEV-1) in one second when measured by spirometry is less than one liter, or requires continuous oxygen therapy, or has an O2 saturation rate of 88% or less at rest or with minimal exertion even with supplemental oxygen (*if your O2 saturation rate is 88% or less at rest or with minimal exertion even with supplemental oxygen, you must surrender your license*);
- Are legally blind: your central visual acuity does not exceed 20/200 (Snellen) in the better eye of the corrective lenses, or you have a visual acuity that is greater than 20/200 in the better eye but with a limitation in the field of vision such that the widest diameter of the visual field subtends an angle not greater than 20 degrees. Please attach a copy of certification that you are legally blind with your application (if you are in this classification, you must surrender your license);
- Have lost, or permanently lost the use of one or more limbs

Contact Medical Affairs directly at 617-351-9222.

Applying for Plates and Placards

Application forms are available at all RMV Branches and Limited Service Branches, or you can call the RMV Phone Center and have an application mailed to you or download the application from the RMV website. The application must be completed by both you and your attending Massachusetts registered physician, physician's assistant, chiropractor, or nurse practitioner. There is no fee for a disability plate or placard, but customers must pay the registration fee.

RMV Phone Center: 617-351-4500

The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833).

Monday–Friday 9 a.m.–5 p.m.

Internet Address: www.mass.gov/rmv

Send all written correspondence involving medical affairs to the following address:

Medical Affairs Branch
Registry of Motor Vehicles
P.O. Box 55889
Boston, MA 02205-5889

Please allow ample time for processing any plate or placard transaction.

Transferring a Plate to a Placard

To transfer from disability plates to a placard, please submit a written request stating the disability plate number and enclose a copy of the vehicle registration. As soon as the RMV processes your letter of request, you will receive instructions by mail for completing the transaction.

Applying for Replacement Placards

To apply for a replacement placard, you must submit a letter stating the reason you need a replacement. In your request, please include your name, address, social security number (SSN), date of birth, and the placard number or the date the placard was first issued.

Vehicle Inspections

In October 1999, the Enhanced Emissions and Safety Test was adopted to comply with federal requirements to help clean the air. The program was revised in October 2008. Under this program, registered motor vehicles are required to be inspected every year for safety. New vehicles are exempt from emissions testing for one year, but must undergo the safety inspection. After the one year period for new vehicles has passed, an emissions inspection is required every year for all light-duty (most cars, SUVs, and pick-up trucks) gasoline powered vehicles with a model year of 1996 or newer, and for light-duty diesel vehicles with a model year of 1997 or newer. Light-duty vehicles with a model year of 1995 or older will be exempt from emissions testing.

Note: Emissions testing of heavy-duty (10,001 lbs. or more) diesel vehicles began in 2009. Heavy-duty diesel vehicles with a model year of 1983 or older are exempt from emissions testing. Most older heavy-duty gasoline powered vehicles will also be exempt from emissions testing.

These inspections are conducted at licensed stations across the state. You can find them by calling the toll free number or using the website listed. The fee is \$29.00.



Motorcycles require an annual safety inspection which is performed at licensed Class M motorcycle inspection stations. The fee is \$15.00.

To find an inspection station in your area, call the toll free Hotline at 1-866-941-6277 or visit the Enhanced Emissions and Safety Test website at www.mass.gov/vehiclecheck

All fees are subject to change at any time.

When you buy a motor vehicle or motorcycle, **state law requires you to have it inspected within seven days of registration**, regardless of the vehicle's model year. You must have a new inspection, even if the vehicle bears a valid sticker from the previous owner.

Driving any motor vehicle without a valid inspection sticker is a traffic violation and can result in a fine and affect your insurance rate.

If your motor vehicle passes the annual inspection, a sticker will be affixed to the lower right inside windshield of your vehicle. This sticker is valid for one year from your initial inspection date. If your motorcycle passes the inspection, a sticker will be affixed to your license plate. This sticker is valid until May 31. For motorcycles inspected in January through April, stickers will be valid until May 31 of the following year.

If your motor vehicle fails the inspection, you will receive a "reject" sticker. If your motorcycle fails the inspection, you will not receive a new sticker.

- If the problem is safety-related, you must have the problem fixed immediately. You are not allowed to drive the vehicle until the safety issue is resolved.
- If the problem involves vehicle emissions, you have 60 days to correct the problem and resubmit your vehicle for inspection. For more details call toll free 1-866-941-6277 or visit the website at www.mass.gov/vehiclecheck

**For emissions information, call the Department of Environmental Protection,
Division of Inspection Maintenance, at 617-292-5604.**

Commercial Vehicles

Generally, commercial vehicles that have a Gross Vehicle Weight Rating (GVWR) or combined GVWR of 10,001 lbs or more are required to have the Massachusetts Commercial Vehicle Inspection. This inspection is equivalent to the Federal Motor Carrier Safety Administration inspection (commonly known as the annual "DOT Inspection") and satisfies this requirement, which means that only one inspection is required. The fee is \$29, plus a market rate for labor.

Trailers

Trailers that have a gross vehicle weight of 3,001 lbs. or more and are used in commerce need to be inspected. The fee is \$29, plus a market rate for labor.

The Lemon Aid Law

You may have protection under the Massachusetts Lemon Aid Law and be able to void or cancel a motor vehicle contract or sale if you meet the following two conditions:

1. Your vehicle fails to pass inspection within seven days from the date of sale AND
2. The estimated costs of making the repairs of emissions or safety related defects exceed 10% of the purchase price

If your situation does not meet these standards, you may have other laws to protect you. To find out how to receive your refund or if you have any questions, contact the Office of Consumer Affairs and Business Regulation: 617-973-8787 or (888) 283-3757 (in MA only).

**Consumer Affairs,
10 Park Plaza, Suite 5170, Boston, MA 02116**

Titles

A Certificate of Title is a legal document showing proof of ownership. When you buy a vehicle, your seller must give you his or her original title after printing and signing his or her name on it and entering the sale price and the required odometer information at time of transfer. Buyers are also required to sign and print their name(s). Signing your name at the time of transfer indicates that you are aware of the odometer disclosure statement made by the seller(s). You must then present the title to the RMV with your application for a new title. You must also obtain a registration if you are going to operate the vehicle on public ways. If you are borrowing money to pay for the vehicle, the Certificate of Title will be sent to the

lending institution, also known as the **lienholder**, which is listed on the title.

Massachusetts title law requires all motor vehicles and trailers to be titled within ten days of purchase. This applies to both new and used vehicles purchased from either a dealer or private party. There are some exceptions:

- Trailer with gross weight of 3,000 pounds or less
- Vehicle owned by a manufacturer or dealer and held for sale, even though it may be driven on the highway or used for testing or demonstration purposes
- Vehicle used by a manufacturer solely for testing
- Vehicle owned by a nonresident of the Commonwealth that has a current, valid Certificate of Title issued by the state of residence
- Vehicle regularly used for transporting people or property between states that has a current, valid Certificate of Title issued by another state or country
- Vehicle moved solely by animal power
- Implement of husbandry (farming or agriculture)
- Special mobile equipment
- Self-propelled wheelchair or invalid tricycle
- Manufactured (mobile) home as defined in Massachusetts General Law (MGL) c. 140, §32Q
- Vehicle owned by the U.S. Government, unless it is registered according to the provisions of MGL c. 90
- A vehicle on loan from the U.S. Government or from a vehicle manufacturer or distributor to the Commonwealth or a political subdivision thereof.

Basic Title Transactions

There are several basic title transactions:

- Obtaining an original title
- Obtaining a duplicate title
- Obtaining a salvage-related title, which may be a
 - Salvage repairable title
 - Owner-retained total-loss title
 - Reconstructed title
 - Recovered-theft title
 - Parts-only title
- Adding a lienholder to your title
- Correcting information on your title

The procedures for each of these transactions are summarized on the following pages.

All fees are subject to change at any time.

To apply for an original Certificate of Title and for all other basic title transactions, you can either visit an RMV office or conduct your business by mail.

Basic Title Transactions

Transaction Type	Forms and Documents	Fee	RMV Office or Mail Department	Processing Time	Notes
Original Title	• Application for Title (RMV-1) • Certificate of Origin or • Certificate of Title or • Bill of Sale (If Nontitled Vehicle)	\$75	Full-Service Branch	Four to Six weeks	If you borrow money to buy the vehicle, the title will be mailed to the lienholder. You must pay 6.25 percent sales tax on any vehicle you buy.
Duplicate Title	• Duplicate Title Application • Lien Release Letter (On Original Letterhead) If Lien Has Been Paid Off	\$25	<i>Mail to:</i> Duplicate Titles Title Division P.O. Box 55885 Boston, MA 02205	Seven to ten business days after receipt of application	If lien has been paid off, remember to include an original lien release letter from the lending institution.
Adding a Lienholder to Certificate of Title	• Universal Title Application (20065) • Original Certificate of Title	\$25	<i>Mail to:</i> Adding Lien Title Division P.O. Box 55885 Boston, MA 02205	Seven to ten business days after receipt of application	Don't forget to send the original title with your application. The RMV will send the new title to the lienholder.
Corrected Title	• Universal Title Application (20065) • Original Certificate of Title • Notarized Affidavit (For Mileage Only)	\$25	<i>Mail to:</i> Title Correction Department Title Division P.O. Box 55885 Boston, MA 02205	Seven to ten business days after receipt of application	If you are correcting an odometer problem, you must get a notarized affidavit stating the true mileage. This affidavit must be signed and witnessed by a notary public.
Salvage Repairable Title	• Application for Title (RMV-1) • Current Title	\$50	<i>Mail to:</i> Salvage Title Title Division P.O. Box 55885 Boston, MA 02205	Seven to ten business days after receipt of application	You must list the salvage repairable brand as collision, salt, flood, theft, or vandalism.
Owner-Retained Total Loss Title	• Application for Title (RMV-1) Listing Current Odometer Reading • Current Title (Original Only) • Copy of Appraisal from Insurance Company	\$75	<i>Mail to:</i> Salvage Title Title Division P.O. Box 55885 Boston, MA 02205	Seven to ten business days after receipt of application	To secure an owner-retained title, the vehicle must be driveable, able to pass a Massachusetts safety inspection, and have an active registration.
Reconstructed Title	• Application for Title (RMV-1) Listing Current Odometer Reading • Previous Salvage Title • Salvage Inspection Form	\$75	<i>Mail to:</i> Salvage Title Title Division P.O. Box 55885 Boston, MA 02205	Seven to ten business days after receipt of application	You must list the brand as reconstructed (collision, salt, flood, vandalism, other).
Recovered Theft Title	• Application for Title (RMV-1) Listing Current Odometer Reading • Previous Salvage Title • Salvage Inspection Form	\$75	<i>Mail to:</i> Salvage Title Title Division P.O. Box 55885 Boston, MA 02205	Seven to ten business days after receipt of application	You must list the brand as recovered theft (collision, salt, flood, vandalism, other).
Parts-Only Title	• Application for Title (RMV-1) Listing Current Odometer Reading • Previous Salvage Title • Appraisal Report from insurance company	\$50	<i>Mail to:</i> Salvage Title Title Division P.O. Box 55885 Boston, MA 02205	Seven to ten business days after receipt of application	You must list the salvage parts-only brand.

For any mail-in title transaction, be sure to include all required forms and documents and a check or money order for the appropriate fee, made payable to *MassDOT*. Send the required documentation to the RMV department listed in the chart on the previous page to the following address.

ATTN: Title Division
(Specific Department)
Registry of Motor Vehicles
P.O. Box 55885
Boston, MA 02205-5885

Title transaction forms are available at any RMV Branch, from most insurance agents, and through the RMV's website. Be aware that for most of these transactions, **all vehicle owners must sign the application forms.**

If you have any questions about title application procedures or would like title forms mailed to you, please call the RMV Phone Center or visit the RMV's website.

The chart on the previous page provides all the information you need for basic transactions. However, following are a few useful notes.

Obtaining an Original Title

If you are registering your vehicle when you apply for a title (*see the Vehicle Registration section earlier in this chapter*), an authorized Massachusetts insurance agent must stamp and sign the application to certify your insurance coverage.

If you bought your vehicle from a dealer, you must pay 6.25 percent state sales tax on your purchase price. For a private sale, your sales tax will be 6.25 percent of the actual purchase price or of the NADA trade-in (book) value, whichever is higher. If the vehicle is nontitled, you must bring the bill of sale when applying for a title.

Reminder: If you borrowed money to purchase the vehicle, the RMV will issue a "paper title" and mail it directly to the lienholder. Upon satisfaction of the lien (full payment by you), the lienholder is responsible for releasing its lien and mailing the title directly to you. If the lienholder uses the more modern "Electronic Lien and Title" (ELT) process, the RMV will send the lienholder an electronic message indicating that their lien has been perfected. When the lien is satisfied, the lienholder will notify the RMV electronically. The RMV will then issue and mail the "paper title" to you.

RMV Phone Center: 617-351-4500

The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833).

Monday–Friday 9 a.m.–5 p.m.

Internet Address: www.mass.gov/rmv

Obtaining a Duplicate Title

To obtain a duplicate title, complete all the required information on an Application for Duplicate Certificate of Title, which can be downloaded from **www.mass.gov/rmv**. All owners must sign the application. Once completed, mail it to the address at the top of the application.

If there was a lien on the vehicle and the loan has been satisfied, a Lien Release, on original letterhead from the lienholder, must be submitted. Faxes and photocopies are not acceptable.

Obtaining a Salvage-Related Title

A vehicle is deemed “salvage” when an insurance company has declared it to be a total loss due to fire, vandalism, collision, theft, flood, or any other cause. Once a vehicle has been given salvage classification, the classification is permanent and remains part of the vehicle’s history.

If your insurance company takes possession of the salvage vehicle, the company is responsible for applying for a salvage title. If you choose to keep the vehicle, you can apply for a salvage title, or, if the vehicle has an active registration and is capable of being safely operated on a public way, you can apply for an owner-retained title. Passenger vehicles ten or more model years old at the date of the event which caused the vehicle to be declared a total loss are exempt from the salvage title process.

A vehicle with a salvage title cannot be registered. If you plan to sell a salvaged vehicle, you should take it through the salvage inspection process and apply for a reconstructed or a recovered-theft title, whichever applies. Alternatively, you can advise the buyer that the inspection and title process is required before the vehicle can be registered.

Unless you are a licensed dealer, you cannot transfer a salvage title from private party to private party without the current owner first getting a salvage title in his or her name or completing the salvage process and securing the reconstructed title.

**If you have questions about the salvage inspection process, call the RMV's
Auto Theft Department at 617-351-9060.**

Salvage Repairable Title: If your vehicle becomes **inoperable** due to fire, vandalism, collision, theft, flood, or another event to such an extent that you or, if insured, your insurer considers it uneconomical to repair the vehicle, the vehicle will be declared a total loss.

If the vehicle is insured and the insurer retains the vehicle, you will have to assign your title to the insurer. If the title is being held by the lienholder, the insurer will send you an *Authorization for Payoff of a Salvage Vehicle* for you to complete. The insurer will then need to obtain a salvage title.

If the vehicle is uninsured or if you decide to keep possession of the vehicle, you must apply to the RMV for a salvage title. State law prohibits you from operating the vehicle until it has passed a salvage inspection (*see the Salvage Inspection section later in this chapter*) and you have obtained a new title.

To obtain a salvage repairable title, you must present, by mail to the RMV’s Title Division or in person at the RMV’s Boston Branch, your current Certificate of Title, a completed application (RMV-1), and a \$50 check or money order made payable to MassDOT. Within seven to ten days, the RMV will review your application and mail you a new salvage title.

Owner-Retained Total Loss Title: If your insurer declares your vehicle a total loss due to fire, vandalism, collision, theft, flood, or another event; **the vehicle is capable of being safely operated on a public way** and has an active registration; **and** you choose to keep the vehicle, you may continue to drive the vehicle after you have obtained an owner-retained total loss title.

Within ten days of receiving the settlement from your insurance company, you can apply for

an owner-retained total loss title by presenting, via mail to the RMV's Title Division or in person at the RMV's Boston Branch, your current Certificate of Title, your current Certificate of Registration, an appraisal report from your insurance company, a completed application (RMV-1), and a \$75 check or money order payable to MassDOT. Within seven-ten days, the RMV will review your application and mail you a new owner-retained total loss title.

Reconstructed Title: A reconstructed title is issued to a vehicle that was previously titled as salvage repairable (*see the preceding section*) but that has been repaired, inspected, and retitled as reconstructed. If you have such a vehicle, you may drive it legally when a new registration is issued. To secure a reconstructed title, bring to your local RMV Branch your present salvage title, your current Certificate of Registration (if available), an approved inspection form (Form 20613) that an inspector has completed, and a \$75 check or money order made payable to MassDOT.

All fees are subject to change at any time.

Recovered Theft Title: A recovered theft title is issued to a vehicle that was previously titled as salvage repairable theft with damage sustained from a theft and that has been repaired, inspected, and retitled as recovered theft. The vehicle may be legally driven when a new registration is issued.

Parts-Only Title: A parts-only title is issued to a vehicle that the insurance company has declared a total loss due to fire, vandalism, collision, theft, flood, or other occurrence and that the insurance company has declared to be "parts only." This type of vehicle can never be rebuilt or registered in the Commonwealth and may never be legally driven.

Salvage Brands: Each salvage title requires a brand. A brand simply describes the type of damage that caused an insurance company to declare a vehicle a total loss. A brand tells you that you are buying a salvage vehicle, and it also tells you the specific reasons your vehicle is considered salvage.

Brands fall into two main categories: primary and secondary. A primary salvage title brand, which indicates how a vehicle will be used, is one of two types: repairable or parts only. A repairable brand (REPR) means the vehicle can be repaired and returned to its operating condition. A parts-only brand (PART) means the vehicle can never be registered in the Commonwealth. The insurance company that declared the vehicle a total loss determines whether a vehicle is branded "parts only."

The second main type of brand, the secondary salvage title brand, tells you the event that caused the insurance company to declare your vehicle a total loss. Following are the seven secondary salvage brands:

- Collision (COLL)
- Fire (FIRE)
- Flood (FLOO)
- Flood/Salt (SALT)
- Theft (THEF)
- Vandalism (VAND)
- Other (OTHR)

Note: Other (OTHR) is to be used only when the listed brands cannot describe the event which caused the vehicle to be salvaged.

Salvage Inspections

Once you have repaired your vehicle, and before you can register it, you must have your vehicle inspected. Salvage inspections protect you because they combat fraud and prevent the sale of stolen parts. They also tell you the history of your salvage vehicle.

At the salvage inspection, the inspector checks the vehicle's identification number (VIN) and records, by number or receipt, all major component parts that were replaced. **The salvage inspection is not a safety inspection.**

If the safety inspection sticker was removed from your vehicle's windshield at the damage appraisal and replaced with a rejection sticker, you may submit the vehicle to any official inspection station for a valid safety inspection sticker any time after your vehicle's defects have been corrected. Note that the rejection sticker is valid for 20 calendar days from the date of inspection.

All salvage inspections are conducted on a drive-in basis. To have your salvage vehicle inspected, bring the following documents to one of the salvage inspection sites throughout the Commonwealth from 8 a.m. to 3 p.m. No salvage inspections are done on the last Wednesday of each month. Call the RMV's Phone Center or go to www.mass.gov/rmv to identify the salvage inspection sites and hours of operation.

- Completed application for inspection of a salvage vehicle and an affidavit of reconstruction (available at inspection sites only)
- Your newly issued salvage title
- Appraisal report from your insurance company
- Receipts for all major component parts used to restore your vehicle. If any of the parts were used, include the vehicle identification number (VIN) of the vehicle originating the parts
- If an airbag has been replaced with a used airbag, a copy of the certificate of title for the vehicle that the airbag came from must be presented
- A \$50 check or money order made payable to MassDOT.

**Title Division, Registry of Motor Vehicles,
P.O. Box 55885, Boston, MA 02205-5885**

Once your salvage vehicle has been inspected, you can register it. In general, all salvage-titled vehicles must be inspected in Massachusetts to be registered in Massachusetts. The Massachusetts RMV does not honor out-of-state salvage inspections unless the Registrar and the motor vehicle administrators of those states have previously agreed to accept each others' inspections.

Vehicles from states that do not issue salvage titles (such as New York, which issues only a Salvage Certificate [Form 907A]) cannot be transferred or reinspected in Massachusetts until their owners have applied for Massachusetts salvage titles.

If you have any questions about salvage title procedures or would like forms mailed to you, please call the RMV Phone Center or visit the RMV's website, www.mass.gov/rmv.

Obtaining a Corrected Title

If you are correcting any information on your Certificate of Title, please refer to **Basic Title Transactions**. If you are correcting an odometer reading, you must submit a notarized affidavit of this fact. In this case, the notarized document is a written statement, made by the seller who provided the incorrect information, stating the true and accurate odometer reading at time of transfer, signed and witnessed in the presence of a notary public. Faxes and photocopies are not accepted.

When You Sell a Vehicle . . .

Whenever you sell a motor vehicle, you must sign the Certificate of Title over to the new owner and either . . .

- Turn in the plates and cancel the registration
or
- Transfer the plates to another vehicle you own according to the seven-day registration transfer law (*see the Seven-Day Registration Transfer Law section earlier in this chapter*)

Take extra care when completing the transfer form on the back of the Title Certificate. Be sure to list the purchase price and odometer reading.

To check the current status of your title, visit www.mass.gov/rmv and select Title/Lien Inquiry.

Insurance and Merit Rating

As part of the registration process, Massachusetts requires every vehicle on the road to be covered at least by minimum levels of motor vehicle insurance.

Compulsory insurance coverage:

- **Bodily injury to others**—Minimum \$20,000 per person, \$40,000 per accident (Part One)
- **Personal injury protection**—Pays up to \$8,000 to you, passengers, pedestrians or anyone you allow to drive your vehicle (Part Two)
- **Bodily injury caused by an uninsured auto**—Minimum \$20,000 per person, \$40,000 per accident (Part Three)
- **Damage to someone else's property**—Minimum \$5,000 for property damage (Part Four)

Private Passenger Automobile Insurance and Your Driving Record

Managed competition was introduced in the Massachusetts private passenger automobile insurance market beginning April 1, 2008. Insurance companies are now allowed to set their own rates for policies effective on or after April 1, 2008, subject to approval by the Commissioner of Insurance.

For more information, the Division of Insurance has available consumer guides to help you understand the changes to the automobile insurance market. Please visit their website at www.mass.gov/doi or call the Office of Consumer Affairs at 617-521-7777.

Merit Rating Plans

Under the prior fixed-and-established system, insurance companies were required to apply specific surcharges for certain traffic violations and accidents. This method of setting surcharges and credits is part of the Safe Driver Insurance Plan. Under the new system, your insurance company can choose to develop its own method, or merit rating plan, for adjusting your auto insurance premium based on your driving record. This means that the insurer can determine if and how it will impose surcharges on your premium for traffic violations and at-fault accidents and apply discounts for good driving. An insurance company's merit rating plan cannot:

- Use any at-fault accident or traffic violation that is greater than six years old from the policy effective date, or
 - Increase premiums for at-fault accidents or traffic violations for more than five years
-

Safe Driver Insurance Plan

Insurance companies are not required to develop a merit rating plan. They can choose instead to adopt the existing Safe Driver Insurance Plan as their merit rating plan. The Safe Driver Insurance Plan lowers premiums for drivers with clean driving records, and increases premiums for drivers with traffic violations and at-fault accidents. To learn more about the surcharges and credits that apply in the Safe Driver Insurance Plan, visit the Merit Rating Board website at www.mass.gov/mrb or call 617-351-4400 Monday through Friday from 8:30 a.m. to 5:00 p.m.

The Merit Rating Board

Whether they customize a merit rating plan or use the Safe Driver Insurance Plan, all Massachusetts auto insurance companies are required to report at-fault accidents and out-of-state driving records to the Merit Rating Board (MRB). The MRB is the state agency that maintains driving records.

The MRB driving record consists of surchargeable incidents. A surchargeable incident is any event in which you are:

- Convicted of, or pay a fine for, a motor vehicle violation
- Assigned to an alcohol education program or controlled substance treatment or rehabilitation program
- Found to be more than 50 percent at fault for an accident, and your insurance company makes a claim payment above a certain threshold

In addition to potentially affecting your private passenger automobile insurance, each surchargeable incident counts toward possible license suspension (see *Chapter Two* for more information on suspensions).

You are considered to be more than 50 percent at fault in an accident if your insurance company:

1. Finds you at fault according to one of the 19 At-Fault Standards (see a complete list below), and
2. Has paid a claim of more than \$500 for Collision, Limited Collision, Damage to Someone Else's Property, or Bodily Injury to Others.

At-Fault Standards

- Collision with a lawfully or an unlawfully parked vehicle
- Rear-end collision
- Out-of-lane collision
- Failure to signal
- Failure to proceed with due caution from a traffic control signal or sign
- Collision on wrong side of road
- Operating in wrong direction
- Collision at an uncontrolled intersection
- Collision while backing
- Collision while making a left turn or a U-turn across the travel path of a vehicle traveling in the same or opposite direction
- Leaving or exiting a parked position, a parking lot, an alley, or a driveway
- Opened or opening vehicle door(s)
- Single-vehicle collision
- Failure to obey driving rules and regulations
- Unattended vehicle collision
- Collision while merging onto a highway or into a rotary
- Noncontact operator causing collision
- Failure to yield right-of-way to emergency vehicles when required by law
- Collision at a "T" intersection (you entered from a side road)

Driving safely and maintaining a clean driving record will almost certainly reduce your automobile insurance premium. The Safe Driver Insurance Plan and most insurance company merit rating plans provide good driver discounts to people with clean driving records.

Contact Information

For more information regarding automobile insurance, call the Division of Insurance Consumer Service Unit at 617-521-7777 or visit their website at **www.mass.gov/doi**. You can also contact an automobile insurance company or insurance agent directly. For more information regarding your driving record, call the Merit Rating Board's Consumer Service Section at 617-351-4400 or visit their website at **www.mass.gov/mrb**.

A. Parties to the 1949 Road Traffic Convention and the 1943 Inter-American Automotive Traffic Convention

A foreign visitor from one of the countries or territories listed here may legally drive on the roads of the Commonwealth on his or her own country's license (limited to a licensed driver who is at least 18 years old and limited to a vehicle of the type covered by the license) for up to one year from the date of arrival. The visitor may operate his or her own private passenger vehicle if displaying valid license plates from the visitor's country (and meeting insurance standards set by the Commonwealth if operated longer than 30 days) for up to one year from the date of arrival.

Except for those registered in Mexico and Canada, vehicles being operated in Massachusetts that are registered in any of the countries listed in Appendix A (including Germany and Switzerland) must also exhibit the **International Distinguishing Sign** on the outside rear of the vehicle. The sign is a white oval that is obtained from the country of registration and contains one to three black letters identifying the country.

A licensed driver from one of the countries listed here, or a Massachusetts licensed driver operating in one of the listed countries, should consider obtaining and carrying, in addition to his or her valid home country license, an International Driving Permit. Permits are available, for a fee, from certain automobile associations but can only be issued in the country the applicant is coming from. An International Driving Permit does *not* confer any driving privileges but is a translation into ten major languages of the relevant information contained on the driver's home country license.

CAUTION: The Registrar and law enforcement agencies know that individuals or organizations have sold fraudulent documents as "International Driver Licenses" or "International Driving Permits." The Registrar *does not* recognize as valid any document purporting to be an "International Driver License" or any other document that confers driving privileges *unless issued by the government agency that issues such licenses in the driver's country of residence* and the driver is validly licensed. A person operating a motor vehicle with a fraudulent Massachusetts license is subject to arrest pursuant to MGL c. 90, §24B, and MGL c. 90, §10.

The Registrar reserves the right to amend this list at any time based on additional information received from the U.S. Department of State or other sources.

Albania	Chile*	Gambia, The	Ivory Coast (See Côte
Algeria	Colombia*	Germany (by reciprocity)	D'Ivoire)
Argentina*+	Congo	Georgia (Rep. of)	Jamaica
Australia	Congo, Democratic Rep.	Ghana	Japan
Austria	Costa Rica*	Greece	Jordan
Bahamas, The	Côte D'Ivoire(Ivory Coast)	Grenada	Korea
Bangladesh	Cuba	Guatemala*+	Kyrgyz Rep.
Barbados	Cyprus	Guyana	Laos
Belgium	Czech Republic	Haiti*+	Lebanon
Belize	Denmark	Honduras*	Lesotho
Benin	Dominican Republic*+	Hong Kong (but not	Luxembourg
Botswana	Ecuador*+	mainland China)	Macao (but not
Brazil*	Egypt	Hungary	mainland China)
Bulgaria	El Salvador*	Iceland	Madagascar
Cambodia	Fiji	India	Malawi
Canada	Finland	Ireland	Malaysia
Central African Re-	France (including French	Israel	Mali
public	Overseas Territories)	Italy	Malta

..... *Continued*

Mauritius	Portugal (applies to all	Surinam	United Kingdom
Mexico*	Portuguese territories)	Swaziland	(Great Britain and
Monaco	Romania	Sweden	Northern Ireland,
Montenegro	Russian Federation	Switzerland (by	also applies to Cay-
Morocco	Rwanda	reciprocity)	man Islands;
Namibia	St. Lucia	Syrian Arab Republic	Gibraltar; Bailiwick
Netherlands (also applies	St. Vincent and the Grena-	Taiwan (Republic of	of Guernsey; Isle of
to Netherlands Antilles,	dines	China)	Man; and States of
and Aruba)	San Marino	Tanzania	Jersey)
New Zealand	Senegal	Thailand	United States of
Nicaragua*	Serbia	Togo	America*+
Niger	Seychelles	Trinidad and Tobago	Uruguay*
Norway	Sierra Leone	Tunisia	Vatican City
Panama*	Singapore	Turkey	Venezuela*
Papua New Guinea	Slovak Rep.	Uganda	Vietnam, Rep.
Paraguay*+	South Africa	(Union of Soviet	Western Samoa
Peru*+	Spain (applies to African	Socialist Republics,	Zambia
Philippines	localities and provinces)	USSR, no longer exists.	Zimbabwe
Poland	Sri Lanka	See individual republics)	

From ***“A List of Treaties in Force and Other International Agreements of the United States in Force on January 1, 2007, Section 2: Multilateral Treaties”*** (Published by the Treaty Affairs Staff, Office of the Legal Adviser, U.S. Department of State, Washington, DC).

The countries or territories listed are either direct parties to one or both of the cited Conventions or the U.S. State Department considers them bound as beneficiaries by the signature of a former government.

NOTE: Until further notice, licenses from the following former republics of the USSR and countries of the Baltics should be honored:

Armenia	Moldova	Uzbekistan
Azerbaijan	Tajikistan	Latvia
Belarus	Turkmenistan	Lithuania
Kazakhstan	Ukraine	Estonia

NOTE: *German and Swiss Drivers Granted Privileges.* The Registrar has determined that Germany and Switzerland enforce standards of fitness of operators 18 years old or over, substantially as high as those prescribed and enforced by this Commonwealth, and that they grant to properly licensed residents of this Commonwealth the privilege of operating a properly registered motor vehicle of a type that he or she is licensed to operate with his or her Massachusetts license. Therefore, pursuant to MGL c. 90, §10, the Registrar grants to residents of Germany and Switzerland who are 18 years old or over the privileges of operating in this Commonwealth, provided such nonresidents have complied fully with the laws of their home countries and have valid operator's licenses in their possession or in their vehicles in some easily accessible place.

*= Party to 1943 Int.-Am. Conv., at Washington, DC

*+= Party to 1943 Conv. and Party to 1949 Conv. at Geneva

NOTE: The United States did not ratify and is not a Party to the 1968 Road Traffic Convention at Vienna.

Driving Privileges for NATO Forces:

Massachusetts is legally required to honor the provisions of the ***Agreement Between The Parties To The North Atlantic Treaty Regarding the Status of Forces*** (NATO SOFA), entered into by the US on August 23, 1953. The Treaty accords driving privileges to active duty military members of NATO forces on assignment in this country (usually for training purposes) and also to civilian components attached to the NATO forces. Therefore, Massachusetts accepts as valid, without a driving test or fee, the driving permit, license or military driving permit issued by a NATO country to its own military personnel or to the personnel of a civilian component of the military force.

NATO military and civilian component personnel are required to carry and present on demand:

- (a) a personal identity card issued by the sending NATO country showing names, date of birth, rank and number (if any), service, and photograph.
- (b) an individual or collective movement order, in the language of the sending country and in the English and French languages, issued by an agency of the sending country or NATO and certifying to the status of the individual or group as a member or members of a force and to the movement ordered.

Members of a civilian component and dependents shall be so described in their passports.

Dependents of military personnel of NATO force personnel on assignment in the U.S., and dependents of civilian employees assigned to those NATO forces, who are from one of the NATO member countries listed below, may legally drive on the roads of the Commonwealth, **on their home country license**, for up to one year from the date of arrival, under the Multilateral Road Traffic Convention of 1949 or applicable reciprocal agreements.

List of NATO Member Countries: Albania, Belgium, Bulgaria, Canada, Croatia, Czech Republic, Denmark, Estonia, France, Germany, Greece, Hungary, Iceland, Italy, Latvia, Lithuania, Luxembourg, The Netherlands, Norway, Poland, Portugal, Romania, Slovakia, Slovenia, Spain, Turkey, the United Kingdom, and the United States.

B. RMV Customer Services

In addition to the RMV Full Service and Limited Service Branches listed in this appendix, the RMV provides two excellent information resources to help serve you better: its Phone Center and website.

Customer Phone Information Center

Recorded RMV information is available 24 hours a day. Information is available on licensing, registrations, titles, suspensions, medical affairs, and RMV locations. Between 9am and 5pm, Monday through Friday, you can speak to an RMV service representative in person to:

- Make general inquiries
- Request forms to be mailed to you
- Book a driver's license road test
- Provide change-of-address information or change-of-vehicle-garage location
- Conduct business transactions using a MasterCard, Visa, Discover, or American Express card including. . .
 - Renewing a vehicle registration
 - Paying a moving violation fine, such as a speeding ticket
 - Ordering a driving record
 - Ordering a duplicate license, Mass ID, or Liquor ID (photo-image type only)
 - Paying license suspension reinstatement fees
 - Ordering a duplicate vehicle registration

RMV Phone Center: 617-351-4500

The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833).

Monday–Friday 9 a.m.–5 p.m.

Internet Address: www.mass.gov/rmv

RMV Website

The RMV maintains its own award winning website, **www.mass.gov/rmv**, for customers who have online access. Customers can pre-stage certain permit/license/ID card transactions, schedule a road test, renew their Class D or Class M license, renew their Massachusetts Identification Card, renew vehicle registrations, pay moving violation fines, order duplicate vehicle registrations, order specialty plates, check to see if a vanity plate is available, change their address, order a duplicate driver's license or Mass ID, download forms, verify the issuance of a driver's education certificate, check the status of a registration or title, check wait times for any Registry branch, change their organ donor status, and join a free service that will remind you by email, phone, or text message when your license or ID card expires and you need to renew. Online transactions can be paid for using a MasterCard, Visa, Discover, or American Express card. General information is also available on most Registry topics.

1-866-MASSRMV

Customers wishing to renew their registration, book a Class D road test, check branch wait times or have forms faxed to them using our fax on demand service can do so by calling our automated number 1-866-MASSRMV.

C. RMV Full Service and Limited Service Branches

Unless otherwise noted, all RMV Branches are full-service facilities that allow you to transact most RMV business and receive information.

Hours & locations are subject to change without notice.

Note: Class D and M learner's permit exams are offered until one hour before the branch's closing time. Commercial Driver's License (CDL) learner's permit exams are offered until two hours before the branch's closing time.

Master Card, VISA, Discover, and American Express, and debit cards are accepted for license related transactions.

Boston

630 Washington Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Braintree

10 Plain Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Brockton

490 Forest Avenue
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Charlton

Massachusetts Turnpike
Charlton East Bound Service Plaza

Limited Service

Mon-Fri - 9 am-5 pm

Chicopee

1011 Chicopee Street
Mon-Fri - 9 am-5 pm
No Learner's Permit Exams at this Site

Danvers

100 Independence Way
(Liberty Tree Mall)
Mon-Fri - 9 am-5 pm
No Learner's Permit Exams at this Site

Easthampton

116 Pleasant Street
Mon-Fri - 9 am-5 pm

Fall River

Durfee Union Mill, Building 7
203 Plymouth Avenue
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Greenfield

280 Main Street
Mon-Fri - 9 am - 5 pm

Haverhill

4 Summer Street (City Hall)
Mon-Fri - 8 am - 4 pm
No Learner's Permit Exams at this Site

Lawrence

73 Winthrop Avenue, Plaza 114
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Leominster

80 Erdman Way
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Lowell

77 Middlesex Avenue
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Martha's Vineyard

11 A Street
Airport Business Park,
Edgartown
Mon-Fri - 8 am-12 noon, 1 pm-4 pm

Melrose (moved to Revere - January 2009)

Milford

14 Beach Street
Mon-Fri - 9 am-5 pm

Nantucket

16 Broad Street
Mon-Fri - 8 am-12 noon, 1 pm-4 pm

New Bedford

278 Union Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

North Adams (new location)

33 Main Street
Mon-Fri - 9 am-1 pm, 2 pm-5 pm

Pittsfield

333 East Street
Mon-Fri - 9 am-5 pm

Plymouth

40 Industrial Park Road
Mon-Fri - 8 am-4 pm

Quincy (moved to Braintree - Summer 2008)

Revere

9c Everett Street (Bell Circle)
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Rosindale (Boston)

8 Cummins Highway
Limited Service
Mon-Fri - 9 am-5 pm
No Learner's Permit Exams at this Site

South Yarmouth

1082-1084 Main Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Springfield

165 Liberty Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Taunton

One Washington Street
Mon-Fri - 9 am-5 pm

Watertown

550 Arsenal Street
(Watertown Mall)
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Wilmington

355 Middlesex Avenue
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Worcester

611 Main Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

RACE (Registry Agents Cooperative Express) units are available at these locations: Boston, Springfield, Taunton, Wilmington, and Worcester. See our website for available hours.

Limited Service Branches

The only services available at Limited Service Branches are license, ID card, and registration renewals, amendments, and duplicates.

Limited Service Branches **do not accept cash**. They only accept checks or money orders for payment. MasterCard, VISA, Discover, American Express cards, and debit cards are only accepted for license transactions.

Attleboro License and Registration Renewal Express

75 Park Street, Attleboro
Mon-Fri - 9 am-5 pm

Natick License and Registration Renewal Express

Massachusetts Turnpike
Natick East Bound Service Plaza
Mon-Fri - 8 am-4 pm

Fast Lane Locations

The following branches also sell MassPike Fast-Lane Transponders:

Boston

630 Washington Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Charlton

Massachusetts Turnpike
Charlton East Bound Service Plaza
Mon-Fri - 9 am-5 pm

Danvers

100 Independence Way
(Liberty Tree Mall)
Mon-Fri - 9 am-5 pm

Fall River

Durfee Union Mill, Building 7
203 Plymouth Avenue
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Leominster

80 Erdman Way
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

North Adams (new location)

33 Main Street
Mon-Fri - 9 am-12 noon, 1 pm-5 pm

Pittsfield

333 East Street
Mon-Fri - 9 am-5 pm

Springfield

165 Liberty Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Watertown

550 Arsenal Street
(Watertown Mall)
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Wilmington

355 Middlesex Avenue
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

Worcester

611 Main Street
Mon, Tue, Wed, Fri - 9 am-5 pm
Thurs - 10 am-6 pm

RMV Phone Center

617-351-4500

Monday—Friday 9 am–5 pm

The hearing impaired can call toll free at 1-877-RMV-TTDD (1-877-768-8833)

RMV Mailing Address

Registry of Motor Vehicles
P.O. Box 55889 Boston, MA 02205-5889

For directions, visit the RMV's website: www.mass.gov/rmv

D. RMV License and Identification cards

Below are images of all the licenses and identification cards that the RMV issues.



Mass License Issued
2010 - present



Mass License Issued
2004 - 2010



Back of License Issued
2010 - present



Under 21 License
Issued 2010 - present



Under 18 License
Issued 2010 - present



Under 21 License
Issued 2004 - 2010



Back of License Issued
2004 - 2010



MA ID Issued
2010 - present



MA ID Issued
2004 - 2010



Mass License Issued
2000 - 2004



Under 21 ID Issued
2010 - present



Under 21 ID Issued
2004 - 2010



MA ID Issued
2000 - 2004



Liquor ID Issued
2010 - present



Liquor ID Issued
2004 - 2010

E. Street Signs

Below are images of all the parking signs used in Massachusetts.



Below are images of all the pedestrian signs used in Massachusetts.



Below are images of all the bicycle signs used in Massachusetts.



F. RMV Special Registration Plates

Below are images of all the special plates that the RMV offers.



Basketball Hall of
Fame



Blackstone Valley



Boston Bruins



Boston Celtics



Cape Cod and
Islands



Choose Life



Conquer Cancer



Cure Breast Cancer



Firefighters Memorial



Fish and Wildlife



Invest in Children



Massachusetts
Animal Coalition



Mini Fenway Park



New England
Patriots



Olympic Spirit



Red Sox /
Jimmy Fund



Right Whale



United We Stand



Year of Manufacture
Plate

Registry of Motor Vehicles

P.O. Box 55889

Boston, MA 02205-5889

Deval L. Patrick, Governor

Timothy P. Murray, Lieutenant Governor

Jeffrey B. Mullan, Secretary and CEO of Transportation

Rachel Kaprielian, Registrar

**For comprehensive RMV information,
visit our website at www.mass.gov/rmv**

**We provide personalized responses
to your RMV questions via email.**

Contact the RMV Phone Center for:

- **Registry information**
- **Moving violation citation payments**
- **Registration renewals**

To reach the Phone Center, call

617-351-4500

The Phone Center is open from 9 a.m. to 5 p.m.

**Visa, MasterCard, Discover, and American Express
are accepted.**

